

MKS Construction, LLC

d.b.a. Earth Works

Employee Handbook

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WELCOME

We are pleased you have chosen to be a part of our team at MKS Construction, LLC and look forward to seeing the contributions and strengths you bring. Our efforts are to encourage your self-growth within our company and for your work here to be both challenging and rewarding.

As an employee of our company, the importance of your contribution cannot be overstated. Our goal is to provide top quality services to our customers by working efficiently and thoroughly in everything we do. Integrity is of the utmost importance to ensure MKS Construction, LLC continues to hold a reputation customers can depend on. You play a crucial role in this process because your work will directly impact our company's reputation and in the field, you will be the face of MKS Construction, LLC.

Whatever position you hold, or what department you work with, your performance and adherence to these policies will contribute to our overall success. You should become familiar with the content of this handbook, as it will outline some of the responsibilities and expectations for your role at MKS Construction, LLC.

We are optimistic for your future with MKS Construction, LLC and are excited to have you on our winning team.

HANDBOOK PREVIEW

This handbook is written to for our employees to inform you of the policies and procedures our Company operates under, as well as discuss the benefits offered to you. Each employee is expected to read this Employee Handbook carefully, as it is a valuable recourse to identify your role and understand how MKS Construction, LLC operates.

The statements in this Handbook reflect the work of many people in our organization. In this Handbook, you will learn our general employment guidelines, answer your questions about policies and benefits, and provide an established reference point for use in determining the expectations to be carried out in your daily role. However, we realize in a Handbook such as this, it is impossible to cover every work rule, exceptions, and special cases. Areas not covered in this Handbook are subject to general policies, or if no policy exists, MKS Construction, LLC will make decisions that reasonably balance the interest of our employees, our company, and our customers. The Company reserves the right to revise, delete and add to the provisions of this Employee Handbook and our policies and procedures. We will make every effort to inform you as changes occur.

MKS Construction, LLC's failure to apply these policies in a particular case does not change or alter the Company's right to enforce the policies in other cases.

Nothing in this manual constitutes an employment contract or an offer of an employment contract.

This Employee Handbook supersedes and replaces any and all prior Employee Handbooks and inconsistent verbal or written policy statements.

This manual is the property of MKS Construction, LLC and, if removed from the premises, it must be returned to the Company upon the termination of employment.

If you have any questions, your supervisor or your Human Resources representative is the best sources of information about our Company's policies. They will be glad to answer your questions or direct you to someone who can.

NATURE OF EMPLOYMENT

The nature of our employment relationship is "at will" This means either the Company or the employee may terminate the employment relationship at any time, for any legal reason, with or without notice or cause.

Neither this handbook nor any other Company document confers any contractual right; either express or implied, to remain in the company's employ. Nor does it guarantee any fixed terms or conditions of your employment. Your employment is not for any specific time and may be terminated at will, with or without cause and without prior notice by the Company, or you may resign for any reason at any time.

No supervisor or other representative of the Company (except for the President, in writing) has the authority to enter into any agreement with you for employment for any specified period of time, or to make any agreement contrary to the above.

If any questions arise regarding the interpretation of any benefit plan, the terms and conditions of the actual plan documents and summary plan description will control rather than the summaries contained in this Handbook, as those summaries are only guidelines. Also, benefits are not contractual in nature and are subject to change and discontinuation.

These provisions supersede all existing policies and practices and may not be changed except by the express written approval of the President.

EQUAL EMPLOYMENT OPPORTUNITY

MKS Construction, LLC provides equal employment opportunities (EEO) to all employees and applicants for employment without regard to race, color, religion, gender, sexual orientation, gender identity, national origin, age, disability, genetic information, marital status, amnesty, or status as a covered veteran in accordance with applicable federal, state, and local laws. MKS Construction, LLC complies with applicable state and local laws governing nondiscrimination in employment in every location in which the company has facilities. This policy applies to all terms and conditions of employment, including hiring, placement, promotion, termination, layoff, recall, transfer, leaves of absence, compensation, and training.

MKS Construction, LLC expressly prohibits any form of unlawful employee harassment based on race, color, religion, gender, sexual orientation, national origin, age, genetic information, disability, or veteran status. Improper interference with the ability of MKS Construction, LLC employees to perform their expected job duties is absolutely not tolerated.

AMERICANS WITH DISABILITIES ACT & THE ADA AMENDMENT ACT

The Americans with Disabilities Act (ADA) and the Americans with Disabilities Amendments Act, known as the ADAAA, are federal laws that prohibit employers with 15 or more employees from discriminating against applicants and individuals with disabilities and that, when needed, provide reasonable accommodations to applicants and employees who are qualified for a job, with or without reasonable accommodations, so that they may perform the essential job duties of the position.

It is the policy of MKS Construction LLC to comply with all federal and state laws concerning the employment of persons with disabilities and to act in accordance with regulations and guidance issued by the Equal Employment Opportunity Commission (EEOC). Furthermore, it is our company policy not to discriminate against qualified individuals with disabilities in regard to application procedures, hiring, advancement, discharge, compensation, training or other terms, conditions, and privileges of employment.

The company will reasonably accommodate qualified individuals with a disability so that they can perform the essential functions of a job unless doing so causes a direct threat to these individuals or others in the workplace and the threat cannot be eliminated by reasonable accommodation, and/or if the accommodation creates an undue hardship to MKS Construction, LLC. Contact the Human Resource department with any questions or requests for accommodation.

ANTI-HARASSMENT POLICY

MKS Construction, LLC company policy maintains that all employees have a right to work in an environment free of discrimination, which includes freedom from harassment-whether that harassment is based on sex, age, race, national origin, religion, sexual orientation, marital status, or membership in other protected groups. The Company prohibits harassment of its employees in any form-by managers, so-workers, customers, or suppliers.

Such conduct may result in disciplinary action up to and including dismissal of the employee who harasses others. With respect to non-employees, offending customers and suppliers will be asked to leave and not return.

Harassment of our customers/clients, or employees of our customers/clients, vendors, or suppliers by our employees is also strictly prohibited. Such harassment includes sexual advances, verbal or physical conduct of a sexual nature, sexual comments, and gender-based insults. Any such harassment will subject an employee to disciplinary action, up to and including immediate discharge.

Specifically, no manager shall threaten or insinuate either explicitly or implicitly that any employees' submission to or rejection of sexual advances will in any way influence any personnel decision regarding that employee's employment, evaluation, wages, advancement, assigned duties, shifts or any other condition of employment or career development.

Any harassing conduct in the workplace, whether physical or verbal, committed by managers or others is also prohibited. This includes slurs, jokes or degrading comments concerning sex, age race, national origin, religion, sexual orientation, marital status, or membership in other protected groups; repeated offensive sexual flirtation, advances, or propositions; continual or repeated abuse of a sexual nature; graphic verbal comments about and individual's body; and the display in the workplace of sexually suggestive objects or pictures.

Employees who have complaints of harassment should immediately report such conduct to a supervisor. If you do not feel that the matter can be discussed with your supervisor, you should contact the Human Resources Department to discuss your complaint. You may be assured that you will not be penalized in any way for reporting a harassment problem. All complaints of harassment which are reported to management will be investigated promptly. Where investigations confirm the allegations, appropriate corrective action will be taken. MKS Construction, LLC prohibits employees from hindering internal investigations and internal complaint procedures. All employees are expected to cooperate with the investigation. Failure to do so may lead to discipline, including dismissal. All complaints of harassment will be treated with as much confidentiality as possible, consistent with the need to conduct an adequate investigation. Providing false information in the course of an investigation is grounds for discipline, in including dismissal.

Employees who observe harassment should also report such conduct to the human resources director.

Whether the complaint involves you or if you were a bystander who observed harassment, your notification of the problem is essential to us. We cannot help to resolve a harassment problem unless we know about it. Therefore, it is your responsibility to bring those kinds of problems to our attention so that we can take whatever steps are necessary to correct the problem.

If you have any questions about what constitutes harassing behavior, ask your supervisor or another management official.

Sexual Harassment

While all forms of harassment are prohibited, it is the policy of MKS Construction, LLC to emphasize that sexual harassment will not be tolerated in any form.

Sexual harassment is defined as unwelcome sexual advances, requests for sexual favors and other verbal or physical conduct of a sexual nature when.

Submission is made a term or condition of employment, either explicitly or implicitly. Submission to or rejection of a sexual invitation is used as a basis for an employment decision.

The sexual advance or request for sexual favors has the purpose or effect of interfering with an individual's work performance or creates an "intimidating, hostile or offensive" working environment

In addition to the above listed conduct, "sexual harassment" can also include the following examples of unacceptable behavior:

- unwanted sexual advances
- offering an employment benefit (such as a raise or promotion or assistance with one's career) in exchange for sexual favors, or threatening an employment detriment (such as termination, demotion, or disciplinary action) for an employee's failure to engage in sexual activity
- visual conduct, such as leering, making sexual gestures, displaying of sexually suggestive objects or pictures, cartoons, or posters

- verbal sexual advances, propositions, or requests
- verbal abuse of a sexual nature, graphic verbal commentaries about an individual's body, sexually
- degrading words used to describe an individual, suggestive, or obscene letters, notes or invitations physical conduct, such as touching, assault, impeding or blocking movements

Any employee who experiences sexual harassment should report it immediately. Any harassment should be reported to the employee's supervisor or HR representative. If that is not appropriate, harassment may be reported to any other member of management.

The employee will be protected from retaliation related to the claim, and appropriate and confidential action will be taken to investigate and prevent confirmed sexual harassment.

Violation of this policy will subject an employee to disciplinary action, up to and including immediate discharge.

Whether the complaint involves you or if you were a bystander who observed harassment, your notification of the problem is essential to us. We cannot help to resolve a harassment problem unless we know about it. Therefore, it is your responsibility to bring those kinds of problems to our attention so that we can take whatever steps are necessary to correct the problem.

CODE OF ETHICS

Our business environment demands we follow a strict code of principles and standards in every aspect of our relationships with customers, fellow employees, vendors, and affiliated third parties. In an ongoing effort to educate and promote an atmosphere that is acceptable, the management team has adopted the following Code of Ethics.

At MKS Construction, LLC we will:

- Operate this business in accord with the highest standards of ethical conduct.
- Treat each customer in a fair, open, and honest manner, and fully comply with all laws that prohibit discrimination.
- Meet the transportation needs of our customers in a knowledgeable and professional manner.
- Resolve customer concerns promptly and courteously.
- Put our promises in writing and stand behind them.

1. Advertising:
    - This company is committed to advertising its services in a clear, conspicuous, and accurate manner that fully complies with applicable legal requirements.

2. Sales:
    - Implicit in these standards is the requirement that all employees will comply fully with all federal, state, and local laws governing our business.

At this company, the customer service representatives will at all times:

- Embrace the spirit and the letter of the law governing the standards of our industry.
- Be honest and truthful when dealing with customers.
- Provide each customer with a thorough and clear explanation of the steps involved in the purchase of services or products involved.
- Always treat each customer in a professional manner.
- Represent the company and the industry in a professional manner.

Implicit in these standards is the requirement of all MKS Construction, LLC employees to comply fully with all federal, state, and local laws that govern our business. We value the positive experiences that our customers have at our company and fully expect that each employee understands and adheres to our highest standard. However, simply following the pledge that we have made above will not account for every instance or opportunity that we have to make a positive impact on our customer's experience. We urge every employee to seek management assistance when in doubt, or if there are any questions concerning our ethical obligations. We want everyone to fully understand and embrace our dedicated effort to treat all customers, fellow employees, vendors, and affiliated third parties with honesty and integrity.

EMPLOYEE CLASSIFICATION CATEGORIES

- *Full-Time Employees* – Regularly scheduled to work 30 or more hours each work week.
- *Part-Time Employees* – Regularly scheduled to work less than 30 hours each work week.
- *Temporary Employees* – Work full-time or part-time on a temporary basis for a specific period for special projects, assignments, or conditions. An employee in this class is not eligible for employer-paid benefits. If, for any reason, a person is reclassified from a temporary employee to a different category that is eligible for benefits, that employee will not be retroactively eligible for benefits. Instead, benefits eligibility will begin prospectively on the first day of the month following re-classification rather than the re-classification date. In addition to the preceding, employees are also categorized as "exempt" or "non-exempt."
- *Non-Exempt Employees* – Are entitled to overtime pay as required by applicable federal and state law. All overtime must be approved, in advance by the employee's supervisor. Unauthorized overtime is not permitted and may result in disciplinary action, up to and including termination of employment. Only hours actually worked count toward overtime.
- *Exempt Employees* – Pursuant to applicable federal and state laws, exempt employees are not entitled to overtime pay.

BACKGROUND AND REFERENCE CHECKS

MKS Construction, LLC maintains the right to perform a pre-employment background checks on all applicants who accept an offer of employment. Background checks may also be required if the job site the employee is assigned to requires one to be completed. Background checks may include verification of any information on the applicant's resume or application form.

All offers of employment are conditioned on receipt of a background check report that is acceptable to MKS Construction, LLC. All background checks are conducted in conformity with the Federal Fair Credit Reporting Act, the Americans with Disabilities Act, and state and federal privacy and anti-discrimination laws. Reports are kept confidential and are only viewed by individuals involved in the hiring process.

If information obtained in a background check would lead MKS Construction, LLC to deny employment, a copy of the report will be provided to the applicant, and the applicant will have the opportunity to dispute the report's accuracy. Background checks may include a criminal record check, although a criminal conviction does not automatically bar an applicant from employment.

In addition to a background check, additional checks such as a driving record or credit report may be made on applicants for particular job categories if appropriate and job related.

MKS Construction, LLC also reserves the right to conduct a background check for current employees to determine eligibility for promotion or reassignment in the same manner as described above.

DISCIPLINE

The Company believes in and practices fair employee relations policies. When people work together, guidelines are necessary to establish basic standards and to assist in creating a good work environment. Our organization wants to help all employees perform their job well; yet that responsibility lies primarily with each individual employee.

Circumstances vary; therefore, the standards listed below are not all inclusive. Situations may arise when poor conduct does not clearly fall within the standards as outlined. In those cases, decisions will be made that reasonably and equitably balance the interests of our employees, customers, and business.

Violations of the following standards will normally result in the initiation of corrective action, including, as may be appropriate at the Company's discretion, oral warning; counseling session; written warning; suspension or termination.

1. Failing to attend required meetings or training as assigned.
2. Stopping work before time specified.
3. Loitering or loafing during working time.
4. Making and receiving excessive non-emergency personal telephone calls, visits, etc. during working time.
5. Failing to follow supervisor's directions or established procedures.
6. Presenting an inappropriate appearance or not following expected grooming policies.

7. Using profane and/or vulgar language within the hearing of customers, coworkers, or others, or when using telephone or email.
8. Being rude or discourteous to customers, coworkers, or others.
9. Neglecting job duties.
10. Unexcused absence from work.
11. Failing to be at work on time at the start of the shift.
12. Failing to report absence from work in accordance with established policy.
13. Posting or removing workplace signs or notices without proper authorization.
14. Neglecting, abusing, or wasting equipment or supplies.
15. Using the Company's equipment or supplies for personal matters without authorization.
16. Violating the Company's policies on solicitation or distribution.
17. Abusing break or lunch period privileges.
18. Smoking in prohibited areas.
19. Falsifying records, including personal timecards and information on employment application.
20. Creating or contributing to hazardous or unsanitary conditions for customers, coworkers, or others.
21. Failing to follow safety policies, procedures, and precautions regarding hazardous substances and practices.
22. Any other action or conduct that is not in the best interests of the Company.
23. Intentionally being inconsiderate, rude, or discourteous to customers, coworkers, or others.
24. Reporting to work under the influence of alcohol or any illegal substance; possessing/drinking alcohol or possessing/using illegal substances on the Company's property; or being on the Company's property at any time while under the influence of alcohol or illegal substances.
25. Refusing to accept a work assignment.
26. Neglecting or abusing, verbally or physically, any customer, coworker, or others.
27. Violating the Company's Harassment policy.
28. Instigating or participating in any of the following acts: vandalism, theft, disorderly conduct, assault, verbal or physical fighting, bribery, gambling, or other similar activities detrimental to the welfare or reputation of the Company.
29. Making or deliberately using falsified records, documents, requisitions, expense vouchers, timecards, etc.
30. Sleeping while on duty.
31. Failing to report absence (no call, no show).
32. Intentional disregard for a customer or coworker's safety or to intentionally bringing harm to a customer or coworker.

Copies of all corrective action will be kept in the employee's personnel file in the office.

EMPLOYEE PERSONNEL FILES

Employee files are maintained by the Human Resource department and are considered confidential. Managers and supervisors may only have access to personnel file information on a need-to-know basis.

A manager or supervisor considering the hire of a former employee or transfer of a current employee may be granted access to the file, or limited parts of it, in accordance with anti-discrimination laws.

Personnel file access by current employees and former employees upon request will generally be permitted within three days of the request unless otherwise required under state law. Personnel files are to be reviewed in the Human Resource department. Personnel files may not be taken outside the department.

Personnel files may be used to confirm an employee's information when requested when permitted, such as Verification of Employment from the state.

Representatives of government or law enforcement agencies, in the course of their duties, may be allowed access to file information.

SEPARATION OF EMPLOYMENT

Separation of employment may occur for several different reasons:

- *Resignation* – We hope your employment with us is a mutually rewarding experience, the Company understands there are varying circumstances that may cause an employee to voluntarily resign. Employees are encouraged to provide a minimum of two weeks' notice, preferably in writing, to assist in a smooth transition for everyone. MKS Construction, LLC reserves the right to provide an employee with two weeks' pay in lieu of notice when business needs and situations warrant such action. Any less than two weeks' notice may result in ineligibility for rehire.

- *Retirement* – Those who wish to retire need to notify their direct supervisor and Human Resources to complete a new application and proceed with the interview process based on their eligibility for rehire.
- *Job Abandonment* – Employees failing to report to work or failing to contact their direct supervisor for three scheduled workdays shall be considered to have abandoned their position without notice. This will be effective at the end of their normally scheduled shift on the third day. The supervisor will notify Human Resources and initiate termination paperwork. Employees that are identified as abandoning their job are ineligible to receive accrued benefits and may be ineligible for rehire.
- *Termination* – Employees of MKS Construction, LLC are employed on an at-will basis and the Company retains the right to terminate an employee at any time. Depending on the situation, the employee may or may not be eligible for rehire.

RETURN OF COMPANY PROPERTY

Any separating employee must return all company property prior to or at the time of separation. This includes, but is not limited to uniforms, keys, badges, cell phones, and computers. Failure to return items may result in deduction from final paycheck/escalation to local authorities for assumed stolen property.

Accrued and unused vacation leave will be void and not paid out upon separation.

Health insurance terminates on the last day of the month of employment unless an employee requests immediate termination benefits. Information for Consolidated Omnibus Budget Reconciliation (COBRA) continued health coverage will be provided. Employees will be required to pay their share of the dependent health and dental premiums through the end of the month.

REHIRE

Former employees of MKS Construction, LLC identified as eligible for rehire must still submit an application and meet all minimum requirements and qualifications of the position to which they have chosen to apply.

CONFIDENTIALITY

Our company has an excellent reputation for conducting its business activities with honesty, fairness, and in accordance with the highest ethical standards. As an employee, you enjoy the benefits of that reputation and are obligated to uphold it.

Information is an asset of the Company and, as such, steps will be taken to protect it from unauthorized access, modification, reproduction, destruction, or disclosure (written, verbal or electronic transmittal), whether accidental or intentional. This includes, but is not limited to, any information processed by hand, personal computer, laptop, or other electronic devices utilized in the Company's operations, and maintained in hard copy files, storage or electronic devices and services.

Protecting our company's and customer information is the responsibility of every employee and we all share a common interest in making sure it is not improperly or accidentally disclosed. Do not discuss the Company's confidential business or information or any customer information with any unauthorized persons or any person outside of the Company and make every effort to keep such information secure and confidential.

As trusted employees of our company, you acknowledge that customer and client lists, customer information, documents, business data, and proprietary information are valuable assets of our Company. You agree that you will not, at any time, for any reason, disclose or use any of our confidential information, trade secrets, customer lists, customer information, etc. unless specifically authorized to do so, and you further agree not to discuss or disclose such information to anyone outside of our Company. Violations of this policy will result in severe disciplinary action and/or legal action. This confidentiality requirement applies to all current employees as well as to all employees for a two (2) year period following the termination of their employment.

In the case of trade secrets, former employees may not misappropriate, use, or divulge the trade secrets indefinitely following their termination of employment.

CONFLICTS OF INTEREST

A Company's reputation for integrity is its most valuable asset and is directly impacted by the conduct of its officers and other employees. Therefore, employees must never use their positions with the Company, or any of its clients, for private gain, to advance personal interests or to obtain favors or benefits for themselves, members of their families or any other individuals, corporations, or business entities.

MKS Construction, LLC adheres to the highest legal and ethical standards applicable in our business. The Company's business is conducted in the strict observance of both the letter and spirit of all applicable laws and the integrity of each employee is of utmost importance.

Employees of the Company shall conduct their personal affairs in such a fashion that their duties and responsibilities to the Company are not jeopardized and/or legal questions do not arise with respect to their association or work with MKS Construction, LLC.

ATTENDANCE POLICY

Earth Works expects all employees to conduct themselves in a professional manner during their employment. This includes practicing good attendance habits. All employees should regard coming to work on time, working their shift as scheduled, and leaving at the scheduled time as essential functions of their jobs, i.e., good attendance habits form an integral part of every employee's job description.

Among other things, "good attendance habits" mean the following:

- appearing for work no sooner than 15 minutes prior to the start of the shift and no later than the start of the shift;
- being at your designated jobsite ready for work by the start of the shift;
- remaining at your designated jobsite unless the needs of the job require being elsewhere, except during authorized breaks (including restroom breaks);
- taking only the time normally allowed for breaks;
- remaining at work during your entire shift, unless excused by a supervisor;
- not leaving work until the scheduled end of your shift, unless excused by a supervisor;

- leaving promptly at the end of your shift, unless you have been given advance permission from your supervisor to work past that point; and
- calling in and personally notifying your supervisor or another member of management if you are going to be either absent or tardy unless a verifiable emergency makes it impossible for you to do so (see "Notice of Absence or Tardiness" below for details).

Under some circumstances, absence or tardiness on your part may be excused, but only if you give proper notice of such a problem before the start of your shift. Earth Works needs advance notice of attendance problems so that other arrangements can be made to cover your absence, if necessary. "Proper notice" means that you called the designated numbers at least 1 hour prior to the start of your shift and personally notify your supervisor or another member of management about the problem, unless a verifiable emergency makes it impossible for you to do so.

It is not sufficient to call in and leave a message with a coworker or someone else who is not in a supervisory position. Office staff have been instructed to route all such calls to supervisory personnel. All supervisors and managers have been advised to make themselves available to take calls such as these, so there should be no reason to worry that you will not be able to reach an appropriate person to advise of your attendance problem.

If you fail to give proper notice of attendance problems in advance as explained in this policy, you may be subject to disciplinary action, up to and including discharge.

Your reporting supervisor and management personal's contact information has been filled out below.

Significant notice must be submitted first by calling the numbers listed below, and if the call is not answered, the employee is required to leave a voicemail. These numbers are cell numbers that can receive text messaging. In the event you are unable to reach a supervisor over the phone, a text must be sent to document the reason for your absence.

A supervisor will follow up with you in this case to discuss the situation further and if the absence is excused or unexcused based upon the reason provided. In accordance with the Earth Works Attendance Policy, it is at the discretion of the company to determine if absences are approved or not.

If you are absent without notice for two consecutive days, your absence will be considered job abandonment, and Earth Works will process your work separation as a voluntary resignation on your part.

If you are absent on numerous occasions without following the proper steps as stated in the Earth Works Attendance Policy, your supervisor will document and issue disciplinary action for each occurrence. Failure to improve your performance and show up to your scheduled shifts can result in additional disciplinary action, up to and possibly including discharge.

Upon receiving your final check, a Work Separation form will need to be signed stating your reason for leaving, last day of work, and that you received your final check. This can be signed in person, unless approved by a supervisor.

SUPERVISOR PHONE NUMBERS		
Jeff Russell	Dirt	806-549-9366
CJ Bollinger	Concrete	806-789-2512
Kari Bryant (If you cannot reach a Supervisor)	Office	806-632-0787 (Cell) 806-722-0262 (Office)

SEVERE WEATHER

Severe weather is to be expected during certain months of the year. Although driving may at times be difficult, when caution is exercised, the roads are normally passable. Except in cases of severe storms, we are all expected to work our regular hours. Time taken off due to poor weather conditions while the business remains open may result in disciplinary action. Employees are expected to proactively prepare for weather conditions by giving adequate time to drive safely to work and arrive on time. If concerns or questions arise, contact your supervisor.

ELECTRONIC COMMUNICATION AND INTERNET USE

This policy provides the guidelines established for appropriate use of the Internet, company-provided phones, and email to ensure ethical and professional standards.

Internet, company-provided equipment (e.g., cell phone, laptops, computers, tablets) and services may not be used for transmitting, retrieving, or storing any communications of a defamatory, discriminatory, harassing, or pornographic nature.

Unacceptable uses of company-provided equipment:

- The following actions are forbidden:
  - Using disparaging, abusive, profane, or offensive language;
  - Creating, viewing, or displaying materials that might adversely or negatively reflect upon MKS Construction, LLC or be contrary to MKS Construction, LLC's best interests;
  - Engaging in any illegal activities, including piracy, cracking, extortion, blackmail, copyright infringement;
  - And unauthorized access of any computers and company-provided equipment such as cell phones and laptops.
- Employees may not copy, retrieve, modify or forward copyrighted materials, except with permission or as a single copy to reference only.
- Employees must not use the system in a way that disrupts its use by others. Employees must not send or receive large files that could be saved/transferred via thumb drives. Employees are prohibited from sending or receiving files that are not related to work.
- Employees should not open suspicious e-mails, pop-ups, or downloads. Contact IT with any questions or concerns to reduce the release of viruses or to contain viruses immediately.
- Internal and external emails are considered business records and may be subject to discovery in the event of litigation. Be aware of this possibility when sending email within and outside the company.
- Nothing in this policy prohibits employees from exercising their rights to discuss terms and conditions of employment with one another.

Right to Monitor

All company-supplied technology and company-related work records belong to the company and not to the employee. MKS Construction, LLC routinely monitors use of company-supplied technology. Inappropriate or illegal use or communications may be subject to disciplinary action up to and including termination of employment. MKS Construction, LLC will not, however, engage in surveillance of employees who are exercising their legally protected rights.

Social Media – Acceptable Use

The Company recognizes that with the advent and popularity of various Internet-based social media such as Twitter, Facebook, Instagram, Snapchat, blogs and the like, employees may be using such media to communicate in their daily lives. This policy is designed to establish parameters of using social media while employed with our company.

Please observe the following:

- Social media activities are subject to the company's policies regarding protection and confidentiality of company and customer information, and unlawful discrimination or harassment. For example, employees may not disclose private customer information or proprietary company information through social media outlets. Similarly, employees may not unlawfully harass or discriminate against fellow employees, vendors, or customers using social media. Please refer to the company's policies on confidential and proprietary information as well as the policy prohibiting unlawful harassment and discrimination.
- Employees should be mindful not to disclose the confidential information of their co-workers. Nothing in this policy, however, prohibits employees from excising their rights to discuss terms and conditions of employment with one another.
- In addition, employees should take great care in how they represent themselves in a social media forum. Employees should behave in a professional manner and avoid making defamatory, fraudulent, harassing, discriminatory, or other unlawful statements about co-workers, the company, the company's competitors, or the company's customers or vendors, as such activity could lead to discipline up to and including termination of employment as well as personal legal liability.
- When using social media, employees are prohibited from representing the company or representing that they speak on behalf of the company. Employees should not use, unless directed or permitted by the Company, the trademarks, logos, or copyright-protected material of the company or its clients or customers. Employees must also make clear in any online activity that the views and opinions they express about work-related matters are their own, have not been reviewed by the company, and do not necessarily represent the views and opinions of the company. The company prohibits employees from listing their company email address unless the social network site is one created and maintained by the company for company business.
- Employees may not use social media to compete with the company's products or services.

- If you are contacted by a member of the news media in a social media forum and asked to comment about the company, please refer to the request to the company President of the company for handling.
- Employees should expect compliance monitoring. Employees should also expect that any information created, transmitted, downloaded, exchanged, or discussed on any social media may be accessed by the company or any third party at any time without prior notice. Remember, anything posted on the Internet or in a social media forum may be accessible by anybody else.

Nothing in this policy prohibits employees from discussing wages, hours, or other terms and conditions of employment nor is intended to and should not be interpreted as violating an employee's rights under the National Labor Relations Act.

If you have any questions about this policy, please consult the Human Resource Department.

PAYMENT OF WAGES

Our pay period starts on Thursday on a weekly basis. Employees may use direct deposit method of receiving compensation or have a paycheck mailed to an address provided or available for pick up per the pay period schedule. However, there are instances during the year that the direct deposit and some paychecks will not be funded on a Friday due to bank holidays and third-party payroll processor timing schedules.

Please review your paycheck for errors. If you find a mistake, report it to Human Resources immediately. They will assist you in taking the steps necessary to correct the error.

TIME REPORTING

Schedules

Because of the nature of our business, your work schedule may vary depending on your job or may change as the needs of the Company change. Many positions have routine shifts while other positions require routine scheduling changes. In addition, serving daily customer needs require many positions to remain flexible in their schedule. Your supervisor will establish your schedule and make any modifications as needed.

Employee Timekeeping

Unless otherwise notified, each employee is required by federal and state law and by this Company to keep an accurate record of his or her hours worked each day and each week. Typically, nonexempt employees are required to keep a timecard. Your supervisor will advise you how you are to record your time, either on a timecard, handwritten time sheet, or it will be recorded by your supervisor on site.

Your Department Manager must approve the hours recorded on your time record each week. Payment of hourly employees will be to the nearest quarter of an hour. Falsifying one's timecard, or that of another, may be grounds for immediate dismissal.

Your supervisor must approve any changes or corrections to your time record. Under no circumstances may any employee punch another employee's timecard.

MEAL/ REST PERIODS

Employee meal periods are important to both employee health and company productivity. Employees who work a minimum of four consecutive hours will be provided an unpaid lunch break. The meal break will not be included in the total hours worked per day as it is not compensable. Nonexempt employees should be fully relieved of job duties and clocked out while taking their meal break.

Nonexempt employees are permitted a [10 or 15 minute] rest break for every four hours consecutively worked. Employees are not required to clock in or out during this break.

Neither the meal nor the rest break(s) may be used to cover time off, such as early departure, late arrival or accumulated to extend a meal period. These periods may not be used toward an extended break of any type.

OVERTIME PAY (NONEXEMPT EMPLOYEES)

Nonexempt employees who exceed forty (40) hours of work time in a workweek will be paid time and one half. Paid time off (PTO) pay, does not apply toward work time.

The workweek begins at 12:00 a.m. on Thursday morning and ends at 11:59 p.m. on Wednesday night.

Based upon the nature of the business, employees will be required to work extended hours as the Company permits. Overtime hours will be scheduled and approved by the employee’s supervisor.

EMPLOYEE TRAINING AND REIMBURSEMENT

We are interested in having you improve your skills. We may require that you attend training programs in order to further your knowledge of the industry. The Company will cover the usual costs to attend training sessions. Please bring to the attention of your Department Manager or Human Resources, courses you believe would improve your job skills, and we will try to accommodate your requests.

Flat rate or hourly employees who attend Company-required training are paid their regular hourly rate for hours spent in such training, and for any out-of-town travel during regular work hours.

Travel arrangements such as airfare and lodging will be paid for and setup by MKS Construction, LLC prior to travel. If such expenses are paid for by the employee, receipts must be turned into a supervisor to review and for approval on reimbursements. If overnight lodging is required, employees may be eligible for per-diem per day for meals and expenses.

All travel and overnight lodging must be approved by management in advance. Receipts supporting expenses must be turned in for all expense reimbursement requests and must be approved by a manager for reimbursement.

EMPLOYEE PURCHASES

Employees and their immediate relatives are entitled to the following benefits for purchases from our Company. Immediate relatives are defined as spouse, child, brother, sister, parent, or grandparent.

HOLIDAY PAY

MKS Construction, LLC does not offer paid holidays. However, if an employee has PTO time available, they may request to use a PTO day for a holiday the Company is closed for.

VACATION/ PTO

Full-time employees will receive PTO after one consecutive year of employment is fulfilled. One week or forty hours of PTO is paid after one year employed and two weeks or eight hours after two years employed.

PTO cannot be carried over to the following year and will expire if not used by the employee's hire date the coming year. If an employee has accrued two weeks PTO, the employee may pay back up to 40 hours or five PTO days. If an employee pays back PTO time, they agree to receive a check for the days being cashed out but will not have time off of work.

Employees can use PTO for holidays Earth Works is closed for, if requested prior to the pay period end date. In order to use PTO, employees are required to submit a request at least 2-weeks in advance to a supervisor for approval.

Requests cannot overlap with another employee's PTO request and only one employee per crew may take PTO at a time. The first to submit PTO and an employee's tenure will take precedence during any conflicting PTO days. If approved, attendance for those days will be excused and will not count against the employee's attendance report.

1 Week Paid PTO for Full-Time Employees			
Paid Time Off	**Tenure Required**	**PTO Received**	**PTO Expires**
1 Week/ 40 Hours	1 Consecutive Year	On Employee's Hire Date	Following Year's Hire Date

2 Weeks Paid PTO for Full-Time Employees			
Paid Time Off	**Tenure Required**	**PTO Received**	**PTO Expires**
2 Weeks/ 80 Hours	2 Consecutive Year	On Employee's Hire Date	Following Year's Hire Date

PERSONAL DAYS

In addition to PTO time, employees are granted five personal days per year. These personal days are not paid time off but can be used when an employee does not have documentation to provide for an unexpected emergency or cannot come into work.

In order to use a personal day, the employee must submit the request to their supervisor within a reasonable time prior to their start of shift and must be approved.

Unexpected absences with documentation, for instance a doctor's note, or jury summons, will need to be turned into promptly to the employee's supervisor.

Absences with proper documentation validating the reason for the absence will be an excused absence, as long as the request is submitted to the supervisor and approved. Excused absences are approved by the supervisor because the proper steps were taken by the employee for the unexpected absence and will not count against an employee on their attendance report.

If an absence is not approved, it is considered unexcused. The determination if an absence is excused or unexcused is up to the discretion of the employee's supervisor. Unexcused absences will be recorded and count against an employee's attendance report for the bonus payout.

JURY DUTY

MKS Construction, LLC encourages employees to fulfill their civic duties. To that end, employees will be allowed leave to serve on a jury, if summoned. We request that you bring in a copy of your summons notice as soon as you receive it, so that we may keep it on file. If you are called during a particularly busy period, we may ask you to request a postponement. The Company will provide additional documentation in this regard, if necessary, to obtain such postponement.

Jury duty can last from a portion of a single day to several months or more. During this time, you will be considered on a leave of absence and will be entitled to continue to participate in insurance and other benefits as if you were working. While serving on jury duty, you are expected to call in to your supervisor periodically to keep him or her apprised of your status.

BENEFITS

This section describes the benefits provided by MKS Construction, LLC, and information on your eligibility for benefits. Details regarding each benefit plan are subject to change as the renewal rates and plans change each year. Please see your Human Resource Department for copies of the current plans for the benefits offered.

EMPLOYEE BONUS PROGRAM

We are optimistic this bonus program will be an extension of our appreciation for your loyalty and help promote a safe and productive work environment. In an effort to show how much we value our employees; Earth Works has initiated an Employee Bonus Program that will be paid each December following the first full pay period of the month.

This bonus program is a combination of two bonus packages: the Loyalty Package and Safety Package. To receive a bonus, the employee must first be eligible according to the terms listed below.

If eligible, the employee's receivable wages are determined by the overall rating received on the Loyalty and Safety Package's evaluation. These evaluations are based on employee performance over the course of the 12 months prior to December when the bonuses are paid out.

Eligibility

To be eligible for the bonus program, employees must be employed full-time and have worked for Earth Works a minimum of 90 consecutive calendar days. This is determined by the employee's hire date and their tenure as of November 31st prior to the December pay out.

If the employee has stopped employment for any reason, at any time, the most recent rehire date is the effective hire date. If the employee does not meet these requirements, they will be ineligible to qualify for this bonus program.

Loyalty Package

Tenure

The loyalty package is configured by employee tenure and attendance. Tenure is calculated from the employee's hire date up until November 31st prior to the December pay out. The maximum payout is categorized by the length of time accrued as shown below on the chart.

Loyalty Package Tenure Bonus Eligibility Chart	
Consecutive Days of Employment	**Bonus Eligibility Amount**
90 Calendar Days after Hire Date	$50 Loyalty
180 Calendar Days after Hire Date	$100 Loyalty
270 Calendar Days after Hire Date	$150 Loyalty
1 Full Calendar Year after Hire Date	$200 Loyalty
2 Full Calendar Year after Hire Date	$300 Loyalty
3 Full Calendar Year after Hire Date	$450 Loyalty
4 Full Calendar Year after Hire Date	$675 Loyalty
5 Full Calendar Year after Hire Date	$1,000 Loyalty
*6+ Full Calendar Year after Hire Date	$1,500 Loyalty
*Each Consecutive Year Over 6 Years of Employment Will Be Paid at the 6 Year Bonus Amount	

Paid Time Off

Full-time employees will receive PTO after one consecutive year of employment is fulfilled. One week or forty hours of PTO is paid after one year employed and two weeks or eight hours after two years employed.

PTO cannot be carried over to the following year and will expire if not used by the employee's hire date the coming year. If an employee has accrued two weeks PTO, the employee may pay back up to 40 hours or five PTO days. If an employee pays back PTO time, they agree to receive a check for the days being cashed out but will not have time off of work.

Employees can use PTO for holidays Earth Works is closed for, if requested prior to the pay period end date. In order to use PTO, employees are required to submit a request at least 2-weeks in advance to a supervisor for approval.

Requests cannot overlap with another employee's PTO request and only one employee per crew may take PTO at a time. The first to submit PTO and an employee's tenure will take precedence during any conflicting PTO days. If approved, attendance for those days will be excused and will not count against the employee's attendance report.

1 Week Paid PTO for Full-Time Employees			
Paid Time Off	**Tenure Required**	**PTO Received**	**PTO Expires**
1 Week/ 40 Hours	1 Consecutive Year	On Employee's Hire Date	Following Year's Hire Date

2 Weeks Paid PTO for Full-Time Employees			
Paid Time Off	**Tenure Required**	**PTO Received**	**PTO Expires**
2 Weeks/ 80 Hours	2 Consecutive Year	On Employee's Hire Date	Following Year's Hire Date

Personal Days

In addition to PTO time, employees are granted five personal days per year. These personal days are not paid time off but can be used when an employee does not have documentation to provide for an unexpected emergency or cannot come into work.

In order to use a personal day, the employee must submit the request to their supervisor within a reasonable time prior to their start of shift and must be approved.

Unexpected absences with documentation, for instance a doctor's note, or jury summons, will need to be turned into promptly to the employee's supervisor.

Absences with proper documentation validating the reason for the absence will be an excused absence, as long as the request is submitted to the supervisor and approved. Excused absences are approved by the supervisor because the proper steps were taken by the employee for the unexpected absence and will not count against an employee on their attendance report.

If an absence is not approved, it is considered unexcused. The determination if an absence is excused or unexcused is up to the discretion of the employee's supervisor. Unexcused absences will be recorded and count against an employee's attendance report for the bonus payout.

Attendance

It is important that employees maintain good attendance in order to qualify for the maximum percentage of their bonus.

PTO and personal days are approved absences. Approved absences will have no effect on an employee bonus. However, unexcused absences will decrease the employee's bonus by $25 per occurrence and may result in disciplinary action. Tenure will determine the maximum bonus an employee qualifies for, and attendance determines the deductions withheld.

Safety Package

Tenure

The safety package is configured by employee tenure and performance. Tenure is calculated from the employee's hire date up until November 31st prior to the December pay out. The maximum payout is categorized by the length of time accrued as shown below on the chart.

Safety Package Tenure Bonus Eligibility Chart	
Consecutive Days of Employment	**Bonus Eligibility Amount**
90 Calendar Days after Hire Date	$50 Safety
180 Calendar Days after Hire Date	$100 Safety
270 Calendar Days after Hire Date	$150 Safety
1 Full Calendar Year after Hire Date	$200 Safety
2 Full Calendar Year after Hire Date	$300 Safety
3 Full Calendar Year after Hire Date	$450 Safety
4 Full Calendar Year after Hire Date	$675 Safety
5 Full Calendar Year after Hire Date	$1,000 Safety

*6+ Full Calendar Year after Hire Date	$1,500 Safety
*Each Consecutive Year Over 6 Years of Employment Will Be Paid at the 6 Year Bonus Amount	

Performance

Employees are expected to attend a weekly safety meeting, known as Toolbox Talks, with their supervisors. To receive credit for safety meeting attendance, employees are required to sign the sign-in sheet at each meeting. Failure to sign the sign-in sheet will reflect an absence on the employee's behalf. The first absence will result in a verbal warning. The second absence will be a written warning. Further occurrences will decrease the employee's bonus by $25 per absence and may result in disciplinary action. Employees are required to complete one valid and beneficial S.A.F.E survey per year or a 25% deduction will be withheld from the employee's combined safety and loyalty bonus.

These meetings are enforced so employees receive continuous safety training to ensure a safe work environment. If an employee is involved in a safety related accident, incident, or writeup a deduction will be withheld from the employee's bonus. The amount withheld will be based upon the severity of the incident. Tenure will determine the maximum bonus an employee qualifies for, and performance determines the deductions withheld.

Amounts shown below are based on perfect attendance and safety performance.

Combined Loyalty & Safety Package Maximum Payout			
Consecutive Days of Employment	**Loyalty Max Payout**	**Safety Max Payout**	**Combined Max Payout**
90 Calendar Days after Hire Date	$50 Loyalty	$50 Safety	$100
180 Calendar Days after Hire Date	$100 Loyalty	$100 Safety	$200
270 Calendar Days after Hire Date	$150 Loyalty	$150 Safety	$300
1 Full Calendar Year after Hire Date	$200 Loyalty	$200 Safety	$400
2 Full Calendar Year after Hire Date	$300 Loyalty	$300 Safety	$600
3 Full Calendar Year after Hire Date	$450 Loyalty	$450 Safety	$900
4 Full Calendar Year after Hire Date	$675 Loyalty	$675 Safety	$1,350
5 Full Calendar Year after Hire Date	$1,000 Loyalty	$1,000 Safety	$2,000
*6+ Full Calendar Year after Hire Date	$1,500 Loyalty	$1,500 Safety	$3,000
*Each Consecutive Year Over 6 Years of Employment Will Be Paid at the 6 Year Bonus Amount			

INSURANCE & BENEFIT OPTIONS

MKS Construction, LLC offers numerous insurance and benefit plans to all full-time employees working thirty (30) hours or more on a regular and consistent basis.

Benefits Available:

- Blue Cross Blue Shield Health Insurance
- Dental Insurance
- Vision Insurance
- Life Insurance
- Simple IRA
- 401(K) Plans
- Section 125 Plan
- Personal Short-Term Disability
- Accident Plan
- Hospital Advantage Plan
- Cancer Care
- Critical Care and Recovery Benefits
- GAP Insurance

Further details about these plans may be obtained from the Human Resources Department. This Handbook does not constitute such a legal document.

WORKERS' COMPENSATION BENEFITS

To provide for payment of your medical expenses and for partial salary continuation in the event of a work-related accident or illness, you are covered by workers' compensation insurance, provided by MKS Construction, LLC and based on state regulations. The amount of benefits payable, as well as the duration of payments, depends upon the nature of your injury or illness. However, all medical expenses incurred in connection with an on-the-job injury or illness and partial salary payments are paid in accordance with applicable state law. If you are injured or become ill on the job, you must immediately report the injury or illness to your manager and the Human Resources Department.

This ensures that the Company can help you obtain appropriate medical treatment. Your failure to follow this procedure may delay your benefits or may even jeopardize your receipt of benefits. Questions regarding workers' compensation insurance should be directed to the Human Resources Department.

Medical Procedures

If you become ill or get hurt while at work, you must notify your manager immediately. Failure to do so may result in a loss of benefits under the state workers' compensation law. MKS Construction, LLC is concerned about the physical well-being of its staff and encourages all employees to have periodic physical examinations.

Check your health plan documents to determine coverage. The Company may also request that a physician examine you whenever conditions make this desirable for your protection or that of the Company. MKS Construction, LLC pays for physical examinations administered at the request of the Company.

Work Injuries and Worker's Compensation Benefits

Workers' compensation benefits are provided to employees who have sustained a work-related injury or illness that has been verified by a doctor and approved through the Workers' Compensation procedures and system.

If you are injured at work, insurance regulations require that you be examined and treated by any one of the approved physicians. In the event of an accident, your Human Resource Department will give you a list of the approved physicians to be examined by.

In the Event of a Work-related Injury

Our company has instituted employee safety plans and has stated goals of zero accidents on the job.

If you should have an injury while performing a job function, the following procedures should be followed:

- It is mandatory to tell your supervisor about your injury.

In order to ensure that your medical treatment will be paid by the workers' compensation insurance carrier, you are required to select one from the list of approved health care providers. A copy of approved health care providers will be given to you in the event of an accident from your Human Resources Department.

If you need treatment, you must continue to visit one of these health care providers for ninety (90) days from the date of your first visit. After the 90-day period has expired, if you wish to treat with a non-panel health care provider, you must notify your supervisor within five (5) days after the visit occurs.

Failure to notify your supervisor may relieve the Company of the obligation to pay for any service rendered by a non-panel health care provider.

COBRA

You and your covered spouse and dependent children have the opportunity to continue group health benefits for a period of up to 18-36 months under the provisions of the Consolidated Omnibus Budget Reconciliation Act (COBRA) when group medical coverage for you and your covered dependents would otherwise end.

Coverage would otherwise end due to:

- your death
- your employment terminates, for a reason other than gross misconduct;
- your employment status changes due to a reduction in hours;
- your child ceases to be a "dependent child" under the terms of the medical plan;
- you become divorced or legally separated;
- you become entitled to Medicare.

In the event of divorce, legal separation, or a child's loss of dependent status, you or a family member must notify the plan administrator within thirty (30) days of the occurrence of the event. The plan administrator will notify the individuals eligible for continuation coverage of their right to elect COBRA continuation coverage.

Additional information can be given to you at the time of a COBRA qualifying event through your Human Resources Department.

DRUG-FREE WORKPLACE

Our Company cannot tolerate the use of illegal drugs, including any controlled substances. We have a responsibility to our customers and all employees to help ensure the safest environment possible. Therefore, we have established the following policy:

All employees are prohibited from manufacturing, distributing, dispensing, possessing, selling, soliciting, or using illegal drugs, any controlled substances, alcoholic beverages, or prescribed drugs for which the employee has no valid prescription on Company property or while engaged in Company business.

Employees are prohibited from the off premises use of alcohol and possession, use, or sale of illegal drugs when such activities adversely affect job performance, job safety, or the Company's reputation in the community.

Any employee violating this policy is subject to discipline, up to and including immediate termination.
Employees who are taking a doctor prescribed medication should talk to their doctor to make certain that the medication does not in any way affect their ability to work or to work safely. In those situations where taking a prescribed medication may impair an employee's ability to work or work safely, a doctor's note identifying the medication's possible effects must be provided to your supervisor.

The Company may temporarily change an employee's work assignment during the period he or she is taking a prescribed medication.

Any employee convicted of violating a criminal drug statute, including pleas of guilty and nolo contendere (no contest), must inform Human Resources of such a conviction within five (5) days of its occurrence. Failure to inform Human Resources subjects the employee to immediate termination.

Alcohol and drug abuse may be part of an underlying illness. It is best to seek help for a drug or alcohol problem before it manifests itself in the workplace. If you believe you have a problem, you should speak with any management team member with whom you feel comfortable. Any information about alcohol and drug abuse problems will be treated confidentially.

DRUG, ALCOHOL AND FIREARM POLICY

It is the employee's responsibility to be familiar and comply with the Drug, Alcohol and Firearm Policy specific to the individual's respective assignment.

This policy is the minimum standard for all employees, contractors and vendors working for MKS Construction, LLC.

Work-related consumption of alcohol or illegal drugs is prohibited! Therefore, the use, possession, concealment, sale, transportation, promotion, purchase, distribution, or testing positive for alcohol or drugs while working on Company premises, or in Company or hired vehicles, is prohibited, and subjects the employee in violation to discharge.

As a condition of your employment, each employee has the responsibility to be knowledgeable of the Drug, Alcohol and Firearm Policy and to fully comply with the provisions of the plan. The Company may require an employee to take a test to determine the presence of drugs or alcohol. An employee's refusal to submit to such a test is considered a presumption that the employee would have tested positive.

An employee indicted for a criminal drug or alcohol offense must notify the Company of that fact within five days of the incident. A conviction from the court must be reported immediately and will result in disciplinary action up to and including discharge. Failure to report incidents will result in similar action.

Employees taking prescription medications or over-the-counter medications will inform their supervisor of this fact and of any side effects or warnings associated with taking the medication(s). These side effects may result in the employee being relieved of their duties until they have completed taking the medication.

Prescriptions must be in the name of the employee possessing the medication. Otherwise, this will result in disciplinary action up to and including discharge. Prescriptions are not to be shared at the workplace.

Personnel found possessing any firearms, weapons, ammunition, drugs, or alcohol on company property will be subject to being removed from the job site and face disciplinary action up and including discharge.

Personnel emitting a strong odor of alcohol will be assumed to be intoxicated, dismissed immediately and will have provided MKS grounds for breath and other testing.

The Company may conduct searches and inspections for unauthorized items for any reason at any time.

WORKPLACE BULLYING

MKS Construction, LLC defines bullying as "repeated inappropriate behavior, either direct or indirect, whether verbal, physical or otherwise, conducted by one or more persons against another or others, at the place of work and/or in the course of employment." Such behavior violates the company Code of Ethics, which clearly states that all employees will be treated with dignity and respect.

The purpose of this policy is to communicate to all employees, including supervisors, managers, and executives, that the company will not tolerate bullying behavior. Employees found in violation of this policy will be disciplined up to and including termination.

Bullying may be intentional or unintentional. However, it must be noted that where an allegation of bullying is made, the intention of the alleged bully is irrelevant and will not be given consideration when meting out discipline. As in sexual harassment, it is the effect of the behavior upon the individual that is important.

MKS Construction, LLC considers the following types of behavior examples of bullying:

- *Verbal bullying* – Slandering, ridiculing, or maligning a person or his/her family; persistent name calling that is hurtful, insulting or humiliating; using a person as the butt of jokes; abusive and offensive remarks.
- *Physical bullying* – Pushing, shoving, kicking, poking, tripping, assault, or threat of physical assault; damage to a person's work area or property.
- *Gesture bullying* – Nonverbal threatening gestures or glances that convey threatening messages.
- *Exclusion* – Socially or physically excluding or disregarding a person in work-related activities.

VIOLENCE IN THE WORKPLACE

It is the policy of our Company to provide all employees a safe, violence-free workplace. All employees, customers, vendors, and business associates should be treated with courtesy and respect at all times. Employees are expected to refrain from fighting, "horseplay" or other conduct that may be dangerous to others. Conduct that threatens, intimidates, or coerces another employee, customer, vendor, or business associate will not be tolerated. Customer, vendor, or business associate behavior that threatens intimidates or coerces employees will not be tolerated. Resources may not be used to threaten, stalk, or harass anyone at or outside the workplace. We treat threats coming from an abusive personal relationship the same as other forms of violence.

Indirect or direct threats of violence, incidents of actual violence and suspicious individuals or activities should be reported as soon as possible to a supervisor, security personnel, human resources (HR), or any member of senior management. When reporting a threat or incident of violence, the employee should be as specific and detailed as possible. Employees should not place themselves in peril, nor should they attempt to intercede during an incident.

Employees should promptly inform the HR department of any protective or restraining order that they have obtained that lists the workplace as a protected area. Employees are encouraged to report safety concerns with regard to intimate partner violence. We will not retaliate against employees making good-faith reports. We are committed to supporting victims of intimate partner violence by providing referrals to the company's employee assistance program and community resources and providing time off for reasons related to intimate partner violence.

We will promptly and thoroughly investigate all reports of threats of violence or incidents of actual violence and of suspicious individuals or activities. The identity of the individual making a report will be protected as much as possible. We will not retaliate against employees making good-faith reports of violence, threats or suspicious individuals or activities.

Anyone found to be responsible for threats of or actual violence or other conduct that is in violation of these guidelines will be subject to prompt disciplinary action up to and including termination of employment.

CELL PHONE POLICY

This policy outlines the use of personal cell phones at work, the personal use of business cell phones, and the safe use of cell phones by employees while driving.

While at work, we are confident our employees will exercise the same discretion in using personal cell phones as is expected for the use of company phones. Excessive personal calls during the workday, including texting, regardless of the phone used, can interfere with employee productivity and be distracting to others. Please limit personal calls to a minimum during work time. Flexibility will be provided in circumstances demanding immediate attention.

Safety Issues for Cell Phone Use

Employees may not operate a motor vehicle while using a cell phone. An operator of a motor vehicle who holds a cell telephone to his or her ear or views a cell phone while such vehicle is in motion is presumed to be using the phone for texting, calling, or related activity. This does not include holding a cell phone to activate, deactivate, or initiate a function. If employees need to conduct business on a cell phone while driving, they must use a hands-free device or stop at a safe place.

GOOD HOUSEKEEPING

Good work habits and a neat place to work are essential for job safety and efficiency. You are expected to keep your place of work clean and organized at all times. Report anything that needs repair or replacement to your supervisor or Department Manager.

SMOKE-FREE WORKPLACE

We have designated all indoor areas as smoke-free; therefore, smoking is allowed only in designated outside areas of the Company.

SECURITY AND WORKPLACE INSPECTIONS

Offices, desks, and other storage areas are provided for the convenience of employees but remain the sole property of the Company. Accordingly, they, as well as any articles found within them, can be inspected by any representative of the Company at any time, either with or without prior notice. The Company is not liable for any personal belongings brought into the workplace by employees or visitors.

The Company likewise wishes to discourage theft or unauthorized possession of the property of employees, the Company, visitors, and customers. To facilitate enforcement of this policy, the Company or its representative may question, inspect, and/or search persons entering and/or leaving the premises and any packages, parcels, or other belongings, including purses, handbags, briefcases, backpacks, bags, lunch boxes, or any other possessions or articles carried to and from the Company's property. An employee who wishes to avoid inspection or search of any articles or materials should not bring such items onto or take such items off of the Company's premises.

A request to an employee to permit a search or inspection or questioning an employee about items brought onto or taken off of the Company's premises does not imply that the employee has engaged in misconduct or other inappropriate behavior.

Employees who refuse to cooperate with this policy, as well as employees who are believed to be in possession of improper items, may be subject to corrective action, up to and including termination.

PARKING LOT SAFETY

Employees should use only the designated parking spaces. Please do not park in unauthorized spaces. Please remember to be considerate of your neighbors.

The speed limit while on the Company's property is five (5) miles per hour. Employees driving above this limit will be subject to immediate termination. We cannot afford to have an employee or customer injured due to unsafe actions or careless driving by one of our employees.

MKS Construction, LLC is not responsible for loss, damage or theft of your vehicle.

PERSONAL PROPERTY

MKS Construction, LLC is not responsible for loss or damage to personal property. Valuable personal items, such as purses/wallets and all other valuables should not be left in areas where theft might occur.

SAFETY POLICIES AND RULES

MKS Construction, LLC is committed to protecting people and the natural environment in all areas where it conducts business. Implementation of this policy is a management value and is the responsibility of every employee.

SAFETY POLICIES

It is MKS Construction, LLC's policy to:

- Comply with all health, safety and environmental laws and regulations.
- Cooperate with local, state and federal agencies in their inspection and enforcement activities.
- Incorporate HSE considerations in the company's planning and operational decisions.
- Develop and communicate HSE objectives throughout the company so that all employees understand their individual responsibilities and are appropriately trained in carrying out these objectives.
- Manage operations in a responsible manner and respond effectively to avoid and/or mitigate adverse HSE impacts associated with operations.
- In the event of a safety or environmental incident, report information to governmental authorities concerning the situation so as to facilitate a prompt and appropriate response to potential public inquiries. Participate in the formulation of prudent and responsible HSE laws and regulations that impact operations.
- Foster constructive working relationships with health, safety and environmental organizations and agencies.
- Commit the resources needed to implement our HSE policy.

SAFETY RULES

It is MKS Construction, LLC's rules to:

- MKS Construction, LLC will enforce compliance of HSE policies and practices.
- Report all injuries, vehicle collisions, spills/environmental releases, near misses, fires, unsafe conditions and unsafe work practices to management.
- Hold a pre-job safety meeting to review procedures, equipment locations and emergency plans. Ensure all required PPE and safety and emergency equipment is readily accessible for the project.
- Seat belts are required for all occupants during the operation of any vehicle used for Company business. It is the driver's responsibility to require that everyone fastens their seat belt before moving the vehicle.
- Use handrails when ascending or descending stairways.
- Operation of equipment having a "DANGER –DO NOT OPERATE" or similar warning tag is prohibited.
- Under normal operations, all operating machinery and electrical switchgear is required to have all safety guards, switches and alarms in place and functional. Lockout-Tagout controls are required if safeguards are to be bypassed in accordance with the MKS Construction, LLC Isolation Program.
- Finger rings, loose clothing, unsecured long hair (below collar), watches and other loose accessories shall not be worn while operating electrical equipment, while climbing ladders or when within an arm's length of rotating machinery.
- Always use proper tools and equipment for the job. Do not use damaged or incorrect tools to perform the task. Damaged tools are to be replaced, repaired or discarded.
- Erect barricades, flags or barricade tape around areas of hazardous work, holes, floor openings, overhead work zones and exposed energized circuits. Overhead protection may also be utilized when applicable. Excavations must be flagged, fenced or secured when left unattended.
- Fire extinguishers, eyewash stations and self-contained breathing apparatuses should be inspected monthly or as required. Alarm boxes, fire doors, First Aid kits and all other emergency equipment must be well maintained and readily accessible.
- Smoking on Company premises is restricted to designated areas only. Smoking is not permitted in any building or enclosed structure intended for personnel occupancy.
- Do not walk or stand on storage tanks or piping unless they are equipped with properly designed walkways and fall protection barriers. Never jump from one to the other!
- Never stand in the "Line of Fire" when opening potentially pressured equipment such as pig launchers/receivers, bull plugs, valves, presses, etc.
- Non-intrinsically safe electrical equipment such as cell phones, pagers, cameras and laptop computers, etc., are not to be brought into Class I Division II areas (As defined by the National Electric Code) unless cleared by the Hot Work Permitting process.
- Do not use an air hose to blow particles off of clothing, hair or skin.

PERSONAL PROTECTIVE EQUIPMENT (PPO)

The following rules identify required personal protective equipment for ALL personnel including contractors. Loaner equipment may be provided for visitors at the location. The MKS onsite job representative should be consulted in advance to determine need and availability.

Additional information can be found in 29 CFR 1910.132 Subpart I.

General Guidelines:

- MKS Construction, LLC will provide non-prescription safety glasses, hardhats, and hearing protection to MKS employees.
- All personal protective equipment (PPE) must meet applicable standards established by recognized governmental and/or industry groups.
- Personnel handling chemicals or other agents must wear proper eye or face protection, respiratory protection, gloves and aprons. Employees are responsible for the proper use, cleaning and storage of their assigned PPE.
- Rubber gloves, rubber apron and chemical goggles will be worn when handling chemicals or hazardous materials such as acids, caustic soda and soda ash. Adequate training is required prior to handling these materials

Head Protection
(29 FR 1910.135)
The following head protection is required:

- Approved hardhats are to be worn in field operations and other designated areas.
- Newly acquired hardhats shall meet the minimum requirements set forth by ANSI Z89.1 1997 (Type 1 or 2 – Class E Hardhats).
- No modifications or alterations of the shell or support harness are permitted. Hardhats must be worn as designed, specifically bill forward and level. No ball caps, hoods or similar head covering under the suspension will be allowed. Winter linings are approved and should be installed so as not to interfere with the suspension as designed.
- Hardhats will not be painted. Name, title and appropriate safety stickers are allowed.

Eye Protection
(29 FR 1910.133)
The following eye protection is required:

- Safety eyewear must meet or exceed ANSI Z87.1 and be worn during field operations or as designated.
- ANSI approved eyewear is to be worn over non-ANSI approved eyewear or those not having side shields.
- Avoid the use of contact lenses while working with chemicals. If contact lenses are worn, special precautions such as wearing goggles must be taken.
- Dark-tinted glasses specifically designed for cutting will be worn by the welder at all times when using an oxygen-acetylene torch.
- Dark-shaded safety glasses are not an acceptable alternative.
- Welding helmets fitted with #10 filtered lenses will be worn by the welder. The welder's fire-watch or work assistant will wear welders #5 filtered cutting lenses at all times when electric arc welding.
- Splash-proof chemical goggles will be worn when handling hazardous chemicals liquids or powders, or when exposed to chemical fumes. Examples include: cleaning with chemical solutions or solvents, or while handling or mixing chemicals.

Hearing Protection
(29 CFR 1910.95)
The following hearing protection is required:

- Hearing protection must be worn in designated high-noise areas.(85 dBA or higher).
- If the high-noise area is determined to be 115 dBA or higher, dual protection (inserts and muffs) shall be worn.

Hand Protection
(29 CFR 1910.138)
The following hand protection is required:

- Personnel must wear hand protection appropriate for the task when performing work that may cause injury to the hands. An example would be wearing rubber gloves when handling caustic soda, acids, soda ash and lime.
- Electrical lineman's gloves are to be worn when working on energized electrical equipment that exposes the employee to voltages greater than 50 VAC, except during diagnostic testing.
- Gloves will be replaced or tested every six months as required. Wearers of the lineman's gloves are to test for holes or leaks before each use. Defective or damaged gloves must not be used. Any glove found defective or damaged should be destroyed and replaced immediately.

- No rings, jewelry or other personal accessories, including wrist bands, may be worn while working around electrical equipment or rotating machinery such as a drilling rig.

Foot Protection
(29 CFR 1910.136)
The following foot protection is required:
- Protective footwear is required to be worn in field operations.
- Management may dictate the need for special requirements (i.e. defined heel, leather, canvas, etc.).
- The protective footwear must meet or exceed ANSI Z41.1 (compression and impact ratings).
- Foot protection should cover the ankles. This negates the use of steel (hard) toed tennis shoes

Clothing
(29 CFR 1910.132 and MSHA Part 56.15007)
The following clothing is required:
- Clothing will not be torn, baggy or ragged such that it may catch on machinery or create unnecessary exposure to the employee's torso, arms or legs.
- The wearing of tank tops, sleeveless shirts or wearing of overalls with no shirts is prohibited.
- Pants will be full-length and made of sturdy material such as cotton.
- Pants will not be tucked inside of work boots while handling chemicals, mud mixing or welding activities.
- Short pants are prohibited unless authorized by management.

Respiratory Protection
(29 CFR 1910.134)
MKS Construction, LLC has adopted this written Respiratory Protection Policy. Respiratory protection will be provided to all employees based on hazard exposure. Any employee identified as needing respiratory protection for job responsibilities must have an annual fitness test and medical evaluation and/or questionnaire reviewed by a physician.

The following respiratory protection is required:
- Respirators must be regularly cleaned and disinfected after each use and stored in a sanitary container when not in use.
- Dust masks are NOT permitted as respiratory protection. Dust masks are not a suitable replacement for air-purifying, half-face respirators.
- Dual cartridge respirators will be worn whenever spray-painting or by anyone working or exposed to atmospheres contaminated with harmful dusts, mists, smokes, sprays or vapors.
- Self-Contained Breathing Apparatus (SCBA's) will be used for entering areas contaminated with toxic gases or atmospheres that are oxygen deficient.

❖ ***Note: The Confined Space Entry process must be followed prior to entry.***
- Air supplying respirator hoods will be used while sandblasting.
- All personnel wearing a respirator must be clean-shaven in the seal area of the respirator to ensure a proper fit and seal.

SAFETY NOTIFICATION PROCEDURES

After a safety violation has been reported, either by an employee or by others, the Safety Officer or Foreman shall take the following steps:

Safety Notification Form:
- Write in the violating person(s) and/or company name
- Date
- Time the violation was reported or occurred
- Describe the nature of the violation and the exact location of the violation
- Sign the form
- Under comments: state what corrective action was taken.
  - For an employee, note whether this is his/her second, third, or fourth warning, or a cause for dismissal.

All safety violations must be corrected within 24 hours of notification.

In the event a violation cannot be corrected within the 24-hour period, the safety officer or foreman shall:
- Notify Project Manager
- State why the violation cannot be corrected and when the violation will be corrected on the Safety Notification Form

Distribute copies of Safety Notification Form as follows:

- Violating person and/or company
- Safety Officer
- Office

Safety Officer will maintain a safety file.

SAFETY VIOLATION DISCIPLINARY ACTION POLICY

It is our policy to provide a safe and healthy place of employment for all our employees. A vital part of any program is employee participation and commitment to the company's safety program. To ensure compliance with established safety procedures, employee violations will be dealt with in a firm, fair and consistent manner.

The following is the procedure for dealing with repeated infractions:

1. *First Step* – Verbal warning of violations to the employee and a request for corrective or preventative actions. (Record date and time)
2. *Second Step* – Written warning of violations will be given to the employee.
3. *Last Step* – Depending on severity of allegation or potential for injury, possible suspension, or discharge.

Class I Violations:

1. Poor productivity
2. Poor workmanship
3. Tardiness (late for work)
4. Quitting early
5. Performing unauthorized work
6. Absent without notifying employer
7. Abuse of break time
8. Intentional slowdown of work
9. Violation of company policies: EEO, Safety, Tools, Work Rules, Vehicles, Equipment.
10. Violation of client's rules (no smoking, etc.)
11. Neglect or abuse of company tools or equipment
12. Concealment of errors or mistakes

Class II Violations:

1. Theft of company or client property
2. Insubordination, refusal to perform assigned duties.
3. Fighting on the job
4. Sleeping on the job
5. Possession, use of, or being under the influence of alcohol or non- prescription drugs
6. Dangerous work practices or horseplay
7. Possession of weapons or explosives without consent of the company
8. Destruction or defacing of company or client property
9. Falsification of records (timecards, etc.)
10. Harassment of other employees

EMPLOYEE HEALTH AND AWARENESS

FATIGUE

Introduction to Fatigue

Fatigue is a feeling of tiredness or exhaustion that comes from physical or mental exertion; it is a message to the body to rest. It can be aggravated by acute lack of sleep or an accumulated sleep debt. It causes slower reaction and can result in poor decisions, more mistakes, decreased performance, and dangerous lapses from microsleeps and automatic behavior.

Fatigue can be recognized by the following hazardous conditions, effects or behaviors:

- Inability to sleep
- Slower reflexes and reactions
- Microsleeps (up to 60 seconds where the brain goes to sleep and worker blacks out no matter what they are doing)
- Automatic behavior (where the worker does routine tasks but is not having any conscious thoughts)
- Inability to make good decisions or plans

- Inability to solve problems
- Inability to concentrate, including wandering thoughts
- Decreased alertness and watchfulness
- Inability to remember things just done, seen or heard
- Inability to notice the things the worker usually would notice
- More mistakes than usual
- Failure to respond to changes in surrounding area or situation
- Poor logic and judgement, including taking risks a worker would not usually take
- Inability to communicate well
- Inability to handle stress
- Moodiness

General Considerations

Fatigue is a potential hazard to overall health and safety at the work site. Workers who are fatigued can present a hazard to themselves and others.

In general, the following measures should be considered for work and work site conditions to manage fatigue:

- Create a work environment that promotes alertness
- Implement engineering and administrative controls to avoid or greatly reduce exposure
- Ensure sufficient resources of personnel, equipment and support
- Structure hour of work to avoid the hottest or coldest periods of the day
- Adjust time factors to incorporate the additional physical requirements and challenging environmental and physical conditions
- Select personal protective equipment appropriate to the situation and/or condition that exists and limit the duration of tasks that affect performance or that place additional physical demands on the worker

Specific measures to address fatigue include:

- Workers are expected to conduct their affairs off the job in such a manner that they report for work each day in a condition that enables them to do their work safely
- Workers taking prescription drugs that can cause drowsiness or affect work efficiency must inform their work site supervisor
- Work site supervisors will manage schedules and shift work to be efficient, effective, and appealing
- Safe driving and travel should be treated as regular work time in terms of fatigue management and rest breaks, nutrition breaks and physical activity should be considered
- Taxing environments such as outdoors in the cold or heat, being away from home for long periods of time and the need to wear certain personal protective equipment such as respirators or heavy clothing can contribute to fatigue and should be considered by the worker and work site supervisor and managed accordingly

Reporting Fatigue

Fatigue should be reported using the hazard alert/near miss report or incident reporting procedure. Additionally, incident investigation should evaluate the potential of fatigue as being a contributing factor to an incident. To perform work safely workers must not be fatigued and those workers who may refuse to do work.

Work site supervisors must consider fatigue as a possible hazard and if worker fatigue is recognized steps must be taken to ensure the work can be done safely.

WORKING ALONE POLICY

The purpose of this policy is intended to promote employee awareness and facilitate employee safety when they are working alone. MKS Construction, LLC will ensure that there are safety plans in place for those who work alone, along with applying all reasonable measures, for the protection of employees who are performing their duties in areas under conditions where they are required to be on their own.

This policy applies to any employee who is required to perform hazardous work alone on or off the premises and who may require assistance if they are exposed to conditions that result in a work-related injury, health impairment of any kind, or any other adverse condition.

The requirements of complying with Occupational Health and Safety Act, regulation and Code (part 28) the employer must:

- Conduct a hazard assessment to identify existing or potential safety hazards in the workplace associated with working alone;
- Implement safety measures to reduce the risk to workers from the identified hazards;

- Ensure workers have an effective means of communication between the worker and persons capable of responding to the worker's needs in the case of an emergency or the worker is injured or ill; and
- Regularly contact the worker at intervals appropriate to the nature of the hazard associated with the worker's work.

All hazards must be assessed prior to work at hand being started and proper controls must be put in place to minimize potential hazards and to protect the health and safety of the employee.

It is the responsibility of the superintendent to schedule any work to be done to minimize the hazards or eliminate working alone. The employee must consult the superintendent to schedule the work to be done in isolation or after hours so that there is a schedule check in the procedure or that there is a helper on site.

If there is a lack of communication due to poor cell or radio coverage or if the work is deemed to be high risk, there must be a helper present on site.

RETURN TO WORK PROGRAM

MKS Construction, LLC supports the practice of bringing injured employees back to work, as soon as they are medically able, to a position in our organization compatible with any physical restrictions they may have. We believe this practice serves the best interest of our employees and the organization.

The prompt return of injured employees to positions within their medical restrictions will minimize the impact of work-related injuries. Coming back to work early helps employees remain functional as they recover while providing our organization with the valuable use of employees' talents. It also helps control workers' compensation costs.

If you are injured at work, report the injury to your supervisor immediately—no matter how minor the injury. You and your supervisor will then contact a health professional when necessary. Any questions concerning worker's compensation should be directed to Kari Bryant at (806) 722-0262.

Your supervisor and/or claims coordinator will help arrange for medical treatment following an injury.

Current positions may be modified to fit the medical limitations of injured employees by modifying workstations, altering specific tasks, or working reduced hours. If this is not possible, temporary assignments may be preferred.

This return-to-work program is an important part of our organization's commitment to manage work related injuries in a way that's best for our employees and for this organization.

MOTOR VEHICLE SAFETY

All employees who drive customer or Company vehicles must have a valid driver's license at all times. Employees whose licenses are suspended must notify their department manager immediately.

Workers who operate motorized equipment on behalf of the company are responsible for the safe operation of that equipment. Motorized equipment can include forklifts, cranes, backhoes, bulldozers, etc. The company has established the following minimum requirements for the operation of motorized equipment.

GENERAL PRECAUTIONS

- Whenever there is a safety concern, the operator will have the authority to stop and refuse to handle loads or continue operations as safety dictates.
- Only qualified personnel shall operate motorized equipment. The individual training will be specific to the type of equipment and the applicable regulatory agency requirements. Supervisory personnel should exercise extreme caution if asked to operate motorized equipment and be trained as appropriate for the task.
- An operator shall never operate equipment at excessive speed.
- All affected utilities are to be identified and notified using the One-Call system before beginning any excavation work or use of heavy equipment.
- An operator must perform a 360-degree walk-around before operating equipment.
- No equipment shall be operated when any part of that equipment can encounter overhead lines. Personnel must maintain a minimum of 10-ft. clearance from lines. (See Electrical Safety section of this handbook.)
- Before moving tall equipment, personnel should review travel route for low-hanging power lines and other low clearance structures.
- Ground personnel should maintain a safe distance from operating equipment and establish eye contact with the operator before approaching.
- When climbing onto or down from any piece of equipment, the operator must maintain 3 points (e.g., 2 hands and 1 foot) of contact with the equipment or with the equipment and the ground. The operator should not jump from the equipment to the ground.
- Personnel shall not be allowed to ride on or work off any part of the equipment unless specifically designed for personnel.
- Ground personnel shall be notified when the operator's visibility is obstructed in any direction. Spotters should be used to assist the operator in such cases, especially when backing into congested areas or groups.
- No employee shall move or allow construction equipment and/or vehicles to be moved on any access roadway or grade unless that roadway or grade is constructed and maintained to safely accommodate the movement of the equipment and/or vehicles involved.
- All equipment shall be operated in a manner that will not cause injury to the operator or fellow workers. If conditions are present which may injure or harm a worker, –i.e., muddy conditions, lightning, mechanical problems, etc. – equipment operation must be suspended until the problem is resolved.
- Wheels of trucks and rubber-tired heavy equipment must be chocked when parked on inclined grades.
- All powered or motorized equipment shall be left in a zero-energy state during breaks and at the end of the shift. All hydraulic and auxiliary power systems shall be de-energized. Buckets, lifts, forks, blades, etc., shall be lowered to the ground before being left unattended.
- No machinery or equipment shall be stored or left temporarily near a highway grade crossing in such a manner as to interfere with the sight distances of people approaching the crossing.
- Prior to beginning work, contractors must establish a designated equipment storage area that meets company and local authority approval.
- Non-employee passengers will not be allowed in any vehicle unless permission has been given for special circumstances. All special circumstances must be approved by a managing member.

WORK ZONE SAFETY

(23CFR SUBCHAPTER 924 AND 49 CFR SUBCHAPTER 571)

Employees in field operations are sometimes required to set up "work zones" near public roads. Drivers are to position vehicles as far off the road as possible before setting up the work zone.

These work zones shall be set up in accordance with the appropriate local, state, and federal regulations. Refer to the Department of Transportation Federal Highway Administration Manual for Uniform Traffic Control Devices (MUTCD) on procedures for obtaining basic uniformity of traffic control devices. These precautions typically include setting up

cones and warning signs, proper communications systems and flagging signals, reflective worker's vests and strobe lights on vehicles.

VEHICLE SAFETY

Drivers who operate company vehicles, rental vehicles, or their own vehicles on behalf of the company are responsible for the safe operation of that vehicle. Before operating a company vehicle, drivers are required to complete a safe-driving course approved by the HSE Department and become familiar with other vehicle operating policies within the company.

Additionally, these rules are to be followed:

- Drivers must maintain a valid driver's license (for the state where they reside) at all times for the type of vehicle they will be driving. Any changes in status must be reported immediately to their supervisor.
- Drivers must safely operate vehicles in accordance with all applicable laws, including DOT requirements, when applicable.
- Cell phone calls may be received using a hands-free device while operating a motor vehicle if state or local laws permit.
- Employees are prohibited from texting while operating a motor vehicle.
- Vehicles are to be maintained in a safe, operating condition and any unsafe condition should be corrected.
- Vehicles left running while unattended shall be put in park with the parking brake on.
- Drivers of vehicles must require that all occupants wear seat belts before moving the vehicle.
- Drivers must report all vehicle incidents/accidents immediately, no matter how minor.
- The use, possession and distribution of illegal drugs, deadly weapons, or unauthorized explosives while on Company premises, or in Company, rental or personal vehicles on Company business is prohibited. Likewise, the consumption of alcoholic beverages or driving under the influence while operating Company, personal or rental vehicles while on Company business is prohibited.
- Drivers must conduct a 360-degree walk-around when returning to their vehicle to begin and/or continue their driving duties.
- Vehicles will be driven with headlights or daytime running lights on at all times.
- When parking, personnel should "pull through" or back into the space, unless doing so would create a hazard.
- Drivers are to obey all rules and laws, facilitating the flow of traffic and general safety, while driving.
- Barriers should be used to secure loads that may shift within the cab of vehicle.
- Personnel will NOT ride in the back of open-bed pick-up trucks or on truck running boards.
- Non-employee passengers will not be allowed in any vehicle unless permission has been given for special circumstances. All special circumstances must be approved by a managing member.

Overview

As an authorized driver of a company vehicle, you have been given certain privileges. You assume the duty of obeying all motor vehicle laws, maintaining the vehicle properly at all times and, otherwise, following the policies and procedures outlined in the following. These policies also apply to those driving a rental vehicle or their own vehicle on company business.

Vehicle Fleet Purpose

Company vehicles are provided to support business activities and are to be used only by qualified and authorized employees. They are not to be considered a part of an employee's compensation and must not be used as an inducement for employment. In all cases, these vehicles are to be operated in strict compliance with motor vehicle laws of the jurisdiction in which they are driven and with the utmost regard for their care and cost-efficient use.

· Company vehicles may not be used for business activities of other companies.
· Company vehicles may not be driven to Mexico.

Driver Licensing

Company drivers and anyone authorized to drive the company vehicles must have a valid driver's license issued in the state of residence for the class of the vehicle being operated and must be able to drive a vehicle. Obtaining a driver's license is a personal expense.

Driver Qualifications

Driver qualifications are as follows:

- Authorized employee of company.
- Must be at least 18 years of age.
- Have at least one year of experience in the class of vehicle operated.
- Must meet licensing requirements.

- Will not qualify for a company vehicle if, during the last 36 months, the driver had any of the following experiences:
  - Been convicted of a felony.
  - Been convicted of sale, handling or use of drugs.
  - Has automobile insurance canceled, declined or not renewed by a company?
  - Been convicted of an alcohol- or drug-related offense while driving.
  - Had driver's license suspended or revoked.
  - Been convicted of three or more speeding violations or one or more other serious violations.
  - Been involved in three or more chargeable accidents.

Review of Motor Vehicle Record

State Motor Vehicle Records (MVRs) will be used as the source for verifying driver history. MVRs will be obtained and reviewed at least annually on employee. (The insurance company requires that we provide them with the driver's license number and date of birth for anyone who may drive a company vehicle.) Driving privileges may be withdrawn or suspended and/or the company vehicle removed from any authorized driver not meeting the above requirements. In addition, appropriate disciplinary action may be taken, up to and including termination of employment.

Maintenance

Authorized drivers are required to properly maintain their company vehicles at all times. Vehicles should not be operated with any defect that would inhibit safe operation during current and foreseeable weather and lighting conditions. Preventive maintenance such as, but not limited to regular oil changes, lubrication, tire pressure, tire replacement, brake pad & rotor replacement and fluid checks determine to a large extent whether you will have a reliable, safe vehicle to drive and support work activities. You should have preventive maintenance on your vehicle, as required in the owner's manual, performed by a certified dealer.

Employee Use of Other than Company Owned Vehicles-For Business Use

The company does not assume any liability for bodily injuries or property damage the employee may become personally obligated to pay arising out of an incident occurring in connection with operation of other than company owned vehicles. The company does not specify and assumes no responsibility for the coverage employees carry on the vehicles used since this is a matter of individual status and preference. The employee is responsible for providing proof of coverage to the employer on an annual basis.

Traffic Violations

Fines for parking or moving violations, towing storage or impoundment are the personal responsibility of the assigned operator. The company will not condone nor excuse ignorance of any motor vehicle violations that result in court summons being directed to itself as owner of the vehicle.

Each driver is required to report all moving violations to Kristofer Schilling – Fleet Manager within 24 hours. This requirement applies to violations involving the use of any vehicle (company, personal or other) while on company business. Failure to report violations will result in appropriate disciplinary action, including revoking of driver privileges and possible termination of employment.

Please be aware that motor vehicle violations incurred during non-business (personal use) hours will affect your driving status as well and are subject to review.

Cellular/Mobile Phones When Operating a Vehicle

Cellular/mobile phones should be used sparingly while operating a vehicle and only by means of a hands-free device. Using a cell phone while driving leads to an increased risk of having an accident through a lack of attention to driving. Inattention is the #1 cause of vehicle accidents in America. Inattention can also involve adjusting the radio, eating, smoking, daydreaming, talking to passengers, things outside the vehicle, and other distractions.

Rules for Mobile Phones When Operating a Vehicle:

- When possible, allow voice mail to handle your calls and return them at your safe convenience.
- If you need to place or receive a call pull off the road to a safe location.
- Ask a passenger to make or take the call.
- Keep your hands on the wheel and your eyes and mind on the road while driving.

Accidents Involving Company Vehicles

In the event of an accident:

- Call the police on all accidents and obtain a copy of the police report.
- Do not admit negligence or liability.

- Do not attempt settlement, regardless of how minor.
- Get name, address and phone number of injured person and witnesses if possible.
- Exchange vehicle identification, insurance company name and policy numbers with the other driver.
- Take a photograph of the scene of accident if possible.
- Complete the accident report in your vehicle.
- Turn all information over to Kristofer Schilling – Fleet Manager within 24 hours.

Thefts

In the event of the theft of a company vehicle, notify local police and Fleet Manager Kristofer Schilling immediately.

Driver Responsibilities

Each driver is responsible for the actual possession, care and use of the company vehicle in their possession.

Therefore, a driver's responsibilities include, but are not limited to, the following:

- Operation of the vehicle in a manner consistent with reasonable practices that avoid abuse, theft, neglect or disrespect of the equipment.
- Obey all traffic laws.
- The use of seat belts and shoulder harness is mandatory for driver and passengers.

- Adhering to manufacturer's recommendations regarding service, maintenance and inspection. Vehicles should not be operated with any defect that would prevent safe operation.
- Attention to and practice of safe driving techniques and adherence to current safety requirements.
- Restricting the use of vehicles to authorized driver.
- Reporting the occurrence of moving violations.
- Accurate, comprehensive and timely reporting of all accidents by an authorized driver and thefts of a company vehicle to the company Fleet Manager Scott Stockton. Failure to comply with any of these responsibilities will result in disciplinary action, up to and including termination of employment.

Preventable Accidents

A preventable accident is defined as any accident involving a company vehicle – whether being used for company or personal use – or any vehicle while being used on company business that results in property damage and/or personal injury, and in which the driver in question failed to exercise every reasonable precaution to prevent the accident.

Safety Guidelines to Prevent Accidents:

- Do Not Follow too closely
- Do Not Drive too fast for conditions
- Always observe clearances
- Always obey signs
- Do Not Make Improper turns
- Always observe signals from other drivers
- Do Not Fail to reduce speed
- Do Not Park improperly
- Do Not Pass improperly
- Do Not Fail to yield
- Do Not Back up improperly
- Always obey traffic signals or directions
- Do Not Exceed the posted speed limit
- Do Not Drive While Intoxicated (DWI) or Drive Under the Influence (DUI) or similar charges.

Fatigue

Fatigue kills. When you are tired, you must sleep. Identifying when you are tired is extremely important.

Here are some of the ways to recognize when you are tired:

- Frequent yawning
- Not reading all road signs
- Rubbing your eyes
- Trouble keeping your head up
- Rubbing your head
- Can't remember driving the last few miles
- Eyes close or go out of focus

- Missing an exit
- Squirming in your seat
- Drifting out of your lane
- Your speed becomes variable
- Fixed stare
- Tailgating
- Driving slowly in the high-speed lane
- Braking for no apparent reason

If you are tired immediately take the following steps:

- Pull over in a safe parking area and get some sleep.
- If there is no safe place to stop and sleep, find a safe parking spot and walk around for a few minutes. Look at your map to find a safe place to get some sleep.
- Turn off your cruise control.
- Roll down your window and get some fresh air.
- When you are tired, sleep is the only thing that will help.

SAFETY AND EMERGENCY EQUIPMENT FOR COMPANY VEHICLES

The following emergency and safety devices are required as minimum equipment to be carried in Company vehicles and maintained in an operable condition at all times. All equipment will be properly installed and secured. Supervisors may increase such equipment in accordance with driver and equipment exposure, such as tire chains, hydraulic jacks, and flashlights.

Automobiles:

- 1 – First Aid Kit and related supplies
- 1 – 5 lb. ABC Fire Extinguisher

P/U or Trucks:

- 1 – First Aid Kit and related supplies
- 1 – 5 lb. ABC Fire Ext. (Minimum) *Recommend 20 lb. Fire ext. or greater
- 3 – 12" x 12" Red Flags – (Min. size) *
- 3 – Reflective Triangles*

  * Required on certain DOT Commercial Motor Vehicles.

This policy applies to all employees who operate motor vehicles in the course and scope of their employment.

DISTRACTED DRIVING POLICY

Operators of any motor vehicle should be able to hear traffic and be aware of any driving hazards around them. This means that any distractions while driving should be eliminated, including use of cell phones, earbuds, or headphones.

For the safety of all employees, their family and others sharing the road, each driver's attention must be dedicated to driving the vehicle.

Driving Distractions:

The National Highway Traffic Safety Administration estimates that 80 percent of vehicle crashes involve some form of driver inattention within 3 seconds of the event. Your primary responsibility, while operating a vehicle, is driving the vehicle safely. For your safety, and the safety of others, it is our policy that you not engage in activities that cause you to become distracted from this responsibility.

The following policies apply:

1. Cell phone use should be kept to a minimum when driving on company business. If you receive a call while you are driving, always use a hands-free device.
2. If you need to place a call, pull over to a safe location before placing the call. Placing a call while driving a vehicle on company business is strictly forbidden.
3. Typing or reading text messages while driving a vehicle on company business is strictly forbidden.
4. Checking email, checking social networks, using the Internet, using smartphone apps, or reading printed materials while driving on company business is strictly forbidden.
5. GPS navigation devices may be used while driving on company business as long as they are set up in a manner that does not obscure your view. Always select your destination on a GPS navigation device before beginning a trip and do not attempt to enter a new destination into the device while driving.

- Cell phones may be used as navigation devices if the phone is placed in a support device so that the driver does not need to hold or unlock the phone while driving in order to receive directions.

6. Eating while driving a vehicle on company business is strictly forbidden.
7. Activities such as drinking beverages, adjusting radio controls or adjusting climate controls should only be done if traffic conditions permit and when you can do them without taking your attention away from driving.
8. Any accident the driver is involved in while using a wireless communication device will be deemed to have been avoidable and you may be held liable. If you are involved in an accident while operating a vehicle on company business, and you are conducting a call, texting, or accessing and using internet transmissions, you may be subject to corrective actions, up to and including termination.

Remember, your responsibility to yourself and others is getting where you are going safely. Avoid activities that will distract you from this responsibility.

Employees who violate this policy will be subject to disciplinary actions, up to and including employment termination.

FORKLIFT SAFETY

(29 CFR 1910.178 Subpart)

Although forklifts are indispensable tools for moving heavy objects, their operation and proper maintenance require special precautions and training. The use of forklifts is restricted to trained personnel that have been authorized by their supervisor to operate the forklift. All forklift operators must be trained and have a skills evaluation test every three years.

Refresher training is also required whenever one of the following occurs:

- The operator is involved in an incident or a near miss.
- The operator has been observed operating the equipment in an unsafe manner.
- The operator has been determined in an evaluation to need more training.
- There are changes in the workplace that could affect safe operation (i.e., different types of paving, reconfigured storage racks, new layout with narrower aisles or restricted visibility).

Forklift Standards:

- Personnel should complete an inspection checklist before each use. This includes checking for warning and safety devices. Any deficiency must be reported to supervision.
- Seat belts shall be used when operating forklifts.
- To prevent movement, brakes should be set, and the wheels blocked on a trailer or truck that is being loaded or unloaded.
- When the forklift is not in use, the forks must be positioned rack down and tips pointing toward the ground.
- Only loads within the rated capacity of the forklift should be handled.
- Loads should be carried low, with forks just off the ground and tilted slightly back.
- Do not allow any person to stand or walk under elevated forks, whether loaded or empty.
- 55-gallon drums should be moved on pallets, a drum rack, in a basket or with a drum-handling extension. Drums shall not be moved by “sandwiching or spearing” them between forks.
- Do not use a forklift to raise people for overhead work without an approved, load rated platform equipped with forklift-compatible attachments.
- Forklift shall be "shut off" before an operator exits the equipment.

MOTOR VEHICLE RECORD INQUIRY

The Company reserves the right to obtain a copy of your motor vehicle driving record at any time. Your ability to continue to work for us will be considered your authorization and consent for the Company to obtain copies of your driving and other employment and criminal records to meet our business needs.

CERTIFICATION, LICENSING AND OTHER REQUIREMENTS

It is the responsibility of the employee to maintain all necessary qualifications for certification and/or renewal of certification. Any change with any certification status in any state or other certifying authority must be reported immediately to your Department Manager. If, for any reason, an employee required to maintain a professional certification by the Company cannot maintain his/her professional certification, he/she will be in violation of this company policy and disciplinary action, up to and including termination, may be taken by the company.

USE OF COMPANY EQUIPMENT AND PROPERTY

Equipment and other Company property used in performing job duties may be expensive and/or difficult to replace. Moreover, improper, or negligent use of Company equipment, vehicles, and other property may cause accidents,

damage, and harm to people. When using Company property, please exercise care, perform required maintenance, and follow all operating instructions, safety standards, and Company guidelines.

No company property may be removed from the premises without the proper authorization of management.
Please notify the appropriate supervisor if any Company equipment, machines, or tools appear to be damaged, defective, or in need of repair.

RESPONSIBILITY FOR PROPERTY DAMAGES

We have a policy which will objectively establish under what circumstances we believe it is reasonable to hold employees accountable for damage to property belonging to customers or our Company.

We realize that occasionally mistakes may happen, and it is not our intention to require employees to assume responsibility for every unfortunate event. However, when the extent of property damage is so substantial that the damage could only have resulted from gross neglect or intentional conduct, we believe it is reasonable to hold employees individually accountable. In the event of damage to the property of customers or the Company which is not otherwise covered by our property insurance policy, employees will be responsible for paying for parts and repair. The Company will advance the costs of the parts and repair and require repayment from the employee.

The employee may choose to repay the Company in any one of a number of different ways including:

- authorized (in writing) payroll deductions;
- cash, personal check or credit card;
- agreement for periodic payment by personal check

We hope all employees understand that the intent of the policy is not punitive, but to address serious situations on a consistent basis.

Please speak with your department manager if you have any questions.

UNIFORMS AND OTHER PROPERTY

Employees are required to pay for any lost uniforms and must inform their supervisor immediately if uniforms are not returned by the uniform cleaning company.

Upon termination of employment, employees are required to return to the Company all uniforms and property supplied to the employee by the Company. Employees are responsible to reimburse the Company for any lost, damaged or property not returned, and such reimbursement may be deducted from any pay due to employee upon termination, as authorized in writing by the employee.

SAFETY IN A CONFINED SPACE ENTRY

This standard establishes procedures necessary for preparation, entry, and restoration of a confined space to be entered by personnel. Examples of confined spaces may include, but are not limited to tanks, vessels, underground meter boxes and valve boxes. Excavations greater than four feet deep may meet the definition of a confined space if they are to be entered by personnel. These excavations shall be entered in accordance with the Excavating and Trenching Safety Standard. (29 CFR 1910.146 Subpart J)

Definitions:

- *Attendant* – an individual who is stationed outside a confined space which requires a permit. An attendant is required whenever a physical hazard cannot be eliminated or when a hazardous atmosphere cannot be controlled through ventilation. The purpose of an attendant is to monitor and communicate with the entrant in the event of a developing emergency or if evacuation is required.
- *Confined space* – Is large enough and so configured that personnel can bodily enter and perform assigned work. Has limited or restricted means for entry or exit. Is not designed for continuous personnel occupancy.
- *Entrant* – An individual who is authorized by the company to enter a confined space.
- *Entry* – Begins when any part of the entrant's body breaks the plane of the entryway. Opening hydrocarbon vessels/tanks for gauging and inspections without breaking this plane will not require a Confined Space Perm it.
- *Entry Supervisor* – An individual responsible for determining if acceptable entry conditions are present, for authorizing entry, overseeing entry operations and for terminating entry into a permit Required confined space.
- *Permit Required Confined Space* – A space that meets the definition above, but also contains a hazardous atmosphere which cannot be controlled, or a serious physical hazard which cannot be eliminated. An Attendant must be present, and the Attendant, Entry Supervisor and Entrant must complete and sign the Confined Space Entry Permit. A permit-required confined space may be reclassified to a non-permit confined space whenever the hazardous atmosphere can be controlled, or serious physical hazard is eliminated.

The Duration of the Permit is:

- Crew change, end of shift or end of job, whichever occurs first;
- Emergency conditions will cancel the permit.

Preparation for Entry

In preparation for entry, a Confined Space Entry Permit shall be completed according to the following procedure:

1. Hazards are to be eliminated or controlled.
2. Each space must be inspected and evaluated by a qualified individual (Entrant, Attendant or Entry Supervisor) prior to entry and periodically thereafter to verify that conditions remain consistent with the permit. An evaluation will include atmospheric monitoring and a thorough assessment of physical hazards.
3. Signs and/or barricades shall be posted outside confined spaces to notify unauthorized personnel when entry is in progress. If the confined space is to be left unattended, access to the space shall be secured.
4. The confined space or vessel must be properly isolated using blind flanges, line disconnection or double block and bleed isolation, in addition to locking out and tagging. A list of all blind flanges installed, line disconnects, locked isolation valves, opened vents or other energy isolating measures is required.
5. Atmospheric monitoring for oxygen, explosive gases/vapors and toxic gases/vapors shall be performed and recorded on the Confined Entry Space Permit immediately prior to entry; after work breaks or interruptions in the work procedure; and at periodic intervals to ensure the continuing safety of workers in the space. At a minimum, the following tested atmospheric hazards shall be within these acceptable levels: Oxygen = 19.5% – 23.5%

❖ ***Note: Oxygen must be tested for first***

   - Lower Explosive Limit, LEL = < 10%
   - Suspected toxic air contaminants (i.e., Hydrogen Sulfide, Carbon Monoxide, etc.)

6. All practical efforts shall be made to reduce flammable gases or vapors (%LEL) as close to zero as possible in the Confined Space. If tests indicate a hazardous atmosphere, efforts to control the condition are to be made utilizing forced air ventilation. If explosive gases or vapors are present, an explosion-proof blower or air mover is required. If other conditions exist, the space must be purged, steam washed, etc. to sufficiently free the vessel of possible contaminants.
   - Note: Forced air may present a hazard if iron sulfide is present (see Fire Safety).
7. Where flammable or combustible gases or liquids are present, all sources of ignition shall be eliminated or controlled.
8. Lighting equipment must be explosion-proof and have a ground fault circuit interrupter (GFCI).

9. If the confined space atmospheric tests are not within the acceptable limits or the physical hazards cannot be eliminated, the space is classified as a PERMIT-REQUIRED CONFINED SPACE and must have an Attendant and/or Entry Supervisor trained to perform these duties. The Attendant shall be stationed outside the space and remain in direct communication with the worker(s) inside. The Entry Supervisor may serve as the attendant, provided they are trained to do so.

❖ ***Note: Only properly trained personnel can enter a permit-required confined space.***

10. A minimum of two individuals must be present when entering a vessel.
11. Rescue equipment including lifelines, harnesses, air supply systems and hoists must be in use when entering all permit-required confined spaces. A trained rescue team is to be available onsite when personnel are required to enter a permit-required confined space.

Entry

Authorized personnel may make entry after preparation requirements have been met and a Confined Space Entry Permit has been signed, issued, and posted at the space. Authorized personnel designated to enter the space must review the provisions of the permit and sign the permit.

The confined space atmosphere shall be re-tested as often as necessary during entry to ensure a safe work environment.

Restoration

When work is complete and the confined space is ready to be returned to service, the permit shall be used as a checklist for proper restoration of the space.

Additional items to consider include:

- Are all personnel out of the space?
- Are all blinds removed, vents closed, etc., per the list compiled during preparation?
- Are all equipment and tools removed?
- Are all entryways and flanges closed and sealed?
- Have start-up procedures been reviewed?

ELECTRICAL SAFETY

This section contains basic electrical safety practices. (29 CFR 1910.301)

Definitions

- *Qualified Person (OSHA)* – Characterized by the person whose work requires that they become familiar with the hazards, construction, operation, and maintenance of equipment that may involve potential contact with exposed energized parts and be trained to perform the required tasks safely. A Qualified Person shall perform all equipment modifications, repairs and installations involving exposure to energized parts.
- *Unqualified Person (OSHA)* – Persons who operate electrically powered equipment but are not trained to perform any operation or maintenance on or near any exposed energized parts.

Electrical Safety Rules

❖ ***Note: The term "work on" energized equipment includes the testing of energized electrical circuits.***

Electrical Safety Rules employees must follow:

- Only a Qualified Person shall repair, install, trouble shoot or work on electrical circuits. All electrical circuits should be de-energized whenever possible before an employee works on or near the electrical equipment.
- All employees are to be trained in the hazards of working on or near energized electrical equipment.
- All electrical circuits are to be considered energized until the absence of electrical current is verified by a Qualified Person.
- An approved Energy Isolation (LO/TO) program must be utilized to isolate the energy source.
- Work on an energized circuit will only be done as a last resort when LO/TO makes the circuit unsafe or testing and troubleshooting of the circuit requires it to be energized.
- Use suitable protective equipment and tools rated for the appropriate voltage and flash hazard, including, but not limited to lineman's gloves, mats, blankets, and flash suits to provide insulation from energized circuits and arc flash.
- Un-insulated metallic items, such as rings, neck chains, watches, eyewear, etc., are not to be worn while working on or near exposed energized electrical circuits.

- Electrical interlocks must not be rendered inoperative by removal, modification, or destruction. Electrical interlocks may be defeated only temporarily during the performance of a specific task and must be returned to working condition immediately thereafter.
- Blown fuses shall be replaced with equal type and interrupting rating using the appropriate fuse tool and Personal Protective Equipment.
- Fuse pullers will be used for changing electrical fuses.
- Non-conductive ladders must be used when working on or near electrical equipment or conductors. The use of metal ladders and stools is prohibited.
- Defective electrical equipment and extension cords are to be inspected and immediately removed from service if found to be unsafe until repairs or replacement can be performed.
- Portable cord and plug-connected equipment shall be inspected prior to each use and be equipped with a cord, which has ground fault protection or is double insulated.
- Lighting fixtures will be kept in working order. Broken or burned-out bulbs will be replaced promptly. Vapor proof globes and guards will be placed over lights where necessary.
- Extension cord sets are not permanent installations.
- Secure extension cords to prevent tripping hazard.
- GFCIs are to be tested prior to use.
- An assured grounding program shall be established and followed if GFCI devices are not used.
- Safety grounds shall be used when working on electrical circuits and equipment.
- Non-conductive mats will be placed in front of electrical switchboards in Motor Control Centers (MCC) and maintained in clean condition.
- All voltage panels will be clearly labeled "DANGER–HIGH VOLTAGE."
- All equipment will be properly grounded per manufacturer specifications.

Power Lines

- All power lines should be considered energized.
- When power lines are de-energized, they shall have safety grounds attached.
- No part of a crane, boom, mast, gin poles or machinery should be permitted within 10-ft. (3 m) of the power lines rated 50 kV or below. For energized lines rated above 50 kV, the minimum distance between power lines and the boom, mast, crane, or its load must be 10-ft. (3 m) plus one half-inch (1 cm) for each kV over 50 kV.

Energy Isolation (LO/TO)

This standard establishes minimum requirements for controlling energy sources during the service, repair or maintenance of machinery and equipment. These requirements will aid in preventing injury to personnel, damage to property and damage to the environment due to the unexpected energizing, start-up, or release of stored energy. Sources of stored energy include electrical, mechanical (pumping units, mud pumps), hydraulic, pneumatic, compressed natural gas lines, natural gas flow lines and any other source of stored energy. (29 CFR 1910.147 Subpart J)

Procedures

Detailed written lockout/tagout (LO/TO) procedures have been developed and are available at each operating Area. It is the responsibility of Operations personnel to develop and maintain all site specific LO/TO procedures.

❖ ***Note: Supervisors are responsible for performing and documenting the Energy Isolation (LO/TO) program at each site.***

Locks and Tags

- Locks, tags and other LO/TO hardware required by this standard must be available to workers at all times. Contractors must provide their own locks, tags and other hardware when performing LO/TO.
- LO/TO locks and tags must not be used for any purpose other than LO/TO.
- Tags must include the following information:
  - Condition or reason for tagging
  - Date
  - Equipment being tagged
  - Name of person applying tag
  - DANGER–DO NOT OPERATE or similar warning

Preparation and Installation

- The work area and equipment should be surveyed to identify isolation points and the proper methods of energy isolation.
- The machine, equipment or process must be shut down.

- Any stored hazardous energy must be isolated and relieved by closing valves, de-energizing switchgear, opening vents, disconnecting, restraining, or blinding. Reviewing the most current flow or equipment diagram will assist in locating all isolation points. Blinds shall be installed when the release of combustible or toxic liquids, vapors or gases into the work area cannot be controlled.
- The energy source must be locked out through the use of locks, blinds, chaining of valves, double block and bleed systems, disconnecting pipe or by other means that prevent the release of energy.

❖ ***Note: Double block and bleed is a method used on process piping where block valves are closed, locked, tagged and the bleed valve located between the two block valves is locked open to vent to atmosphere. A closed valve with a body bleed does not constitute a double block and bleed.***

- The lockout device should be tagged with a DANGER-DO NOT OPERATE, or other appropriate tag designed to conform to the Company's LO/TO program.

❖ ***Note: Each person doing the work shall install a lock and tag. There must be only one key for a lock or set of locks, and that one key will be held by the locking personnel until completion. The "crew lockout" method is acceptable only where it is defined in a written document and approved by HSE manager.***

- The area must be cleared of personnel and tools before attempting to relieve any stored energy remaining in the equipment prior to beginning the work.
- The equipment should be energized (by starting and stopping before beginning the work). Start/jog switches should be verified they will activate equipment prior to being de-energized. Restoration and Removal
- Only the person(s) originally attaching the lock and tag is authorized to remove the lock and tag. If this person is unavailable, the supervisor or his/her designee, after complete inspection of the affected area, may assume responsibility for removal of the lock and tag and notification of all parties.
- Only qualified personnel are allowed to start up machinery or equipment after it has been determined that no personnel are exposed to any hazards and all safety checks have been completed.

❖ ***Note: In the event that shift, or personnel changes occur during maintenance or repair activities, the designated MKS Construction, LLC site supervisor must take necessary steps to maintain the continuity of the LO/TO protection. This shall ensure the transfer of lockout/tagout devices between affected employees is correctly accomplished.***

FUEL SUPPLY AND TRANSFER SAFETY

Fuel Supply and Transfer
(29 CFR 1910.178 Subpart N)
Safety Rules for Fuel Supply and Transfer Equipment:

- All bulk fuel supply trucks will be fitted with a bonding/grounding strap between the truck and the fuel storage tank. The truck will be chocked and grounded prior to fuel transfer. A catch bucket will be placed under the transfer pump and hose connections.
- All fuel supply equipment, including hoses, fittings, and valves, will be inspected prior to transfer. Only matching fittings with good rubber gaskets will be used. Tank vent plugs will be clear.
- Fuel truck drivers will comply with all PPE standards to include wearing of hardhat, safety glasses, shirts, long pants, and foot protection.
- A safety observer will be positioned near fuel transfer operations with a fully charged fire extinguisher for emergency response until the fuel transfer is complete. A safety observer will not leave the fuel transfer until the transfer is completed, secured, or relieved by a qualified replacement.
- Tank readings will be taken regularly during transfer to prevent overflowing the fuel storage tank.
- Upon completion of fuel transfer, the hose will be drained in a bucket to prevent spillage.
- Any overflows or spills will be cleaned up promptly to eliminate slip hazard and minimize environmental damage.
- Fuel transfer operations will be stopped upon observing a leak. Transfer operations will not continue until the leak is repaired or eliminated.
- Gasoline powered transfer pumps will not be used to transfer fuel from truck tanks to rig storage tanks or into truck tanks.
- Explosion-proof electrical pumps may be used to transfer fuel or other flammable products.
- Fuel truck drivers will remain with their truck during fuel transfer operations.
- All smoking (including in designated smoking areas within 150 feet of fuel transfer area) will be temporarily suspended during fuel transfer operations.
- Fuel tank levels will be determined using sight-glass tubes and/or flashlights. Fuel tank levels will not be determined using a cigarette lighter, match or any other open flame as a source of light.
- Hoses used for fuel transfer will be fitted with factory-installed crimped end connections. King nipples, boss fittings and field installed end connections secured with wire, worm gear clamps or banding material are prohibited.

- Upon completion of refueling a forklift or other rolling stock, the person performing the task will ensure the isolation valve between the tank and the supply hose is fully closed and the hose and nozzle are properly stored.

FIRE PREVENTION AND PROTECTION

(29 CFR 1910.155 Subpart L and 1926.150 Subpart)

Fire Prevention Guidelines:

- Class A fire materials (paper, wood, rags, etc.) should be minimized in process areas.
- Buildings in which flammable or combustible liquids are being used must be well-ventilated at all times.
- Any fire extinguisher found discharged during monthly inspections will be removed from service and replaced immediately. The supervisor will be notified immediately upon finding a discharged extinguisher.
- Access to fire detection and firefighting equipment will be kept clear at all times. Equipment will not be obstructed with pallets, tarps, mud sacks, tools, etc. Smoke detectors will be present and in good working order in every living quarter/trailer. Detectors will be tested every 6 months.
- Perform required atmospheric monitoring prior to and during operations that involve opening hydrocarbon vessels or tanks. Use "snoop" suds or intrinsically safe gas detection meters when testing for gas leaks on connections. Never use an open flame.
- Use only approved cleaning solvents.
- Transport of Class II flammable liquids (such as gasoline, diesel fuel, or mixed fuel) shall be done in approved safety cans with the contents clearly labeled.
- A safety can will mean an approved container of not more than 5 gallons capacity, having a spring-closing lid, spout cover and designed to safely relieve internal pressure when subjected to heat or flame.
- Never place portable safety cans inside passenger compartments of vehicles.
- When transferring flammable or combustible liquids from barrel, tank, line or vessel to another container, the source container and the receiving container must be electrically bonded to prevent ignition due to static electricity. Plastic cups/buckets must not be used for collection of hydrocarbon samples.
- Flammable liquid containers or aerosol cans are to be stored in flammable storage cabinets. If opened containers will not fit in the flammable storage cabinet, then remaining product must be used or appropriately discarded.

Fire Response Procedures

In the event of fire, the following procedures must be used:

- The first two minutes of a fire are the most critical for extinguishment. Assess the situation and SUMMON HELP.
- Initiate Emergency Shut Down (ESD) and/or activate alarm systems if available, evacuate and then secure the area.
- Only trained personnel are qualified to operate fire extinguishers and equipment.
- Never fight a fire if the cause or source is not known, or if it is beyond the initial stage.
- Give direction to third party firefighting agencies.

SAFE WORK PRACTICES

General Safe Working Practices

Employees should utilize these tips for proper cable, chain, rope, and sling safety:

- Do not damage machines and any soft surfaces of the load with the lifting apparatus.
- Avoid sharp bends in slings and wire rope and protect slings from sharp edges and abrasions.
- Avoid sudden jerks when lifting or lowering loads.
- Set loads down on proper blocking – never directly on a sling.
- Do not side load.
- Maintain an angle between the sling and the horizontal greater than 45 degrees to reduce stress on the sling.
- Do not stand or walk under suspended loads.
- Never stand or step over any line that is under stress.
- Do not leave suspended loads unattended at any time. Use tag lines of sufficient length to control the lift.
- Slings not in use must be properly stored.
- Chain hoists and snatch blocks should not be fastened to girts because bending of the girts will weaken the derrick.
- Keep hands, fingers, feet, and other body parts from between the load line or sling and the load. Do not attempt to guide a load with hands on the sling.

Back/ Lifting Safety/ Ergonomics

When lifting or moving loads, personnel shall assess the weight, bulkiness of the item and the route of travel. Proper lifting techniques should be used. When the load is too heavy for one person to lift, the employee shall ask for assistance or use a mechanical lifting device.

Below are proper lifting techniques for employees to utilize:

- Keep feet apart–one alongside and one behind the object to be lifted. Feet should be comfortably spread to give stability.
- Keep back arched. An arched back means the spine, back muscles and body are in correct alignment.
- Grip the object with the whole hand, both the palm and fingers. Keep elbows and arms tucked to side of body. This reduces fatigue in chest and arm muscles and is the position where the most power can be generated for lifting. This position also helps control the center of gravity of the body.
- Keep head high and chin tucked in.
- Keep body weight (center of gravity) directly over feet. Start the lift with the thrust of the foot behind the object being lifted. Lift with legs and bring the load close to the body for the most efficient carrying position. Lift smoothly, without jerking or twisting.
- To raise an object above shoulder height, first lift to waist height.
- To change direction, turn the entire body, including the feet. DO NOT twist body at the waist while lifting.
- Do not carry an object that is too big to see over or around.
- For objects that are too large or bulky to be carried by one person, use proper moving equipment, or get help.

Cable, Chain., Rope and Sling Safety
(29 CFR 1926.552 Subpart N)

Here is a list the Inspection Process:

- Operations supervisors will maintain manufacturer and third-party load test records for all rigging materials in service requiring annual load tests.
- Only qualified personnel shall make inspections.
- Inspect all rigging equipment before each use.
- Cables, wire ropes, shackles, chains, slings, hooks, and other devices that do not meet the inspection criteria shall immediately be removed from service. Frayed or damaged nylon slings shall be cut and discarded.

Rigging Equipment
Safety Rules When Rigging Equipment:

- Know (and reference) the safe carrying capacity of sling chains, wire rope, hoists and other lifting apparatus and do not overload them.
- Immediately discard defective lifting equipment.
- Do not tie knots in sling chains, rope slings or wire cables to shorten them. Knots may decrease the rating of a line or cable by as much as 60%.
- Do not place bolts or other material between links of chain to shorten or splice it.
- Do not lift or hoist any object of unknown weight.

Shackles
Safety Rules for Shackles:

- Never replace the shackle pin with a bolt. Use only the proper size-fitting pin
- Never use a shackle if the distance between the two eyes has spread to where the original pin can no longer be used (i.e., the shackle bolt cannot be threaded so that it makes contact with all thread surfaces provided in the eye).
- All pins must be straight, and all screw pins must be completely seated.
- Destroy all shackles that are worn in the crown area or pin by more than 10% of the original diameter.
- Do not use a screw pin shackle if the pin can roll under the load, unscrew, and release the load.
- Shackle pins should be secured with safety wire to prevent the pin from unscrewing, especially when in the derrick or in other overhead work.
- Bolt Type Anchor Shackles (BTAS) should be used to secure all overhead equipment such as hoist sheaves.

Rigging of Wire Rope Clips
Safety Rules for Rigging of Wire Rope Clips:

- Be sure to use the proper number of wire rope clips when attaching, and make sure they are placed so that the U-bolt is on the short or "dead" end. The saddle should be placed on the long or "live" end.

- Wire rope removed from service will be destroyed to prevent further use. Used wire rope will only be used for stripping drill pipe when it is placed inside of a bolstered tubulars basket. Used wire rope will not be used on standard drill pipe racks.
- Wire rope clamps or factory-poured swedges will be used to create an eye in wire rope rigging.
- Wire-rope clamps should be properly sized, torqued and spaced for the diameter of the wire rope used.
- Blemished, plaited eyes will not be used on any wire rope rigging.
- Protruding tails or bitter ends of wire rope strands on slings and bridles will be taped or blunted.
- Wire rope will be removed from service and not be used if there are (10) broken wires in (1) rope lay or (5) broken wires in any strand.
- Wire rope will not be used if it shows signs of excessive wear, corrosion, or defect.

Diameter of Rope (Inches)	Number of Clips	Distance Between Clips
7/16" Or less	2	2-3"
1/2"-5/8"	3	3-4"
¾"-1"	4	5-6"
1-1/8"-1-1/4"	5	7-8"
1 3/8" Or larger	6	9 "

Compressed Gas Cylinders
(29 CFR 1910.101 Subpart H)
All compressed gas cylinders shall be handled, used and stored in accordance with the HS&E Handbook and state and local regulations.

Employees should utilize these tips for proper handling of compressed gas cylinders:
- Do not accept damaged cylinders.
- Keep protective caps on cylinders when not in use.
- Keep cylinders away from direct flame, heat and sources of ignition.
- Properly secure cylinders at all times. During movement, avoid rough handling, the striking of cylinders and observe all USDOT requirements (i.e. labeling, manifest documentation, etc.).
- Cylinder contents must be properly labeled. Reject cylinders and return to vendor if not properly labeled.
- Close all valves when not in use.
- Cylinder valves must have a handle or other shutoff mechanism in place while in use.
- Regulators are to be removed from cylinders when not in use unless the regulator is designed to be capped or the cylinders are in an approved welding cart.
- Discharge leaking cylinders outdoors by opening the discharge valve slowly one fourth of a turn.
- Use proper lifting methods/devices (i.e. cradles) for cylinders. Do not lift by the valve or protective cap. Ropes and slings are not to be used for lifting cylinders.

Using Cylinders
Safety Rules for Using Cylinders:
- Never use a cylinder of compressed gas without a pressure reducing regulator connected to the cylinder valve.
- Always close the cylinder valve before attempting to stop leaks.
- Do not use oil or grease as a lubricant on valves or attachments to oxygen cylinders.
- Threads on fittings must correspond to cylinder valve outlets.
- Check valves/flame arrestors are to be utilized on fuel gas/oxygen systems.

Storing Cylinders
Safety Rules for Storing Cylinders:
- Store cylinders in an upright, secured position.
- Do not store oxygen cylinders within 20-ft. (6 m) of combustible materials or fuel gases unless divided by a 5-ft. (1.75 m) fire resistant wall rated for one half-hour.
- Store empty and full cylinders separately.

Hand Tool and Power Tool Safety
(29 CFR 1910.242 Subpart P and 1926.300 Subpart I)
Safety Rules for Hand Tool and Power Tool Safety:
- Tools will be used for their intended use only. Employees are expected to take the time necessary to get the correct tools.

- Tools will be inspected before using them. Tools that are in an unsafe condition will not be used. Unsafe tools will be reported to a supervisor immediately for timely repair or replacement. Only tools that are clean and in good condition will be used.
- Hammers, chisels, derrick pins, bars or similar "driving"-type tools will not be used if mushroomed or cracked. Striking tools will not be used on mushroomed hammer unions until cleaned up with a file or until the hammer union is removed from service.
- Any hammer or axe with a cracked handle will be immediately removed from service. The handle will be replaced prior to returning the tool to service.
- Purpose-built pail lid removers will be used for removing lids from 5-gallon containers. Pocketknives and utility knives will not be used for this purpose.
- Pipe wrenches with worn heels or jaws and/or bent handles will not be used. Worn heels and jaws will be replaced prior to returning the tool to service.
- Power tools with cut or damaged cords/plugs will not be used until the cord or plug is repaired or replaced.
- Power tools will be properly grounded or manufactured with double-insulated casing.
- Power tools with trigger-locking devices that provide continuous operation are permitted, provided turnoff can be accomplished by a single motion of the same finger used to turn power on. This applies to portable drills and grinders with disks greater than a 2-inch diameter.
- If fitted with an "on/off" switch, a power tool will not be plugged into its power source until the switch is first verified to be "off."
- Guards will not be removed from portable grinders. Handheld disk grinders without manufacturer-installed guards will not be used. Grinders shall not be used if guards are missing.
- Grinders will be fitted with disk rated at proper speeds. The rated speed of the grinder must not exceed the speed of the grinding disk.
- Grinder disks must be suited for the material to be ground. Do not grind wood with disks intended for metal objects.
- Hand-held grinder disks should be a quarter inch or thicker. Worn or damaged disks will be replaced immediately.
- Clamps or vises will be used to hold all work dressed by handheld power tools. Employees will not attempt to hold the work using their free hand or a foot.
- Bench grinders without protective shields and adjustable tool rests will not be used.
- Bench grinder tool rests will be adjusted to one-eighth inch from the face of the grinding wheel.
- Grinding on the side of a bench-mounted grinding wheel is prohibited. The side of a grinding wheel shall not be used for grinding unless the equipment and wheel are designed for such use.
- A face-shield will be worn over standard safety glasses by anyone operating or standing near the flying debris from a portable or bench-mounted grinder.
- All adjustments to a portable grinder or other hand tool will be made before plugging the tool to its power source. No adjustments will be made without first unplugging the cord (i.e., to install a new grinding disk or to replace a drill bit in a hand drill).
- Electrical power tools will be secured by unplugging from the power supply, then wrapping up the cable. An energized extension cord or cable shall not be wrapped up.
- Hearing protection will be worn when operating electrical and air-powered hand tools.
- Pneumatic tools with trigger-locking devices that provide continuous operation are permitted, provided the hand tool is also fitted with a positive holding accessory. If the hand tool does not have the hand-hold device, the tool must be fitted with a constant pressure control switch that will shut off when pressure is released.
- Air pressure will be bled off any air-powered tool prior to disconnecting the hose.
- Air supply hoses will be properly pinned with a keeper pin at all crow's foot connections and safety cable between hose and air supply.
- Air supply hoses will have a safety whip check (lanyard) on all quick-connect lines that is properly sized to prevent the hose from whipping in the event a quick-connect parts.
- All power tools will be unplugged or removed from their air supply upon completion of work.
- All power tools will be unplugged or removed from their air supply prior to making any adjustments to the tool.
- Tools connected to a power source will not be left unattended.
- Compressed air outlets and hoses for air-powered (pneumatic) tools will not be pointed at another person or used to clean off boots or clothing while they are being worn.
- Maintain high standards of orderliness by returning tools to their proper storage place. Tools shall not be left lying about.

JOB SAFETY ANALYSIS

A Job Safety Analysis (JSA) is a way of studying a job in order to identify the hazards or potential accidents associated with each step of the job and to develop solutions that will eliminate, nullify or prevent such hazards. A JSA can help identify and eliminate potential accident causes. It is the responsibility of operations to develop and maintain JSA lists. (29 CFR 1910.132 Subpart I)

JSA/JHA Steps

There are four steps to doing a JSA:

1. Select the job to be analyzed.
2. Break the job down into steps.
3. Identify the hazards or potential accidents that could happen.
4. Develop measures to eliminate hazards.

1. Select the Job to Analyze

There are many jobs and job positions that can be hazardous to perform.

To narrow the list of those that require a JSA, an employee should consider the following items to determine which to do and in what order:

- Job accident frequency – jobs that have a history of accidents are good candidates for a JSA. It is a good assumption that if a job has produced many accidents in the past five years, it is going to continue to do so.
- Job injury severity – jobs that have provided serious injuries are potential JSA candidates.
- Potential injury severity – some jobs have no injury history but have the potential to produce severe or crippling injuries or death.
- Newly established jobs – changes in tools and equipment or new machinery create new hazards, and as such are natural candidates for a JSA.
- The JSA will document the hazards and safe procedures associated with the operation hopefully preventing an accident.

2. Break the Job into Steps

The major reason for breaking the job down into steps is so that each step can be examined for hazards and the potential for accidents. It permits the analysis to be done systematically, one step at a time; in the order the job is done. Each step in the job process tells generally what must be done. (Use active verbs – remove, position, tighten, etc.). The details are omitted. Hazards are not listed in this process, nor are any safety precautions.

3. Identify the Hazards (Potential Accidents)

Once the job is broken down into steps, each step is studied for hazards or potential accidents. The job is to identify all the hazards, whether they are part of the job environment or surroundings, or one of the worker's own doing. Record those hazards that are present or may occur as the job is performed. One of the best ways to identify job hazards is to observe the jobs as they are done.

Employees should ask questions similar to these as the task is being observed (this is a partial list, each situation may suggest others):

1. Could the worker be struck or make contact with anything?
2. Could the worker strike something or fall in any way?
3. Could an exposure or overexposure occur to any condition such as gas, heat, fumes, etc.?
4. Could a strain or overexertion occur?

4. Develop Measures to Eliminate Hazards

Once all the known or observed hazards are noted, a solution should be developed for each hazard.

Solutions may take any one of the following forms:

1. Job procedure solution – spell out exactly what workers are to do to accomplish the task safely.
2. Job environment solution – change some aspect of the environment to make the job safer.
3. Radical solution – a combination of the two above, but an entirely new way to do the job.
4. Reduced frequency solution – find a way to reduce the amount of repair, cleanup, wear, etc., to reduce the amount of times the task is done.

Accident/Incident Reporting and Investigation

All incidents, no matter how minor, must be reported to a supervisor immediately. "Immediately" is defined as within one (1) hour of the incident, or sooner if the situation dictates.

In order for the Accident/Incident investigation report to be effective, it must contain detailed answers to the following questions:

- What was the employee(s) doing?
- Where was the employee when he/she was injured?
- What happened—in detail? Avoid vague responses or statements.
- What caused the accident?
- What can be done to prevent similar accidents?
- Employee's name.
- Employee's supervisor.
- List of witnesses, and their written statements. These witnesses should sign and date these statements.
- Take Pictures!!

SEVERE WEATHER RESPONSE

Tornadoes

If there is a tornado warning, do the follow:

- If a tornado is sighted, and it appears that it will come close or pass over a job site, seek shelter if possible. If a shelter is not available, move away from the tornado's path at a right angle. If there is not time to escape, lie flat in the nearest depression, such as a ditch or ravine.
- In buildings without basements, take cover in the smallest room with sturdy walls, or under heavy furniture, or a tipped over couch or chair in the center part of the building. The first floor is safer than higher floors.
- Mobile buildings or buildings on blocks should be abandoned in favor of a pre-selected shelter, or even a ditch in the open.
- Parked cars are dangerous during a tornado or severe windstorm; however, as a last resort, if no ravine or ditch is nearby, they may provide some shelter from flying debris to those who lie on the floorboard inside the car.

Floods

Carefully determine the area affected by the high water. If possible, do the following:

- Move equipment and materials to higher ground.
- Sandbag areas where water can be diverted.
- Monitor exits to be certain they are not blocked by floodwater.

When driving a vehicle do the following:

- Be cautious of obstacles and low spots hidden by the water.
- Beware of low spots where water currents may be high enough to sweep a person or a vehicle off the road.
- Be cautious of driving through water high enough to kill an engine or damage a vehicle.
- Be cautious of snakes, animals and insects driven from their natural habitat by high water.

Freezing Rain/Ice Storm

When driving in freezing rain or ice, do the following:

- Minimize travel until road conditions improve.
- Be cautious of bridges and overpasses during icy conditions.
- Watch for fallen power lines, tree branches etc.
- If it is necessary to cross a frozen bridge or overpass, reduce speed, approach straight on and drive straight across. Do not touch the brakes, turn the wheels, or accelerate while crossing.

When working in potentially icy conditions do the following:

- Use salt or sand on slippery surfaces.
- Be aware of the increased potential for icy conditions on elevated walkways, steps, and ramps etc. Use salt or sand on these surfaces to prevent slipping.

SHOP SAFETY

General Shop Safety Rules:

1. Follow these steps when handling hot automotive parts that have been removed from vehicles:
    1) Pick up the part using gloves, heat resistant pads or dry rags.
    2) Place hot parts such as loose pipes, mufflers and shocks in metal containers that are labeled "Hot Metal Parts Only".
2. Wear safety glasses when working in the shop area.
3. Use a flexible exhaust hose to vent engine exhaust to the outside when the shop bay doors are closed.
4. Remove dust and shavings from drum lathes with a dustpan and broom or vacuum cleaner on a daily or job by job basis. Do not use your bare hands.
5. Dump gasoline and other liquid chemical waste into containers labeled "Flammable Waste" from containers labeled "Flammable".
6. Attach the pressure reducing nozzle that is labeled "Reduces Pressure to 30 psi" to the air hose when using compressed air to clean. Wear safety goggles when using compressed air to clean.
7. When lifting batteries or other heavy objects from the engine compartment of a vehicle, use the following procedures:
    1) Press your thighs against fender by leaning into vehicle.
    2) Grasp the object by lifting with both hands.
    3) Keep the object close to body, with elbows close to body.
    4) Turn body using feet, not twisting at waist.
    5) Move the object to work bench and lower onto bench. Use arms to lower and do not bend at waist.
8. When examining under the dash, use inspection mirrors. Do not twist your body or maintain an awkward posture when trying to look under the dash.
9. Drape a shop rag over the radiator cap before venting or removing the cap from the radiator.
10. Wear gloves, safety goggles and a rubber apron when working in the battery charging area.
11. Direct engine hand tools away from rotating fan blades when the engine is running.
12. Before "running" the vehicle for an engine analysis, engage the parking brake and use wheel blocks to "chock" the wheels of the vehicles.

Electrical Tool Safety

Safety Rules for when handling Electrical Tools:

1. Do not use power equipment or tools on which you have not been trained.
2. Keep power cords away from the path of vacuum cleaners, floor polishers and grinders.
3. Do not carry plugged in equipment or tools with your finger on the switch.
4. Do not carry equipment or tools by the cord.
5. Disconnect the tool from the outlet by pulling on the plug, not the cord.
6. Turn the tool off before plugging or unplugging it.
7. Do not leave tools that are "On" unattended.
8. Do not handle or operate electrical tools when your hands are wet or when you are standing on wet floors.
9. Turn off electrical tools and disconnect the power source from the outlet before attempting repairs or service work. Tag the tool "Out of Service".
10. Do not drive over, drag, step on or place objects on a cord

Hand Tool Safety

Safety Rules for when handling Hand Tools:

1. Tag worn, damaged or defective tools "Out of Service" and do not use them.
2. Do not use a tool if its handle has splinters, burrs, cracks, or splits, or if the head of the tool is loose.
3. Do not use impact tools such as hammers, chisels, punches, or steel stakes that have mushroomed heads.
4. When handing a tool to another person, direct sharp points and cutting edges away from yourself and the other person.
5. Do not chop at heights above your head when working with a hand axe.
6. Do not carry sharp or pointed hand tools such as screwdrivers, scribes, aviation snips, scrapers, chisels, or files in your pocket unless the tool or pocket is sheathed.
7. Do not perform "make-shift" repairs to tools.
8. Transport hand tools only in toolboxes or tool belts.
9. Wear safety glasses, goggles or face shields when operating grinders.

Grinders

Safety Rules for when handling Grinders:

1. Do not use grinding wheels that have chips, cracks, or grooves.
2. Do not use the grinding wheel if it wobbles. Tag it "Out of Service".
3. Do not try to stop the wheel with your hand, even if you are wearing gloves.
4. Do not use grinder if it is not firmly anchored to the work bench.
5. Prior to installing a new grinding wheel, inspect the wheel for cracks or other visible damage; tap the wheel gently with a plastic screwdriver handle to detect cracks that are not visible. If the wheel has a dead sound rather than a ringing sound, do not use the wheel.
6. Do not install a grinding wheel whose labeled RPM speed is lower than the rated speed of the grinder.
7. Do not grind on the side of an abrasive wheel labeled "Type 1".
8. Do not clamp a portable grinder in a vise to use it as a bench grinder.

Chain Maintenance and Inspection

It is necessary to inspect chain slings and load chains on a regular basis and keep records of the inspection. Inspections shall include end attachments and the chain on an individual link basis. The chain sling or load chain should be cleaned prior to inspection to aid in the detection of undesirable conditions.

Things to look for during the inspection:

- Marks, nicks, gouges, cracks
- Wear, especially excessive wear at the bearing points
- Twists or bends
- Stretch
- Distortion

Detection of any of these conditions must be resolved before a chain sling or load chain may be put back into service

Instructions Regarding Attachments:

- All attachments and accessories are designed for use with the appropriate size chain or wire rope.
- Always make sure that the attachment is at least equal to the strength of the chain or wire rope.
- A CHAIN OR WIRE ROPE ASSEMBLY SHALL ONLY BE RATED TO THE CAPACITY OF THE WEAKEST COMPONENT IN IT.

Cutting and Welding

(29 FR 1910.252 Subpart Q and 1926.350 Subpart P)

Safety Rules for Cutting and Welding:

- All cutting and welding equipment will be inspected prior to use.
- All ground connections should be securely made and kept in good condition to eliminate arcing.
- Oxygen and acetylene hoses should be inspected for leaks, damaged fittings, etc., on a job-to-job basis.
- Cylinders should be handled carefully. They must not be handled roughly, dropped, or knocked around. They should be secured upright at all times.
- Protective caps should be placed on both full and empty cylinders while they are being moved or transported.
- The proper regulator should be attached before using gas from the cylinder.
- Oxygen cylinder fittings should be kept clean and free from oil and grease.
- Main supply valves must be closed and bled down after completing cutting operations.
- Welding leads are to be inspected daily by the welder for insulation breaks.
- Cutting torches must not be left unattended in tanks or void spaces because leaks could cause an explosion.
- When welding drive pipe or any object connected or supported by the block, a ground wire must be attached to prevent electrical arching of the drilling line, crown, block bearings, draw works, etc.

❖ ***Note: Remember, Oxygen and oil or grease products DO NOT MIX, such a combination could result in a spontaneous fire or explosion. Oxygen is not to be used to clear work area or clothes.***

Tagging and Flagging

(29 CFR 1910.147 Subpart J)

Follow this Procedure for Tagging and Flagging:

1. The items listed above shall be tagged in the following manner to ensure proper attention.
2. The following shall be noted on the tag
   - Condition or reason for tagging
     -Date
     -Equipment being tagged

-Signature of person applying the tag

3. Tagging should be documented in the operations log or LOCKOUT/TAGOUT Log.
4. Tag should be properly attached with a nylon tie-rap.
5. If the tag is not readily visible, a flag (bright-colored ribbon) must also be attached. Flags never substitute for a tag.
6. Local personnel/supervision should be notified upon completion of the work.
7. Tags and flags should be removed after normal operating conditions are restored.

Danger tags indicate that a hazard exists and a "DANGER-DO NOT OPERATE" tag or similar wording shall be used in the following situations:

- Valves not in normal operating position
- Defective valves, equipment, or tools
- Safety or emergency equipment unfit for use

❖ ***Note: For equipment undergoing maintenance, personnel should refer to the Energy Isolation (LOTO) Safety Standard in the handbook and local Energy Isolation Procedures.***

EQUIPMENT AND VEHICLE SAFETY

General Vehicle Safety Rules:

1. Do not ride in the bed of pick-up trucks.
2. Turn headlights on when driving inside the shop area.
3. Do not drive over 5 miles per hour in the shop area.
4. Shut all doors and fasten your seat belt before moving the vehicle.
5. Obey all traffic patterns and signs at all times.
6. Maintain a 3-point contact using both hands and one foot or both feet and one hand when climbing into and out of vehicle.
7. Drive up the slope or down the slope, not across the slope.
8. Before leaving the vehicle, engage the parking brakes and chock the wheels.
9. Do not approach any vehicle until the vehicle stops and the driver exits.
10. Walk behind the vehicle and remove any equipment, tools, or other pathway instructions before getting into the vehicle. Sound the horn to alert nearby coworkers before backing the vehicle.
11. Tie down, lash, or secure all materials and equipment hauled in the bed of vehicles.
12. Stand clear of vehicles in motion.
13. Do not mount or dismount a moving vehicle.

Wheel Mounting/ Demounting on Vehicle

Rules for Wheel Mounting/ Demounting a Vehicle:

1. Position the lift so that the axle hub of the vehicle is about waist height.
2. Position the tire and wheel on the floor so that the inside of the tire faces you and the outside of the tire faces the car.
3. Place hands on the side of the tire with the tire resting against your thigh just above the knee.
4. With a continuous motion, straighten up using your thigh as a pivot point. Rotate the tire until most of the weight is resting on your thigh. The inside of the tire is now facing the car.
5. Continuing the momentum, the tire and wheel goes toward the hub with a little guidance from the hands.
6. Position the wheel and hub hole on the hub and align the lugs with the holes.
7. Reverse this procedure when demounting

Tire Handling

Rules for Tire Handling:

1. When loading tires onto or unloading tires from a vehicle, do not throw the tires off of the truck; use the following procedure:
    - Bend at knees, grasp tire with two hands, elevate tire to upright position and carry the tire to the end of the truck.
    - Hand tire off to a co-worker.
2. Do not stack tires above your shoulder level.
3. When unstacking tires that are above your shoulder height, use two people to unstack down to shoulder height.

Automotive Lifts

Safety Rules When Operating Automotive Lifts:

1. Remove all tools, cords, hoses, trash, and any other debris from the lift area and wipe up all grease and oil spills before driving a car or truck into the service bay.

2. Position the lift arms, adapters and supports to the center of the lift out of the way of the car's tires before driving the vehicle into the service bay.
3. Do not stand in front of a vehicle being driven into the service bay.
4. Do not use any lift that has cracked contact pads, cracked lift arms or any other visible damage.
5. Do not use wood or concrete blocks as a substitute for an extender.
6. Use wheel blocks to chock the wheels of any vehicle on a runway lift while the vehicle is on the lift.
7. Do not leave the controls unattended while the lift is in motion.
8. Do not block or "tie open" the lift's control while the lift is in motion.
9. Do not use the engine or transmission supports or stands as a substitute for jack stands.
10. If the vehicle begins to slip off of the lift, run in the opposite direction of the fall, but not toward a wall or work bench that might trap you between the object and the vehicle.
11. Before you lower the vehicle, remove tool trays, jack, engine, and transmission stands, and any other obstructions from under the vehicle.
12. Before removing the vehicle from the service bay, position lift arms and supports to the center of the lift away from the wheels of the vehicles.
13. Do not "tie down" or override the air or control valves of the lift.
14. Do not raise vehicle with anyone inside it.
15. When raising a vehicle, use the following procedure:
    - Use the lift to raise the vehicle about one foot off the ground, then moderately push the rear or front bumper of the vehicle to ensure that the vehicle frame is stably mounted on the lift support's contact pads.
    - If the frame of the vehicle is not firmly touching a support contact pad, or is slipping, immediately lower the vehicle and start over.
    - Once the vehicle is secure on the lift, lift the vehicle to the desired work height and visually check those contact points for misalignment before going under the vehicle.
16. As you raise the vehicle, you will hear a "clicking" noise which indicates that the lift's locking device is engaging. If you do not hear the "clicking" noise, stop the lift, fully lower the vehicle, and use another lift. Place an "Out of Service" tag on the control switch of the damaged lift and do not use it.
17. If you will be working under a lift that will be positioned at a point below where the lift's locking device engages, place four jack stands under the vehicle's frame or suspension for additional support before working under the vehicle.
18. Wear safety goggles when working underneath vehicles.

<u>Restoring Equipment to Service</u>

Safety Rules to Follow When Restoring Equipment to Service:

- All guards must be reinstalled.
- All electrical wiring must be returned to conform to electrical code requirements.
- All blind flanges or skillets must be removed and piping properly connected.
- Tools, materials, and other nonessential items should be removed.
- All machine or equipment components should be inspected and verified they are operationally intact.
- Employees in the area should be notified that LO/TO devices are ready to be removed.
- Personnel should verify that all employees are safely positioned or removed from the area.
- Each lock and tag from each energy-isolating device should be removed.

<u>Working on Energized Electrical Equipment</u>

If work requires that the electrical equipment be worked on while energized (i.e., bumping motors, maintenance testing, etc.), the following procedures apply:

1. Work on energized electrical equipment will only be conducted by qualified personnel with a safety observer present.
2. Safety observer (certified in First Aid/CPR) shall maintain direct communication with worker(s) during troubleshooting and/or adjustments to exposed energized equipment.
3. Personnel shall be notified of the activities being performed, the location, equipment affected and duration of work.
4. Equipment should be marked with a "DANGER-DO NOT OPERATE" tag.
5. Employees shall refer to the Electrical Safety section of the handbook for more details regarding electrical work.
6. All affected personnel shall be notified when work is completed. Excavation and Trenching (29 CFR 1910.650 Subpart P) This standard applies to all excavations 5-ft. (1.5 m) in depth or more and intended for worker occupancy. In addition to the following steps, a Confined Space Entry Permit may be required for personnel entry into such excavations that have the potential for hazards (i.e., atmospheres, cave-ins) which cannot be controlled, or serious safety hazards which cannot be eliminated. All excavations must meet or exceed OSHA requirements found in 29 CFR Part 1926-Subpart P-Excavations.

Forklift Safety

Rules to Follow for Forklift Safety:

1. Watch where you place your hands and feet. Be aware of and stay clear of pinch points such as the wheels and lift gears.
2. Stay under the overhead guard.
3. Keep your hands and feet inside the forklift. If your truck starts to tip over, DON'T JUMP! Stay in your seat, grip the wheel securely and brace yourself with your feet.
4. Always look out for others when moving and operating your forklift.
5. When operating the forklift watch out for pedestrians, blind intersections, and drive slowly.
6. When the forks are raised, never walk, or stand under them.
7. Do not allow anyone to ride with you on lift unless it is made for more than one person. Forklifts are not elevators. Do not lift anyone unless you are using a special basket.
8. Fluids from a forklift can leak out overnight on the area where you park it and make the surface slick. Check for fluids when you get on and off a forklift to prevent a slip and fall. Absorbent mats are available to park forklifts on and will absorb any leaks.
9. Do not let unauthorized persons operate your forklift and remove the key when unattended.
10. Use your horn when backing up, at intersections, when going through doors and anywhere you have limited or blocked vision.
11. Use your seat belt and check that the warning lights and backup alarm work before operating the machine.
12. Remember that you are the most important safety device on a forklift

FALL PROTECTION

(29 CFR 1910.23 Subpart D and 19260.501 Subpart M)

Construction of pads as well as the construction of impoundments and ponds are subject to the requirements of OSHA's construction industry fall protection standard of 6-ft. [29 CFR 1926.502]. Fall Arrest Systems are to be used when other fall protection systems are impractical or insufficient (i.e., scaffold work requiring top and mid-rails to be removed).

General Requirements

These are the General Requirements to follow:

- 100% fall protection must be maintained at all times while performing elevated work, to include the use of two lanyards if needed to allow the employee to remain anchored to one point while moving to the next point. This requirement does not apply to work being performed from portable ladders.
- The use of waist belts for fall arrest and non-locking snap hooks is prohibited.
- Anyone going up or down the derrick ladder will wear a full-body harness secured to an anti-fall device (Ex: static line with safety sleeve, notched rail, or self-retracting lifelines). The counterweight system alone will not be considered adequate fall protection for climbing up or down the derrick ladder.
- The double-locking hook on a self-retracting lifeline will be hooked directly into the dorsal D-ring on the back of the full body harness. The retractable spool will not be hooked into a shock absorbing lanyard.
- Self-retracting lifelines that have been subjected to a load will be removed from service and forwarded to a manufacturer's approved repair facility for overhaul and/or inspection.
- Self-retracting lifelines will be inspected every other year by the manufacturer or his designated representative. Maintenance and inspection will be documented and maintained on site.
- To minimize fall distance, the tie-off or anchor points should be at the height of the D-ring or higher.
- To minimize swing falls, tie-off or anchor points should be as close as possible to directly above the head.

Fall Arrest Systems

Fall Arrest Systems shall include:

- A full-body harness with D-ring in the middle of the back situated in-between the shoulders and a double EZ-Stop lanyard (2 lanyards)
- An appropriate anchorage attachment capable of supporting at least 5,000 lb. static load

Connectors

Safety Rules when handling Connectors:

- The system may include a lanyard deceleration device, lifeline, or suitable combination of these.
- Before donning the fall arrest system, the employee shall:
  - Inspect Fall Arrest components prior to each use.
  - Remove from service and destroy damaged components or equipment that has experienced a fall.
  - Ensure Fall Arrest equipment is not to be used to hoist equipment/materials.

If an employee is working in an area where they could fall into and be submerged in water, an approved type 1 or type 2 life jacket or buoyant work vest must be worn, and at least one life saving skiff or boat should be immediately available.

Ladder Safety – General

Safety Rules for General Ladder Safety:

- When climbing up or down any ladder, personnel should face the ladder and maintain a 3-point contact with hands free of materials.
- Personnel should keep body centered between the ladder side rails (or within the width of the cleats) when climbing and while working. Personnel should not overreach or lean while working from a ladder.
- All ladders must be inspected before each use. Damaged ladders should be removed from service until repaired.
- If work from a ladder is long-term in nature or requires heavy physical exertion, other methods such as scaffolds or personnel lifts should be used.
- Metal ladders must not be used for electrical work.

Non-Self-Supporting Ladder (Portable Extension Ladder)

Safety Rules for Non-Self-Supporting Ladders:

- Ladder shall be positioned at a safe angle, which is typically a 4:1 vertical to horizontal ratio.
- The ladder shall be secured at the point of support to prevent movement. To accomplish this, a person will stabilize the ladder at the bottom while the climber climbs and secures the ladder at the top. If a ladder cannot be secured at the top, outriggers or another employee must stabilize the ladder while it is in use.
- A portable extension ladder must extend 3-ft. (1 m) past the point of support when accessing a working surface (i.e., roof).

Self-Supporting Ladders (Portable Step Ladders)

Safety Rules for Self-Supporting Ladders:

- A stepladder must be used with the spreader bars in the locked down position.
- A stepladder shall never be used as a straight ladder.
- Do not stand on the top two steps of a self-supporting ladder.

Personnel Lifts

Safety Rules when Operating Personnel Lifts:

- Personnel in a man-lift basket will maintain 100% fall protection to the basket.
- Personnel working in a man-lift basket desiring to transfer from the basket to any other elevated surface or substructure, will first tie-off to the next object before removing his lanyard from the man-lift basket.
- Personnel must work with both feet securely on the floor of the platform. Working with feet on a rail or working from a ladder placed in the personnel lift is prohibited.
- All entrance gates or chains must be in their fully closed position before moving the lift.
- Lift controls and the structural integrity of the lift shall be inspected/tested each day prior to use.
- Personnel should never tie off to an adjacent pole, structure or equipment while working from within the personnel basket.

Scaffolds

(MSHA Part 56.11027)

Safety Rules when on a Scaffold:

- A Competent Person must be appointed to oversee scaffolding erection and disassembly.
- Only heavy-duty pole and tube and coupler scaffolds should be used.
- Scaffolding will be kept clean and in good condition. It will be inspected prior to each rig-up for cracks or other damage.
- Footing shall be sound, rigid, and capable of carrying the maximum intended load. Unstable objects such as bricks, blocks or boxes must not be used.
- Scaffold heights greater than 4 times the base must be properly secured to the working structure unless otherwise noted by the manufacturer.
- When working under a scaffold, overhead protection is required.
- Working from portable ladders on the scaffold platform is prohibited.
- Appropriate guardrails shall be utilized on all scaffolds. Toe boards must be installed on platforms that are 10-ft. (3.05 m) above ground level or walkways that are 6-ft. (1.8 m) above ground level.

- Fixed or secured portable extension ladders must be used to access scaffolding if no built-in ladders are present.

BOP Scaffolding

Safety Rules for BOP Scaffolding:

- Metal-type scaffolding will be used around the BOP stack to provide a stable, non-slip working surface unless other appropriate means of fall protection are provided.
- Scaffolding will be tied on both ends to the hangers/ladders that support it to prevent side movement or vibration.

Stairs

Safety Rules for Stairs:

- Personnel will keep one hand on the handrail at all times while climbing up or down stairs. Personnel will not try to carry things up or down stairs that require more than one hand to hold. One hand will be kept free and on the handrail at all times.
- Sliding down handrails, skipping steps, or running on steps is prohibited.
- Stairs, steps, and walkways will be kept free of obstructions. Stairs, steps, walkways, and handrails will be kept clean of mud, grease, dirt, or other slippery materials. Stairs or steps will be utilized whenever they are provided.
- Stair landings will be kept clear of slip, trip or fall hazards.
- Stairs will be bolted down or securely pinned with a pin and keeper combination so as to prevent any movement.

Personal Hoisting Operations

(29 CFR 1910.68 Subpart F and 1926.552 Subpart)

Personnel hoisting will only be performed after all other alternative methods of ascending or descending (e.g., ladders, stairs, scaffolding, etc.) have been considered and personnel hoisting is determined, by the rig or location manager, to be the safest means of reaching the desired work area or for performing the task.

Safety Rules for Personal Hoisting Operations:

1. The use of screw-pin shackles or outward-opening, safety-rated "Surelock" style hooks is prohibited for use in personnel hoisting operations.
2. Personnel elevated with a hoist attached to a single-point suspension system will wear a full-body harness with permanently stitched seat–purpose-built for personnel hoisting operations and approved by the manufacturer as personal fall arrest equipment. No other full-body harness, bos'n seat, riding belt, other single-point suspension system or manufacturer's equipment will be used for personnel hoisting.
3. For drilling operations, the mechanism used to attach the harness to the hoist system will be a Bolt Type Anchor Shackle (BTAS). The BTAS used for personnel hoisting will be painted orange so as to designate it for personnel hoisting operations only. The orange BTAS will NOT be used for any other hoisting or material-handling application. The use of screw-pin shackles or outward-opening, safety-rated "Surelock" hooks is strictly prohibited.
4. The retaining mechanism used in a BTAS will be a 1-inch or larger split ring in lieu of cotter key provided by Crosby. The cotter key represents a laceration hazard.
5. Personnel elevated with a hoist will also utilize an independent means of fall arrest in the event of a hoist system failure. Example methods of independent fall arrest include:
    - DBI-Sala self-retracting lifeline (Model #'s: 3403401 (50-ft), 3403501 (85-ft), 3403601 (130-ft) or 3407626 (175-ft) suspended in the derrick with self-locking snap-hook attached directly into the dorsal D-ring on the personnel hoisting harness.
    - 3/8-inch static line constructed of (7x19) galvanized solid core cable with DBI-Sala swivel safety sleeve (Model #1220368) attached to the dorsal D-ring on the full body harness using the 18-inch fall suppression lanyard stitched directly into the swivel sleeve.
6. Personnel will NOT ride the traveling blocks or drill pipe elevators at any time to or from any place.
7. Personnel will NOT be transported from the rig floor to the derrick board or return using a rig floor hoist or winch. Personnel needing to ascend to or descend from the derrick board will use the derrick ladder and associated ladder safety device / fall arrest system.
8. Personnel elevated with a hoist will NOT attempt to get out of the personnel hoisting assembly, full-body harness or BTAS while elevated above the rig floor. Disconnection from the personnel hoisting system may only occur at the level where the personnel hoisting activity began. Examples include: (a) at the rig floor for operations in the derrick or mast, or (b) at the drill deck or ground level for operations under the rig floor.
9. Each rig and yard operation that conducts personnel hoisting activities will develop a JSA specific for the activity of "Lifting Personnel with a Winch." The JSA will be reviewed prior to each personnel hoisting activity.

10. Drilling operations and/or rotation of the drill string with either the kelly or top drive will be temporarily stopped any time someone is hoisted above the rig floor in a hoist.
11. Personnel will NOT be hoisted up the V-door using a hoist. Personnel will NOT be suspended on a hoist line under the rotary table.
12. Operator will never take eyes off the rider or designated flagger while elevating personnel. Only the rider or designated flagger will give hoisting signals to the Operator. Operator will NOT anticipate riders' movements or desires.
13. Riders will have all tools secured and tied off properly prior to being elevated by the hoist. Example: grease gun, sledgehammer, and wrenches.

HAZARD COMMUNICATION PROGRAM

The purpose of this plan is to establish a program and procedures for the safe use of hazardous chemical substances at MKS Construction, LLC.

The Occupational Safety and Health Administration (OSHA) Hazard Communication Standard (HCS) 29 CFR 1910.1200 (General Industry) and 29 CFR 1926.59 (Construction Industry) call for the development of a hazard communication program when employees may be exposed to any chemical in the workplace under normal conditions of use or in a foreseeable emergency. In 2012, OSHA revised the HCS to align with the Globally Harmonized System of Classification and Labeling of Chemicals (GHS). As a result, this program has been revised to comply with the requirements of the OSHA HCS 2012.

The written hazard communication program will include and address the following criteria in order to satisfy the minimum requirements of the OSHA HCS 2012:

- List of all hazardous chemicals known to be present in the workplace or individual work area
- Methods used to ensure that all containers, including pipes and holding tanks, are labeled, tagged or marked properly
- Methods used to obtain and maintain safety data sheets (SDSs)
- Methods used to provide employees with information and training on hazardous chemicals in their work areas
- Methods used to inform employees of the hazards of nonroutine work practices
- Methods used to provide the employees of other employers (e.g., consultants, construction contractors and temporary employees) on-site access to SDSs for each hazardous chemical that the other employer's employees may be exposed to while working in the workplace
- Methods used to inform the employees of other employers of precautionary measures that need to be taken to protect themselves during the workplace's normal operating conditions and in foreseeable emergencies
- Methods used to inform the employees of other employers of the labeling system used in the workplace

The hazard communication program will identify the following:

- Key personnel responsible for the program
- Location of chemical inventory list and SDSs
- Workplace labeling system
- Good work practices and procedures to minimize exposures
- How training will be performed
- Procedures to maintain the program and update the required information
- How records will be maintained

RESPONSIBILITIES

Safety Coordinator Responsibilities

The Safety Coordinator is responsible for administering the hazard communication program.

The Safety Coordinator is also responsible for:

- Reviewing the potential hazards and safe use of chemicals
- Maintaining a list of all hazardous chemicals and a master file of SDSs
- Ensuring that all containers are labeled, tagged, or marked properly
- Providing new-hire and annual training for employees
- Maintaining training records
- Monitoring the air concentrations of hazardous chemicals in the work environment
- Properly selecting and caring for personal protective equipment
- Directing the cleanup and disposal operations of the spill control team
- Identifying hazardous chemicals used in nonroutine tasks and assessing their risks
- Informing outside contractors who are performing work on company property about potential hazards
- Reviewing the effectiveness of the hazard communication program and making sure that the program satisfies the requirements of all applicable federal, state, or local hazard communication requirements

Purchasing Agent Responsibilities

The purchasing agent is responsible for:

- Contacting chemical manufacturers and/or distributors to obtain SDSs and secondary labels for hazardous chemicals used or stored in the workplace

- The receiving department is responsible for:
- Reviewing incoming hazardous chemicals to verify correct labeling
- Holding hazardous chemicals in the receiving area until receipt of the SDS for the product

Employee Responsibilities

Employees are responsible for the following aspects of the hazard communication program:

- Identifying hazards before starting a job
- Reading container labels and SDSs
- Notifying the supervisor of torn, damaged, or illegible labels or of unlabeled containers
- Using controls and/or personal protective equipment provided by the company to minimize exposure
- Following company instructions and warnings pertaining to chemical handling and usage
- Properly caring for personal protective equipment, including proper use, routine care and cleaning, storage, and replacement
- Knowing and understanding the consequences associated with not following company policy concerning the safe handling and use of chemicals
- Participating in training

LABELS AND OTHER FORMS OF WARNINGS

Each container of hazardous chemicals received from the chemical manufacturer, importer or distributor will be labeled with the following information:

- Product identifier
- Signal word
- Hazard statement(s)
- Pictogram(s)
- Precautionary statement(s)
- Name, address and telephone number of the chemical manufacturer, importer, or other responsible party

MKS Construction, LLC will use the GHS labeling system for secondary containers.

When a chemical is transferred from the original container to a portable or secondary container, the container will be labeled, tagged, or marked with a GHS label containing the following information:

- Product identifier
- Signal word
- Hazard statement(s)
- Pictogram(s)
- Precautionary statement(s)

Portable containers into which hazardous chemicals are transferred from labeled containers and that are intended for the immediate use of the employee who performs the transfer do not require a label. If the portable container will be used by more than one employee or used over the course of more than one shift, the container must be labeled. Food and beverage containers should never be used for chemical storage.

Signs, placards, process sheets, batch tickets, operating procedures or other such written materials may be used in lieu of affixing labels to individual, stationary process containers as long as the alternative method identifies the containers to which it is applicable and conveys the information required for workplace labeling.

Where an area may have a hazardous chemical in the atmosphere (e.g., where extensive welding occurs), the entire area will be labeled with a warning placard.

Pipes that contain hazardous chemicals should be labeled in accordance with ANSI/ASME A13.1 and indicate the direction of flow. (Please note that this not a requirement of the OSHA HCS but a best practice or requirement of local jurisdiction.

Workplace labels or other forms of warning will be legible, in English and prominently displayed on the container or readily available in the work area throughout each work shift. If employees speak languages other than English, the information in the other language(s) may be added to the material presented as long as the information is presented in English as well.

❖ ***Note: After Dec. 1, 2015, distributors may not ship containers labeled by the chemical manufacturer or importer unless the label on the container meets GHS labeling requirements.***

SAFETY DATA SHEETS

An SDS will be obtained and maintained for each hazardous chemical in the workplace. SDSs for each hazardous chemical will be readily accessible during each work shift to employees when they are in their work areas.

SDSs will be obtained from the chemical manufacturer, importer, or distributor. The name on the SDS will be the same as that listed on the chemical inventory list. SDSs for chemicals or process streams produced by the company will be developed and provided by the Safety Coordinator.

The Safety Coordinator will maintain the master file of all original SDSs. SDSs for new products or updated SDSs for existing products will be obtained by the purchasing agent and forwarded to the safety coordinator. The (Safety Coordinator OR APPROPRIATE TITLE) will then update the master file with new and/or updated SDSs.

If problems arise in obtaining an SDS from the chemical manufacturer, importer or distributor, a phone call will be made to request an SDS and to verify that the SDS has been sent. The phone call will be logged, and a letter will be sent the same day. The company will maintain a written record of all efforts to obtain SDSs. If these efforts fail to produce an SDS, the local OSHA office will be contacted for assistance.

EMPLOYEE INFORMATION AND TRAINING

Employees included in the hazard communication program will receive the following information and training prior to exposure to hazardous chemicals and when new chemical hazards are introduced to their work area:

- Requirements of the OSHA Hazard Communication Standard 29 CFR 1910.1200 (General Industry) or 29 CFR 1926.59 (Construction Industry)
- Operations in the work area where hazardous chemicals are present
- Location and availability of the hazard communication program, chemical inventory list and SDSs
- Methods and observations used to detect the presence or release of a hazardous chemical in the work area, such as monitoring devices, visual appearance or odor of hazardous chemicals when being released
- Physical, health, simple asphyxiation, combustible dust and pyrophoric gas hazards, as well as hazards not otherwise classified of the chemicals in the work area
- Measures employees can take to protect themselves from hazards, such as appropriate controls, work practices, emergency and spill cleanup procedures, and personal protective equipment to be used
- Explanation of the labels received on shipped containers
- Explanation of the workplace labeling system
- Explanation of the SDS, including order of information and how employees can obtain and use the appropriate hazard information

❖ ***Note: To facilitate understanding of the new GHS system, the OSHA HCS requires that employees be trained regarding the new label elements and SDS format by Dec. 1, 2013. Employers are required to update the hazard communication program and to provide any additional training for newly identified physical or health hazards no later than June 1, 2016.***

Non-Routine Tasks

The Safety Coordinator and the immediate supervisor of an employee performing a nonroutine task, such as cleaning machinery and other process equipment, is responsible for ensuring that adequate training has been provided to the employee on any hazards associated with the nonroutine task. Employees share in this responsibility by ensuring that their immediate supervisor knows that the nonroutine task will be performed.

Special work permits are required for the performance of certain nonroutine tasks, such as entry to confined spaces, breaking and opening piping systems, and welding and burning. For some special tasks, employees are required to follow special lockout/tagout procedures to ensure that all machinery motion has stopped, and energy sources are isolated prior to and during the performance of such tasks.

CONTRACTORS

Prior to beginning work, the Safety Coordinator will inform contractors with employees working on company property of any hazardous chemicals that the contractors' employees may be exposed to while performing their work. The Safety Coordinator will also inform contractors of engineering or work practice control measures to be employed by the contractor, personal protective equipment to be worn by the contractors' employees, and any other precautionary measures that need to be taken to protect their employees during the workplace's normal operating conditions and in foreseeable emergencies.

Furthermore, the Safety Coordinator will advise contractors that they must comply with all OSHA standards while working on company property. Appropriate controls will be established with the contractor to ensure that company employees are not exposed to safety and health hazards from work being performed by the contractor and that company operations do not expose contractors' employees to hazards.

The Safety Coordinator will inform contractors of the workplace labeling system and the availability and location of SDSs for any chemical to which contractors' employees may be exposed while performing their work.

Record Keeping
Records pertaining to the hazard communication program will be maintained by the Safety Coordinator.

The Safety Coordinator will keep the following records:

- Chemical inventory list
- Hazardous material reviews
- Copies of phone call logs and letters requesting SDSs
- Employee training records
- Warnings issued to employees for not following the hazard communication program

Asbestos
(29 CFR 1910.1001 Subpart Z)

General Asbestos Requirements:

- Asbestos-containing material that may be encountered on MKS facilities could include transit siding/roofing, building or pipe insulation, gaskets, floor and ceiling tile, window caulking and pipe coating. These materials are assumed to be asbestos unless documentation and/or testing proves otherwise.
- Before a contractor begins work, MKS Construction, LLC will inform the contractor in writing of any potential asbestos hazards associated with the job. Contractors shall be licensed in the state in which the work is to be done and shall have a formal ACM removal program which includes job procedures, training, PPE and certifications/license requirements. Asbestos products will not be purchased unless non-ACM products are unavailable.
- All asbestos removal (including repair/O&M jobs) will be supervised by a formally trained Competent Person. Only trained and licensed personnel (as applicable to the region) can remove ACM products.
- Eating, drinking, smoking or chewing is prohibited in any contaminated work areas.
- Contact/inhalation with ACM material can be avoided by the use of protective clothing such as gloves, coveralls, rubber boots, respirators and eye protection.
- Personnel should thoroughly wash exposed skin areas, which may have been exposed to ACM before eating, drinking, smoking or chewing.

Hearing Conservation
(29 CFR 1910.95 Subpart)
Employees who are exposed or potentially exposed to a time-weighted average (TWA) of 85 decibels (dBA) or greater over an 8-hour period are deemed to be at risk. All employees are encouraged to annually have audiometric testing performed. All employees should be trained on the effects of noise on hearing, the purpose, types and use of hearing protectors, the purpose of audiometric testing and an explanation of the test procedures and their results.

All MKS Construction, LLC facilities shall be periodically assessed for continuous high-noise levels (85 dBA or greater). Warning signs shall be posted in areas identified as high-noise level areas. Personnel are required to wear hearing protection in high-noise level areas and during unusual operations. Extremely loud jobs such as blowing down lines or venting of air pressure may require the use of dual protection (plugs and muffs).

Heat Exposure
Signs and Symptoms of Heat-Related Illnesses:

- *Heat Cramps* – Muscle cramps of the abdomen, legs or arms.
- *Heat Exhaustion* – Profuse sweating with pale, moist and cool skin; weakness; loss of appetite; dizziness. May also have heat cramps, nausea, urge to defecate, chills, rapid breathing, tingling of the hands or feet, and confusion.
- *Heat Stroke* – Headache, dizziness, stomach pains, confusion, weakness and sudden loss of consciousness, and may have seizures; skin is hot and may be dry; pulse and respiration are rapid and weak. Heat stroke is a medical emergency.

Basic Heat Injury Prevention

To reduce the risk of heat injury, the following procedures should be followed:

- Reduce the risk of heat-related injury by regular consumption of water and clear fluids. When possible, provide cooled water (50˚F to 60˚F) to promote voluntary consumption. Do not wait until thirsty to replenish fluids (especially when working in hot environments or performing strenuous work).
- Take frequent small drinks of water since they are more effective than drinking a large amount of water all at once. Larger individuals need more water.
- The use of salt tablets for replacement of salt lost through sweating is not recommended. An adequate salt intake is best achieved by eating three salt-seasoned meals per day.
- When possible, schedule heavy workloads for the cooler hours of the day, such as early morning or late evening.
- Give frequent rest periods. Lower the work rate and workloads as the heat condition increases.
- When possible, workloads and/or duration of physical exertion should be less during the first days of exposure to heat, then they should gradually increase to allow acclimatization.
- Monitor the condition of your co-workers closely and encourage them to take action if they appear to be suffering from the ill effects of heat exhaustion.

Heat Stress Monitoring (WBGT Surveys)

Heat stress monitoring using Wet Bulb Globe Temperature (WBGT) meters should be utilized when work factors place excessive heat load on an individual.

Heat stress monitoring should be employed to determine stay times and break intervals if excessive heat is a factor. Heat load factors include:

- Ambient temperatures above 105 F˚ or high humidity above 90% or a combination of the two.
- Moderate to heavy work load (as defined by OSHA Technical Manual–Sect III, Chapter 4: Heat Stress) ranging from 200-500 kcal/hour.
- Wearing of PPE and/or Fire Retardant Clothing (FRC) which reduces evaporative cooling effect.
- Salt tablets as recommended and increased water intake may be used to prevent dehydration.
- Increased work intervals with fewer breaks.

Lead

(29 CFR 1910.1025 Subpart Z)

MKS Construction, LLC has established a guideline to control potential exposures to lead-containing products in its facilities. Employees performing maintenance activities, which can potentially disturb lead-containing products such as paints or coatings, must meet the minimum requirements. An action level of 30 cubic micrograms per cubic meter of air as an 8-hour TWA has been established for lead.

General Lead Requirements:

- Before a contractor begins work, MKS Construction, LLC will inform the contractor of any potential lead issues associated with the job. Contractors shall have their own program, which shall include job procedures, training, PPE, certifications/license, etc.
- Lead-containing products will not be purchased unless products not containing lead are unsuitable.
- Only trained personnel can remove lead-containing material.
- Unknown coatings shall be tested before their removal to determine safe work practices and the appropriate level of personal protective equipment required for the job, (i.e. respiratory protection and protective clothing).
- Qualitative lead test kits should be used for testing paints and/or coatings prior to work commencement.
- Before welding, cutting or hot work, coatings and/or painted surfaces should be removed within 6 inches of the weld area to prevent potential lead from being vaporized by the heat if lead is present.
- Chemical removal methods should be used when applicable to reduce potential exposures.

ENVIRONMENTAL PROGRAMS

AIR

The Federal and State Clean Air Acts regulate numerous construction and operational aspects of many facilities, including compressor stations, gas processing plants, and other emission sources.

Under the CAA, many stationary sources of air pollution cannot legally operate until an air permit is obtained and met. A "stationary source" is any non-mobile equipment or facility that emits any air pollutant. Common stationary sources in the natural gas industry include temporary or permanent compressor engines, generators, tanks, dehydrator pumps, fire tubes, re-boilers or associated equipment, boilers, and vaporizers.

Stationary sources may be subject to different requirements depending on the amount and type of emission sources and the quality of the air near the source.

Routine Maintenance, Repair, and Replacements

"Routine maintenance, repair and replacement" activities are not considered modifications and do not require permit reviews. Detailed records shall be maintained for routine maintenance, repairs, and replacement occurrences.

However, such activities will be noted on project approval documents indicating that emissions were not affected.

Activities that can be performed without contacting the HSE Department include, but are not limited to:

- Engine balancing
- Inspection and cleaning
- Oil changes
- Changing of filters
- Like-for-like replacement of spark plugs

Common Activities Requiring Permit Review

Some commonly performed activities are considered modifications and do require permit reviews. Because these activities have the potential to increase emissions, it is essential they be reviewed prior to execution.

The most common activities within this category are:

- Engine repairs or overhauls involving the replacement of parts with like parts
- Changing spark plug or ignition systems types
- Changing fuel valve types
- Changing or repairing the exhaust stack or inlet filter/silencer
- Changing or modifying the unit automation and controls

If the proposed activity to be performed on a source is not on the above list, the HSE Department will be consulted before the activity is performed. In addition, the HSE Department should be consulted if there are any questions as to whether any proposed maintenance, repair or replacement activity is "routine." Activities not listed above will require HSE clearance before the activity is performed. Personnel should contact HSE if there are any questions regarding the "routine" nature of an activity.

WATER

The Clean Water Act created laws and regulations that require companies to control and monitor water pollutants. For the E&P industry, those pollutants can include storm water runoff, hydrocarbon spills and salt/brine water. MKS Construction, LLC has established Stormwater Pollution Prevention Plans (SWPPP), Reasonable and Prudent Practices for Stabilization (RAPPS) and Spill Prevention Control and Countermeasure (SPCC) plans that can be found at local facilities as warranted or required.

SPCC (40 CFR 112)

The purpose of the SPCC is to prevent the discharge of hydrocarbons into navigable waters of the United States and adjoining shorelines, and to provide plan design guidelines for containing and cleaning such discharges if they occur.

Definitions:

- *Harmful Quantities* – Quantities that violate applicable water quality standards, cause a sheen upon the water or adjoining shorelines, or cause a sludge deposit below the water surface or upon adjoining shorelines.

- *Navigable Waters of the United States* – Includes interstate waters, intrastate lakes, rivers and streams, mudflats, sand flats and wetlands, playa lakes, dry or intermittent stream beds and all tidally influenced waters.
- *Oil* – Includes oil of any kind and in any form, including petroleum, fuel oil, sludge, oil refuse and oil mixed with wastes.
- *SPCC Plan* – A Spill Prevention Control and Countermeasure (SPCC) Plan is designed to implement safety standards, fire prevention and pollution prevention rules and regulations to minimize the potential for oil discharges.
- *Reportable* – Requiring National Response Center (NRC) notification – releases that impact navigable waters of the United States.

Determining Plan Necessity:

- *A facility, which due to its location could not reasonably be expected to discharge oil into navigable waters of the United States or adjoining shorelines, does not need an SPCC Plan (Plan), regardless of size.*
- *A facility, which due to its location could reasonably be expected to discharge oil into navigable waters of the United States or adjoining shorelines, needs a Plan if any of the following conditions apply:*
  - The underground oil storage capacity is 42,000+ gallons
  - The total above ground oil storage capacity is 1,320+ gallons
- *A facility that has experienced two reportable spills within any 12-month period needs a Plan, regardless of size or location. Such Plan will be submitted to the EPA Regional Administrator within 60 days of the second event.*
- *Plans are required for mobile or portable facilities, such portable fueling facilities.*

Stormwater

If a facility or location experiences a reportable quantity release, personnel should contact the HSE Department for guidance regarding MKS's obligations under the industrial stormwater program.

Definition:

- *Stormwater – precipitation (rain, melted snow or ice) that is collected and carried through any system of pipes, ditches, channels, gutters, surface drains or any other surface runoff discharged on or off a facility or property. Stormwater cannot encounter the following without triggering permit requirements:*
  - Raw materials (e.g., crude oil)
  - Intermediate products
  - By-products or waste products

If stormwater collects oil or other contaminants, it can lead to soil or water pollution and special permitting requirements.

Preventing Stormwater Contamination:

- Substances should never be discharged, poured, unloaded or released into storm sewers, drainage ditches, sumps or ground areas, unless allowed by a facility National Pollutant Discharge Elimination System (NPDES) (40 CFR 122) or other permit.
- If any chemicals or contaminants are discovered on the ground or in the stormwater drainage system, immediate action should be taken to clean up.
- The HSE Department should be contacted if a discharge of oil or hazardous substances has occurred in association with a stormwater event. A reportable quantity (RQ) is any amount that violates applicable water quality standards or causes a film or sheen on the water surface. The HSE Department should be contacted for guidance on water quality standards in each state.
- The oil and gas industry has a categorical exemption from the industrial stormwater permitting program. However, a permit will be required for operators of oil and gas exploration, production, processing, treatment operations or transmission facilities that experience a reportable quantity discharge of oil or a hazardous substance.
- RAPPS (Reasonable and Prudent Practices for Soil Stabilization).

Permit Approval Time:

Approval time varies depending on the nature of the action and the area impacted. Some actions covered by general or nationwide permits require no notification, provided certain conditions are met. Other actions, particularly those involving dredging or filling of a bay, lake or wetlands, are quite time-consuming – taking more than 6 months to acquire approval.

WASTE MANAGEMENT

MKS Construction, LLC engages in responsible waste management practices in order to remain in regulatory compliance and embody good stewardship. Further process information can be found in the Waste Management Program documents. The Resource Conservation and Recovery Act (RCRA) (40 CFR 239-282) and the Comprehensive Environmental Response, Compensation and Liability Act (CERCLA) (42 USC 9601) have driven the development of solid waste management laws and regulations. To meet these standards MKS Construction, LLC has developed guidelines which include approved waste disposal practices.

Definitions:

- *Disposal* – Discharge, deposit, injection, dumping, spilling, leaking or placing of any waste into or on land, water or air. (40 CFR 260.10). Non-hazardous oil field waste and non -hazardous waste will be disposed only at facilities approved by the HSE Department. Hazardous waste disposal will be coordinated by the HSE Department.
- *E&P Exemption* – Certain wastes generated by the oil and gas exploration and production industry that have been exempted from hazardous classification under the RCRA, Subtitle C.
- *Hazardous Waste* – Any waste that is listed as hazardous by RCRA, Subtitle C or that has been mixed with or exhibits the characteristics of hazardous waste.
- *Hazardous Waste Characteristics* – Specific characteristics identified by RCRA in Subtitle C that cause a waste to be hazardous. A waste exhibiting anyone of the following characteristics classifies it as hazardous:
  1. *Ignitable* – liquid with flash point <140˚F or non-liquid capable of causing fire when handled.
  2. *Corrosive* – liquid with pH less than 2.0 or greater than 12.5.
  3. *Reactive* – reacts violently with water, undergoes violent change without detonation or detonates when hit.
  4. *Toxic* – fails Toxicity Characteristic Leaching Procedure (TCLP) test.
- *Non-Hazardous Waste* – Any waste not meeting the RCRA hazardous waste characteristics and are those wastes not specifically listed as hazardous by any state or federal regulation.
- *Recycled* – A waste that is used, reused or reclaimed as ingredients in industrial process to make a product or provide an effective substitute for commercial products.
- *Waste* – Any discarded material that is abandoned, spilled, placed in a landfill or disposed of by burning or injecting downhole; anything that can no longer be used for its original purpose. Waste may be a solid, semi-solid, liquid or containerized gas that has been discarded, used, or is a by-product.

General Requirements:

1. All wastes generated by Company operations will require identification and classification by appropriate operations personnel.
   - Identification and classification will include declaring the source or process generating the waste and stating whether the waste is E&P exempt. Exempt waste requires no further classification.
   - Non-exempt wastes will be classified as hazardous or nonhazardous, including methodology for determination if classified as non-hazardous.
2. The HSE Representative will prepare individual Waste Management Plans as needed for each generated waste.
   - Waste Management Plans are approved and signed by the department manager responsible for the operations generating the waste.
   - Preferred method of disposal will be stated and specific disposal site(s) identified, either on each plan by name or as an attachment to the plan in the form of an "approved" list.
   - Disposal sites will be evaluated and inspected by the HSE Department.
   - Waste will be handled and/or stored in accordance with its specific plan.
   - Waste Management Plans will identify all records/documents resulting from management of a specific waste.
   - No waste may be disposed of without a plan.
     - Hazardous and non-hazardous wastes should not be commingled.
     - Material may be disposed only at a site approved by the HSE Department.
     - Recycling is preferable to disposal.
3. Non-exempt hazardous wastes require special handling. A Waste Management Plan for hazardous waste will have the signed approval of MKS Management.

<u>Waste Minimization, Segregation and Housekeeping</u>

The handling and disposal of waste adds significant expense to operations.

Three strategies can reduce the expenses associated with waste management:

1. Waste minimization and/or product substitution results in lower costs for storage and disposal of waste. In addition, waste minimization may be required by regulation.
2. Segregation of wastes prevents unnecessary disposal of nonhazardous waste as hazardous waste.
3. Good housekeeping practices provide a safe working environment and reduce overall waste.

Waste Minimization

Personnel should use the following strategies to minimize waste:

- Before performing work, plan ways to minimize the amount of waste that will result.
- Substitute non-hazardous material for hazardous material if the intended use is not compromised.
- Purchase products from vendors who will take back empty or unopened/unused containers or products.
- Order and use only the amount of material necessary to do the job.
- Use products completely before shelf lives expire, using the oldest products first.
- Contact other company facilities to see if they can use extra materials.
- Keep lids on product containers tightly closed.
- Recycle materials (oil, cans, glass, cardboard, etc.).
- Reuse materials, such as paint thinners or degreasers, when possible.
- Use a rag service that will pick up used rags and return clean ones.
- Do not mix wastes improperly.
- Use drop cloths or containers to prevent spills and to collect materials for reuse.
- Require contractors to minimize waste.
- Use waste material as a substitute for a commercially produced similar product when appropriate.

Segregation of Wastes

Process to Follow for Segregation of Wastes:

1. Do not mix waste. Mixing hazardous and non-hazardous waste can result in the entire mixture being classified as hazardous, increasing the amount of hazardous waste requiring disposal.
2. Keep any waste (e.g., soil, transformer oils, electrical switch boxes) suspected of having any concentration of poly-chlorinated biphenyls (PCBs) in separate containers.
3. Provide separate containers for wastes to be recycled (e.g., glass, plastic, batteries, used oil, and solvents).

Good Housekeeping Practices

These are Examples of Good Housekeeping Practices:

1. All products and wastes will be correctly inventoried, clearly labeled and properly stored. If labeling is inadequate or illegible, expensive testing may be required to properly identify the material. Improper storage can result in contamination of the material, which may then require disposal through expensive hazardous waste methods.
2. Place all types of waste into appropriate containers or recycling bins.
3. Store wastes so they do not come in contact with rainwater. If possible, store wastes in a covered area, and in covered and clearly labeled containers; or cover them with a heavy tarp.
4. Secure lids on trash cans, trash bins, drums, recycling bins and other waste containers so waste stays inside. Remove funnels after use and close the drum or container.
5. Store empty product drums and/or containers as follows:
    - Close lids securely.
    - Place containers on wood pallets or on a rack at an angle (45-degree angle or more) to prevent the collection of rainwater and/or corrosion on the top and bottom.
    - Drum storage areas will have secondary containment.
6. Keep flammable liquids (e.g., fuels, small cans of gasoline) in a designated location that is at least 50-ft. from the property/lease line and store in appropriate, labeled containers.
7. Use poly-liners, tarps or other portable containment equipment constructed of a non-reactive material to catch spills or drips that may occur.
8. Keep spill control and clean-up equipment ready and in good condition.

WEED AND PEST CONTROL

Selection of Herbicide and Pesticide

The following guidelines should be followed regarding herbicide and pesticide use:

- Do not use any herbicide or pesticide unless it is approved for use by the county in which it is used.
- Do not use any herbicide if it contains arsenic or 2-4D.
- Do not use any herbicides on any pipeline segment or company facility that is adjacent to or intersects creeks, streams, drainage ditches, rivers, livestock areas or in highly populated areas.
- Use only licensed personnel to apply herbicides or pesticides.
- Over-the-counter products, such as “Roundup,” do not require licensed applicators.
- Notify the Operator/Client of proposed herbicide and pesticide application where project approval is required.

Use of Approved Herbicides and Pesticides:

1. Advise persons handling, applying or working around herbicides and pesticides, or areas where they have been applied, that the herbicides and pesticides are being used and contain hazardous chemicals.
2. Maintain a copy of the MSDS document for the herbicide or pesticide product at the site or work location where it is being used.
3. Maintain records of applicator contractor licenses on site.
4. Encourage each employee to read the MSDS document in order to become familiar with product characteristics.
5. Employees who will be handling herbicides or pesticides are required to read the MSDS document.
    - If an outside contractor is applying herbicides or pesticides, obtain a copy of the MSDS from the contractor prior to application of the substance.
    - Follow the manufacturer's directions concerning the use and application of all herbicides and pesticides.
    - Use appropriate personal protective equipment (PPE) while working with herbicides or pesticides.
    - Ensure that empty herbicide and pesticide containers are not reused for any purpose other than the original use.
    - There may be specific landowner requirements for application of herbicides or pesticides on lands belonging to the Bureau of Land Management, the state or tribes.

ONE CALL NOTIFICATION NUMBERS

Before digging, drilling, or excavating, call the appropriate utility locating service.

❖ ***Note: Calling "811" in most states will connect the caller with that state's Buried Utility Locate Dispatch for marking underground utilities. Most "One Call" agencies require a minimum of (2) business days to locate buried utilities before mechanized digging, drilling or excavation can commence.***

One Call Notification Numbers			
Alabama	1-800-292-8525	Nebraska	1-800-331-5666
Arizona	1-602-263-1100	Nevada	1-800-227-2600
Arkansas	1-800-482-8998	New Hampshire	1-888-344-7233
California	1-800-422-4133	New Jersey	1-800-272-1000
Colorado	1-800-922-1987	New Mexico	1-800-321-2537
Connecticut	1-800-922-4455	New York (Exp: NYC & Long Island)	1-800-962-7962
Delaware	1-800-282-8555	- NYC & Long Island	1-800-272-4480
Florida	1-800-432-4770	North Carolina	1-800-632-4949
Georgia	1-800-282-7411	North Dakota	1-800-795-0555
Illinois (Exp: Chicago)	1-800-892-0123	Ohio	1-800-362-2764
- Chicago ONLY	1-312-744-7000	Oklahoma	1-800-522-6543
Indiana	1-800-382-5544	Oregon	1-800-332-2344
Iowa	1-800-292-8989	Pennsylvania	1-800-242-1776
Kansas	1-800-DIG-SAFE	Rhode Island	1-888-344-7233
Kentucky	1-800-752-6007	South Carolina	1-800-922-0983
Louisiana	1-800-272-3020	Tennessee	1-800-351-1111
Maine	1-888-344-7233	Texas	1-800-245-4545
Maryland	1-800-282-8555	- Another Texas	1-800-669-8344
- In State	1-888-322-4844	- Another Texas	1-800-344-8377
- Out of State	1-888-344-7233	Utah	1-800-662-4111
Michigan	1-800-482-7171	Vermont	1-888-344-7233
Minnesota	1-800-252-1166	Virginia	1-800-552-7001
Mississippi	1-800-227-6477	North Virginia	1-800-257-7777
Missouri	1-800-344-7483	West Virginia	1-800-245-4848
Montana	1-800-424-5555	Wisconsin	1-800-242-8511
- Another Montana	1-800-551-8344	Wyoming	1-800-348-1030
		- Another Wyoming	1-800-849-2476

AGENCY INSPECTION PROCEDURES

When an inspector from any federal, state or local agency with HSE jurisdiction arrives, employees having the initial contact should:

- Verify the inspector's credentials and agency involved (local, state, tribal, or federal).
- Determine basis/purpose/type of inspection.
- Notify a supervisor and the HSE Department immediately.

- As appropriate, conduct and document an HSE orientation for the facility.
- Defer inspection until supervisor arrives. If unable to contact, proceed.
- Follow all safety procedures during inspection (PPE, rules, etc.).
- Maintain detailed record of inspector's activity.
- Record same physical measurements and take same photographs as inspector.
- Permit review of records related only to inspection.
- Avoid answering and defer question(s) that are not understood.
- Request abatement recommendations in closing conference.

❖ ***Note: Employee has the right to refuse to be interviewed and the right to request the presence of a MKS representative when participating in an OSHA inspection.***

INCIDENT NOTIFICATION PROCEDURES

Notification Process

When an incident occurs, employees should:

1. Determine the incident type.
2. Make initial telephone notifications.
    - *Note:* Activate the Crisis Management Incident Response Plan if the event level dictates.
3. Enter the report information onto the appropriate MKS incident form or client database as available.
4. Forward incident report form within noted reporting time frames.

Documentation of a "return to work" release must be furnished to the Supervisor from the attending Physician whenever an employee with a restricted duty or lost-time injury returns to work.

❖ ***Note: Telephone notifications need to be made within specified reporting time frames, and persons making the notifications must follow their business unit reporting requirements.***

Required Documentation or Notification:

1. Telephone Notification
2. Incident Report (Injury, Vehicle, Occurrence or Environmental)
3. Police Accident Report (If one taken)

Contacts:

1. Immediate Supervisor
2. Safety Director
3. Office

Incident Type	Reporting Time Frame		
	Immediately	Within 24 hours	Within 5 Bus. Days
First Aid	A-1	B-2.3	
Medical	A-1,2,3	B-4,5	
Restriction/Job Transfer	A-1,2,3	B-4,5	
Days Away from Work	A-1,2,3,4,5	B-4	
Death	A-1,2,3,4,5,B		C
Fire	A-1,2,3,5	B	C *(If reported to 911)
Vehicle Collision	A-1,2,3	B-4	C
Vehicle Collision (Third Party Injury)	A-1,2,3,5	B-4	C
Near Hit/Close Call	A-1	A-2,3,B	
Company Property Damage		A-1,2,B	
Spill/Release (non-reportable)	A-1,2,3	B	
Spill/Release (Reportable)	A-1,2,3,5	B	

BLOODBORNE PATHOGENS

Responsibilities

Preventing the spread of bloodborne illnesses is a responsibility shared between MKS Construction, LLC and its employees.

1. Employer Responsibilities

It is the responsibility of MKS Construction, LLC to:

- Enact and enforce an exposure control plan to prevent occupational exposure to potentially infectious materials;
- Identify employees who, as part of their job duties, may reasonably be anticipated to come into contact with blood and other potentially infectious materials;
- Provide for post-exposure evaluation and follow-up should an employee be exposed to potentially infectious materials;
- Ensure all employees have received appropriate bloodborne pathogens training; and
- Ensure adequate supply of Personal Protective Equipment.

2. Safety Director Responsibilities

It is the responsibility of the safety director to:

- Develop and implement a site-specific exposure control plan;
- Identify employees who, as part of their job duties, may reasonably be anticipated to come into contact with blood and other potentially infectious materials;
- Develop, conduct, and document training for bloodborne pathogens safety;
- Investigate exposure incidents and recommend work practice changes, if necessary; and
- Recommend Personal Protective Equipment if necessary.

3. Employee Responsibilities

Every MKS Construction, LLC employee is expected to:

- Offer input on the Exposure Control Plan as appropriate, including identification, evaluation, and selection of new control measures;
- Follow all elements of the bloodborne pathogens policy and training; and
- Notify a supervisor if they encounter any problems.

TRAINING

MKS Construction, LLC will ensure every employee who might reasonably anticipate coming into occupational exposure to potentially infectious materials participate in a bloodborne pathogen training program. MKS Construction, LLC will provide this training at no cost to the employee during working hours.

Training will be provided:

- At the time of assignment to tasks where occupational exposure may take place;
- At least annually thereafter, annual training for all employees will be provided within one year of their previous training.
-

MKS Construction, LLC will provide additional training when tasks or procedures are added or changed that affect the employee's occupational exposure. It is acceptable for additional training to be limited to addressing only the changes or additions to the employees' exposure.

Training Components

The training program will contain at a minimum the following elements:

- A general explanation of the epidemiology and symptoms of bloodborne diseases;
- An explanation of the modes of transmission of bloodborne pathogens;
- An explanation of the appropriate methods for recognizing tasks and other activities that may involve exposure to blood and other potentially infectious materials;
- An explanation of the use and limitations of methods to prevent or reduce exposure, including engineering controls, work practices and personal protective equipment;
- Information on the types, proper use, location, removal, handling, decontamination and disposal of personal protective equipment;
- An explanation of the basis for selection of personal protective equipment;
- Information on the hepatitis B vaccine, including information on its efficacy, safety, method of administration, the benefits of being vaccinated and that the vaccine and vaccination will be offered free of charge to employees who face occupational exposure;

- Information on the appropriate actions to take and persons to contact in an emergency involving blood or other potentially infectious materials;
- An explanation of the procedure to follow if an exposure incident occurs, including the method of reporting the incident and the medical follow-up that will be made available;
- Information on the post-exposure evaluation and follow-up that the employer is required to provide for the employee following an exposure incident;
- An explanation of the signs and labels and/or color coding; and
- An opportunity for interactive questions and answers with the person conducting the training session.

The person conducting the training will be knowledgeable in the subject matter of the training program as it relates to the workplace.

Training Records

Training records will include the following information:

- The dates of the training session;
- The content or a summary of the training session;
- The names and qualifications of persons conducting the training; and
- The names and job titles of all persons attending the training sessions.

Employee training records will be maintained for 3 years from the date on which the training occurred.

In Case of Exposure

A licensed health care professional will conduct a confidential medical evaluation and follow-up as soon as possible following an exposure incident.

After initial first aid, follow this procedure:

- Document the routes of exposure and how the exposure occurred.
- Identify and document the source individual
- Obtain consent and arrange to have the source individual tested as soon as possible to determine HIV, HCV and HBV infectivity; convey and document conveyance of the source individual's test results to the employee's health care provider. If the source individual is known to be HIV, HCV and/or HBV positive, new testing need not be performed.
- Provide the exposed employee with the source individual's text results and with information about applicable disclosure laws and regulations concerning the identity and infectious status of the source individual.
- After obtaining consent, collect exposed employee's blood as soon as feasible after exposure incident and test blood for HBV and HIV serological status.
- If the employee does not give consent for HIV serological testing during collection of blood for baseline testing, preserve the baseline blood sample for at least 90 days; if the exposed employee elects to have the baseline sample tested during this waiting period, perform testing as soon as feasible.

Administrative Responsibilities Following Exposure

MKS Construction, LLC will ensure that the health care professional responsible for post-exposure evaluation and follow-up receives:

- A copy of OSHA's bloodborne pathogens standard;
- A description of the employee's job duties relevant to the exposure incident;
- Route of exposure;
- Circumstances of exposure;
- If possible, results of the source individual's blood test; and
- Relevant employee medical records, including vaccination status.

MKS Construction, LLC will provide the employee with a copy of the evaluating healthcare professional's written opinion within 15 days of the completion of the evaluation.

Recordkeeping

MKS Construction, LLC will maintain a confidential medical record for every employee with occupational exposure that will include at least the following:

- The name and social security number of the employee;
- A copy of the employee's HBV status (with dates of all HEP B vaccinations)
- A copy of all post-exposure documentation and healthcare professional's written opinion; and
- A copy of the information provided to the healthcare professional.



Do not share this record unless the employee provides written consent.

RESPIRABLE CRYSTALLINE SILICA PROGRAM

Purpose

This Respirable Crystalline Silica Program was developed to prevent employee exposure to hazardous levels of Respirable Crystalline Silica that could result through construction activities or nearby construction activities occurring on worksites. Respirable Crystalline Silica exposure at hazardous levels can lead to lung cancer, silicosis, chronic obstructive pulmonary disease, and kidney disease. It is intended to meet the requirements of the Respirable Crystalline Silica Construction Standard (29 CFR 1926.1153) established by the Occupational Safety and Health Administration (OSHA).

All work involving chipping, cutting, drilling, grinding, or similar activities on materials containing Crystalline Silica can lead to the release of respirable-sized particles of Crystalline Silica (i.e. Respirable Crystalline Silica). Crystalline Silica is a basic component of soil, sand, granite and many other minerals. Quartz is the most common form of Crystalline Silica. Many materials found on constructions sites include Crystalline Silica; including but not limited to – cement, concrete, asphalt, pre-formed structures (inlets, pipe, etc.) and others. Consequently, this program has been developed to address and control these potential exposures to prevent our employees from experiencing the effects of occupational illnesses related to Respirable Crystalline Silica exposure.

Scope

This Respirable Crystalline Silica Program applies to all employees who have the potential to be exposed to Respirable Crystalline Silica when covered by the OSHA Standard. The OSHA Respirable Crystalline Silica Construction Standard applies to all occupational exposures to Respirable Crystalline Silica in construction work, ***except*** where employee exposure will remain below 25 micrograms of Respirable Crystalline Silica per cubic meter of air (25 $\mu g/m^3$) as an 8-hour time-weighted average (TWA) under any foreseeable conditions.

RESPONSIBILITIES

MKS Construction, LLC firmly believes protecting the health and safety of our employees is everyone's responsibility. This responsibility begins with upper management providing the necessary support to properly implement this program. However, all levels of the organization assume some level of responsibility for this program including the following positions.

Safety Department/Human Resources

Responsibilities of the Safety Department/ Human Resources:

- Conduct job site assessments for Silica containing materials and perform employee Respirable Crystalline Silica hazard assessments to determine if an employee's exposure will be above 25 $\mu g/m^3$ as an 8-hour TWA under any foreseeable conditions
- Select and implement into the project's ECP the appropriate control measures in accordance with the Construction Tasks identified in OSHA's Construction Standard Table 1; and potentially including (but not limited to) - a written Exposure Control Plan (ECP), exposure monitoring, Hazard Communication training, medical surveillance, housekeeping and others.

❖ ***Note: OSHA's Construction Standard Table 1 is a list of 18 common construction tasks along with acceptable exposure control methods and work practices that limit exposure for those tasks.***

- Ensure that the materials, tools, equipment, personal protective equipment (PPE), and other resources (such as worker training) required to fully implement and maintain this Respirable Crystalline Silica Program are in place and readily available if needed.
- Ensure that Project Managers, Site Managers, Competent Persons, and employees are educated in the hazards of Silica exposure and trained to work safely with Silica in accordance with OSHA's Respirable Crystalline Silica Construction Standard and OSHA's Hazard Communication Standard. Managers and Competent Persons may receive more advanced training than other employees.
- Maintain written records of training (for example, proper use of respirators), ECPs, inspections (for equipment, PPE, and work methods/practices), medical surveillance (under lock and key), respirator medical clearances (under lock and key) and fit-test results.
- Conduct an annual review (or more often if conditions change) of the effectiveness of this program and any active project ECP's that extend beyond a year. This includes a review of available dust control technologies to ensure these are selected and used when practical.
- Coordinate work with other employers and contractors to ensure a safe work environment relative to Silica exposure.

Project Manager

Responsibilities of the Project Manager:

- Ensure all applicable elements of this Respirable Crystalline Silica Program are implemented on the project including the selection of a Competent Person.
- Assist the Safety Department in conduct job site assessments for Silica containing materials and perform employee Respirable Crystalline Silica hazard assessments to determine if an ECP, exposure monitoring, and medical surveillance is necessary.
- Assist in the selection and implementation of the appropriate control measures in accordance with the Construction Tasks identified in OSHA's Construction Standard Table 1; and potentially including (but not limited to) - a written Exposure Control Plan (ECP), exposure monitoring, Hazard Communication training, medical surveillance, housekeeping and others.
- Ensure that employees using respirators have been properly trained, medically cleared, and fit-tested in accordance with the company's Respiratory Protection Program. This process will be documented.
- Ensure that work is conducted in a manner that minimizes and adequately controls the risk to workers and others. This includes ensuring that workers use appropriate engineering controls, work practices, and wear the necessary PPE.
- Where there is risk of exposure to Silica dust, verify employees are properly trained on the applicable contents of this program, the project-specific ECP, and the applicable OSHA Standards (such as Hazard Communication). Ensure employees are provided appropriate PPE when conducting such work.

Competent Person and/or Site Manager (Superintendent, Foreman, etc.)

Responsibilities of the Superintendent/ Forman/ or Site Manager:

- Make frequent and regular inspections of job sites, materials, and equipment to implement the written ECP.
- Identify existing and foreseeable Respirable Crystalline Silica hazards in the workplace and take prompt corrective measures to eliminate or minimize them.
- Notify the Project Manager and/or Safety Department of any deficiencies identified during inspections to coordinate and facilitate prompt corrective action.
- Assist the Project Manager and Safety Department in conducting job site assessments for Silica containing materials and perform employee Respirable Crystalline Silica hazard assessments to determine if an ECP, exposure monitoring, and medical surveillance is necessary.

Employees

Responsibilities of Employees:

- Follow recognized work procedures (such as the Construction Tasks identified in OSHA's Construction Standard Table 1) as established in the project's ECP and this program.
- Use the assigned PPE in an effective and safe manner.
- Participate in Respirable Crystalline Silica exposure monitoring and the medical surveillance program.
- Report any unsafe conditions or acts to the Site Manager and/or Competent Person.
- Report any exposure incidents or any signs or symptoms of Silica illness.

DEFINITIONS

If a definition is not listed in this section, please contact your supervisor. If your supervisor is unaware of what the term means, please contact the Competent Person or your Safety Department.

Definition Library:

- *Action Level* – means a concentration of airborne Respirable Crystalline Silica of 25 $\mu g/m^3$, calculated as an 8-hour TWA.
- *Competent Person* – means an individual who can identify existing and foreseeable Respirable Crystalline Silica hazards in the workplace and who has authorization to take prompt corrective measures to eliminate or minimize them.
- *Employee Exposure* – means the exposure to airborne Respirable Crystalline Silica that would occur if the employee were not using a respirator.
- *High-Efficiency Particulate Air (HEPA) Filter* – means a filter that is at least 99.97 percent efficient in removing monodispersed particles of 0.3 micrometers in diameter.
- *Objective Data* – means information, such as air monitoring data from industry-wide surveys or calculations based on the composition of a substance, demonstrating employee exposure to Respirable Crystalline Silica associated with a product or material or a specific process, task, or activity. The data must reflect workplace conditions closely resembling or with a higher exposure potential than the processes, types of material, control methods, work practices, and environmental conditions in the employer's current operations.
- *Permissible Exposure Limit (PEL)* – means the employer shall ensure that no employee is exposed to an airborne concentration of Respirable Crystalline Silica in excess of 50 $\mu g/m^3$, calculated as an 8-hour TWA.

- *Physician or Other Licensed Health Care Professional (PLHCP)* – means an individual whose legally permitted scope of practice (i.e., license, registration, or certification) allows him or her to independently provide or be delegated the responsibility to provide some or all the particular health care services required by the Medical Surveillance Section of the OSHA Respirable Crystalline Silica Standard.
- *Respirable Crystalline Silica* – means Quartz, Cristobalite, and/or Tridymite contained in airborne particles that are determined to be respirable by a sampling device designed to meet the characteristics for respirable-particle size- selective samplers specified in the International Organization for Standardization (ISO) 7708:1995: Air Quality-Particle Size Fraction Definitions for Health-Related Sampling.
- *Specialist* – means an American Board-Certified Specialist in Pulmonary Disease or an American Board-Certified Specialist in Occupational Medicine.

METHODS AND REQUIREMENTS

Specified Exposure Control Methods

When possible and applicable, MKS Construction, LLC will conduct activities with potential Silica exposure to be consistent with OSHA's Construction Standard Table 1. Supervisors will ensure each employee under their supervision and engaged in a task identified on OSHA's Construction Standard Table 1 have fully and properly implemented the engineering controls, work practices, and respiratory protection specified for the task on Table 1 (unless MKS Construction, LLC has assessed and limited the exposure of the employee to Respirable Crystalline Silica in accordance with the Alternative Exposure Control Methods Section of this program).

The task(s) being performed by MKS Construction, LLC identified on OSHA's Construction Standard Table 1 is/are:

(See Table 1: Specified Exposure Control Methods When Working with Materials Containing Crystalline Silica)

When implementing the control measures specified in Table 1, MKS Construction, LLC shall:

- For tasks performed indoors or in enclosed areas, provide a means of exhaust as needed to minimize the accumulation of visible airborne dust;
- For tasks performed using wet methods, apply water at flow rates sufficient to minimize release of visible dust;
- For measures implemented that include an enclosed cab or booth, ensure that the enclosed cab or booth:
  - Is maintained as free as practicable from settled dust;
  - Has door seals and closing mechanisms that work properly;
  - Has gaskets and seals that are in good condition and working properly;
  - Is under positive pressure maintained through continuous delivery of fresh air;
  - Has intake air that is filtered through a filter that is 95% efficient in the 0.3-10.0 μm range (e.g., MERV-16 or better); and
  - Has heating and cooling capabilities.
- Where an employee performs more than one task included on OSHA's Construction Standard Table 1 during a shift, and the total duration of all tasks combined is more than four hours, the required respiratory protection for each task is the respiratory protection specified for more than four hours per shift. If the total duration of all tasks on Table 1 combined is less than four hours, the required respiratory protection for each task is the respiratory protection specified for less than four hours per shift.

Alternative Exposure Control Methods

Alternative Exposure Control Methods apply for tasks not listed in OSHA's Construction Standard Table 1, or where MKS Construction, LLC cannot not fully and properly implement the engineering controls, work practices, and respiratory protection described in Table 1.

First, MKS Construction, LLC will assess the exposure of each employee who is or may reasonably be expected to be exposed to Respirable Crystalline Silica at or above the Action Level in accordance with either the Performance Option or the Scheduled Monitoring Option.

Performance Option

MKS Construction, LLC will assess the 8-hour TWA exposure for each employee based on any combination of air monitoring data or objective data sufficient to accurately characterize employee exposures to Respirable Crystalline Silica.

Scheduled Monitoring Option:

- MKS Construction, LLC will perform initial monitoring to assess the 8-hour TWA exposure for each employee based on one or more personal breathing zone air samples that reflect the exposures of employees on each shift, for each job classification, and in each work area. Where several employees perform the same tasks on the same shift and in the same work area, MKS Construction, LLC will plan to monitor a

representative fraction of these employees. When using representative monitoring, MKS Construction, LLC will sample the employee(s) who are expected to have the highest exposure to Respirable Crystalline Silica.

- If initial monitoring indicates that employee exposures are below the Action Level, MKS Construction, LLC will probably discontinue monitoring for those employees whose exposures are represented by such monitoring.
- Where the most recent exposure monitoring indicates that employee exposures are at or above the Action Level but at or below the PEL, MKS Construction, LLC will repeat such monitoring within six months of the most recent monitoring.
- Where the most recent exposure monitoring indicates that employee exposures are above the PEL, MKS Construction, LLC will repeat such monitoring within three months of the most recent monitoring.
- Where the most recent (non-initial) exposure monitoring indicates that employee exposures are below the Action Level, MKS Construction, LLC will repeat such monitoring within six months of the most recent monitoring until two consecutive measurements, taken seven or more days apart, are below the Action Level, at which time MKS Construction, LLC will probably discontinue monitoring for those employees whose exposures are represented by such monitoring, except when a reassessment is required. MKS Construction, LLC will reassess exposures whenever a change in the production, process, control equipment, personnel, or work practices may reasonably be expected to result in new or additional exposures at or above the Action Level, or when MKS Construction, LLC has any reason to believe that new or additional exposures at or above the Action Level have occurred.

MKS Construction, LLC will ensure that all Respirable Crystalline Silica samples taken to satisfy the monitoring requirements of this program and OSHA are collected by a qualified individual (i.e. a Certified Industrial Hygienist) and the samples are evaluated by a qualified laboratory (i.e. accredited to ANS/ISO/IEC Standard 17025:2005 with respect to Crystalline Silica analyses by a body that is compliant with ISO/IEC Standard 17011:2004 for implementation of quality assessment programs).

Within five working days after completing an exposure assessment, MKS Construction, LLC will individually notify each affected employee in writing of the results of that assessment or post the results in an appropriate location accessible to all affected employees.

Whenever an exposure assessment indicates that employee exposure is above the PEL, MKS Construction, LLC will describe in the written notification the corrective action being taken to reduce employee exposure to or below the PEL.

Where air monitoring is performed, MKS Construction, LLC will provide affected employees or their designated representatives an opportunity to observe any monitoring of employee exposure to Respirable Crystalline Silica. When observation of monitoring requires entry into an area where the use of protective clothing or equipment is required for any workplace hazard, MKS Construction, LLC will provide the observer with protective clothing and equipment at no cost and shall ensure that the observer uses such clothing and equipment.

Once air monitoring has been performed, MKS Construction, LLC will determine its method of compliance based on the monitoring data and the hierarchy of controls. MKS Construction, LLC will use engineering and work practice controls to reduce and maintain employee exposure to Respirable Crystalline Silica to or below the PEL, unless MKS Construction, LLC can demonstrate that such controls are not feasible. Wherever such feasible engineering and work practice controls are not sufficient to reduce employee exposure to or below the PEL, MKS Construction, LLC will nonetheless use them to reduce employee exposure to the lowest feasible level and shall supplement them with the use of respiratory protection.

In addition to the requirements of this program, MKS Construction, LLC will comply with other programs and OSHA standards (such as 29 CFR 1926.57 [Ventilation]), when applicable where abrasive blasting is conducted using Crystalline Silica-containing blasting agents, or where abrasive blasting is conducted on substrates that contain Crystalline Silica.

Control Methods

MKS Construction, LLC will provide control methods that are either consistent with Table 1 or otherwise minimize worker exposures to Silica. These exposure control methods can include engineering controls, work practices, and respiratory protection. Listed below are control methods to be used when Table 1 is not followed:

Respiratory Protection

Where respiratory protection is required by this program, MKS Construction, LLC will provide each employee an appropriate respirator that complies with the requirements of the company's Respiratory Protection Program and the OSHA Respiratory Protection Standard (29 CFR 1910.134).

Respiratory protection is required where specified by the OSHA Construction Standard Table 1, for tasks not listed in Table 1, or where the company has not fully and properly implemented the engineering controls, work practices, and respiratory protection described in Table 1.

Situations requiring respiratory protection include:

- Where exposures exceed the PEL during periods necessary to install or implement feasible engineering and work practice controls;
- Where exposures exceed the PEL during tasks, such as certain maintenance and repair tasks, for which engineering and work practice controls are not feasible; and
- During tasks for which an employer has implemented all feasible engineering and work practice controls and such controls are not sufficient to reduce exposures to or below the PEL.

Housekeeping

MKS Construction, LLC does not allow dry sweeping or dry brushing where such activity could contribute to employee exposure to Respirable Crystalline Silica unless wet sweeping, HEPA-filtered vacuuming, or other methods that minimize the likelihood of exposure are not feasible.

MKS Construction, LLC does not allow compressed air to be used to clean clothing or surfaces where such activity could contribute to employee exposure to Respirable Crystalline Silica unless:

- The compressed air is used in conjunction with a ventilation system that effectively captures the dust cloud created by the compressed air; or
- No alternative method is feasible.

Written Exposure Control Plan

When employee exposure on a construction project is expected to be at or above the Action Level, a Written Exposure Control Plan (ECP) will be established and implemented.

This ECP will contain at least the following elements:

- A description of the tasks in the workplace that involve exposure to Respirable Crystalline Silica;
- A description of the engineering controls, work practices, and respiratory protection used to limit employee exposure to Respirable Crystalline Silica for each task;
- A description of the housekeeping measures used to limit employee exposure to Respirable Crystalline Silica; and
- A description of the procedures used to restrict access to work areas, when necessary, to minimize the number of employees exposed to Respirable Crystalline Silica and their level of exposure, including exposures generated by other employers or sole proprietors.

The written ECP will designate a Competent Person to make frequent and regular inspections of job sites, materials, and equipment to ensure the ECP is implemented.

The written ECP will be reviewed at least annually to evaluate the effectiveness of it and update it as necessary. Having said this, ECP's are project specific and most project durations do not exceed a year. The written ECP will be readily available for examination and copying, upon request, to each employee covered by this program and/or ECP, their designated representatives, and OSHA.

Medical Surveillance

Medical surveillance will be made available for each employee who will be required to use a respirator for 30 or more days per year due to their Respirable Crystalline Silica exposure. Medical surveillance (i.e. medical examinations and procedures) will be performed by a PLHCP and provided at no cost to the employee at a reasonable time and place.

MKS Construction, LLC will make available an initial (baseline) medical examination within 30 days after initial assignment, unless the employee has received a medical examination that meets the requirements of the OSHA Respirable Crystalline Silica Construction Standard within the last three years.

The examination shall consist of:

- A medical and work history, with emphasis on past, present, and anticipated exposure to Respirable Crystalline Silica, dust, and other agents affecting the respiratory system in addition to any history of respiratory system dysfunction, including signs and symptoms of respiratory disease (e.g., shortness of breath, cough, wheezing), history of tuberculosis, and smoking status and history;
- A physical examination with special emphasis on the respiratory system;

- A chest X-ray (a single postero-anterior radiographic projection or radiograph of the chest at full inspiration recorded on either film [no less than 14 x 17 inches and no more than 16 x 17 inches] or digital radiography systems) interpreted and classified according to the International Labor Office (ILO) International Classification of Radiographs of Pneumoconiosis by a NIOSH-certified B Reader;
- A pulmonary function test to include forced vital capacity (FVC) and forced expiratory volume in one second (FEV1) and FEV1/FVC ratio, administered by a spirometry technician with a current certificate from a NIOSH-approved spirometry course;
- Testing for latent tuberculosis infection; and
- Any other tests deemed appropriate by the PLHCP.

MKS Construction, LLC will make available medical examinations that include the aforementioned procedures (except testing for latent tuberculosis infection) at least every three years. If recommended by the PLHCP, periodic examinations can be more frequently than every three years.

MKS Construction, LLC will ensure that the examining PLHCP has a copy of the OSHA Respirable Crystalline Silica Construction Standard, this program, and the following information:

- A description of the employee's former, current, and anticipated duties as they relate to the employee's occupational exposure to Respirable Crystalline Silica;
- The employee's former, current, and anticipated levels of occupational exposure to Respirable Crystalline Silica;
- A description of any personal protective equipment (PPE) used or to be used by the employee, including when and for how long the employee has used or will use that equipment; and
- Information from records of employment-related medical examinations previously provided to the employee and currently within the control of MKS Construction, LLC.

MKS Construction, LLC will ensure that the PLHCP explains to the employee the results of the medical examination and provides each employee with a written medical report within 30 days of each medical examination performed. The written report shall contain:

- A statement indicating the results of the medical examination, including any medical condition(s) that would place the employee at increased risk of material impairment to health from exposure to Respirable Crystalline Silica and any medical conditions that require further evaluation or treatment;
- Any recommended limitations on the employee's use of respirators;
- Any recommended limitations on the employee's exposure to Respirable Crystalline Silica; and;
- A statement that the employee should be examined by a Specialist if the chest X-ray is classified as 1/0 or higher by the B Reader, or if referral to a Specialist is otherwise deemed appropriate by the PLHCP.

MKS Construction, LLC will also obtain a written medical opinion from the PLHCP within 30 days of the medical examination.

The written opinion shall contain only the following in order to protect the employee's privacy:

- The date of the examination;
- A statement that the examination has met the requirements of the OSHA Respirable Crystalline Silica Construction Standard; and
- Any recommended limitations on the employee's use of respirators.

If the employee provides written authorization, the written opinion shall also contain either or both of the following:

- Any recommended limitations on the employee's exposure to Respirable Crystalline Silica; and/or
- A statement that the employee should be examined by a Specialist if the chest X-ray is classified as 1/0 or higher by the B Reader, or if referral to a Specialist is otherwise deemed appropriate by the PLHCP.

If the PLHCP's written medical opinion indicates that an employee should be examined by a Specialist, MKS Construction, LLC will make available a medical examination by a Specialist within 30 days after receiving the PLHCP's written opinion. MKS Construction, LLC will ensure that the examining Specialist is provided with all of the information that the employer is obligated to provide to the PLHCP.

MKS Construction, LLC will ensure that the Specialist explains to the employee the results of the medical examination and provides each employee with a written medical report within 30 days of the examination.

The written report will contain:

- A statement indicating the results of the medical examination, including any medical condition(s) that would place the employee at increased risk of material impairment to health from exposure to Respirable Crystalline Silica and any medical conditions that require further evaluation or treatment;
- Any recommended limitations on the employee's use of respirators; and

- Any recommended limitations on the employee's exposure to respirable crystalline Silica.

In addition, MKS Construction, LLC will obtain a written opinion from the Specialist within 30 days of the medical examination.

The written opinion shall contain the following:
- The date of the examination;
- Any recommended limitations on the employee's use of respirators; and
- If the employee provides written authorization, the written opinion shall also contain any recommended limitations on the employee's exposure to Respirable Crystalline Silica.

Hazard Communication
MKS Construction, LLC will include Respirable Crystalline Silica in the company's Hazard Communication Program established to comply with the OSHA Hazard Communication Standard (29 CFR 1910.1200).

MKS Construction, LLC will ensure that each employee has access to labels on containers of Crystalline Silica and those containers respective Safety Data Sheets (SDS's).

All employees will be trained in accordance with the provisions of the OSHA Hazard Communication Standard and the Training Section of this program. This training will cover concerns relating to cancer, lung effects, immune system effects, and kidney effects.

MKS Construction, LLC will ensure that each employee with the potential to be exposed at or above the Action Level for Respirable Crystalline Silica can demonstrate knowledge and understanding of at least the following:
- The health hazards associated with exposure to Respirable Crystalline Silica;
- Specific tasks in the workplace that could result in exposure to Respirable Crystalline Silica;
- Specific measures MKS Construction, LLC has implemented to protect employees from exposure to Respirable Crystalline Silica, including engineering controls, work practices, and respirators to be used;
- The contents of the OSHA Respirable Crystalline Silica Construction Standard;
- The identity of the Competent Person designated by MKS Construction, LLC ; and
- The purpose and a description of the company's Medical Surveillance Program.

MKS Construction, LLC will make a copy of the OSHA Respirable Crystalline Silica Construction Standard readily available without cost to any employee who requests it.

Recordkeeping
MKS Construction, LLC will make and maintain an accurate record of all exposure measurements taken to assess employee exposure to Respirable Crystalline Silica.

This record will include at least the following information:
- The date of measurement for each sample taken;
- The task monitored;
- Sampling and analytical methods used;
- Number, duration, and results of samples taken;
- Identity of the laboratory that performed the analysis;
- Type of personal protective equipment (PPE), such as respirators, worn by the employees monitored; and
- Name, social security number, and job classification of all employees represented by the monitoring, indicating which employees were actually monitored.

MKS Construction, LLC will ensure that exposure records are maintained and made available in accordance with 29 CFR 1910.1020. Exposure records will be kept for at least 30 years.

The employer shall make and maintain an accurate record of all objective data relied upon to comply with the requirements of the OSHA Respirable Crystalline Silica Construction Standard.

This record shall include at least the following information:
- The Crystalline Silica-containing material in question;
- The source of the objective data;
- The testing protocol and results of testing;
- A description of the process, task, or activity on which the objective data were based; and

- Other data relevant to the process, task, activity, material, or exposures on which the objective data were based.

MKS Construction, LLC will ensure that objective data are maintained and made available in accordance with 29 CFR 1910.1020. Objective data records will be kept for at least 30 years.

MKS Construction, LLC will make and maintain an accurate record for each employee enrolled in the Medical Surveillance portion of this program.

The record shall include the following information about the employee:

- Name and social security number;
- A copy of the PLHCPs' and/or Specialists' written medical opinions; and
- A copy of the information provided to the PLHCPs and Specialists.

MKS Construction, LLC will ensure that medical records are maintained and made available in accordance with 29 CFR 1910.1020. Medical records will be kept under lock and key for at least the duration of employment plus 30 years. It is necessary to keep these records for extended periods because Silica-related diseases such as cancer often cannot be detected until several decades after exposure. However, if an employee works for an employer for less than one year, the employer does not have to keep the medical records after employment ends, as long as the employer gives those records to the employee.

WORKING CONDITIONS

This program will be reviewed and evaluated on an annual basis by the Safety Department unless changes to operations, the OSHA Respirable Crystalline Silica Construction Standard (29 CFR 1926.1153), or another applicable OSHA Standard require an immediate re-validation of this program.

Process Safety Management (PSM)

A set of requirements designed to assure that operations at facilities where chemicals are processed are conducted safely. Process Safety Management (PSM) is an OSHA regulation found in 29 CFR 1910.119.

PSM applies to facilities that use hazardous materials in their processes. The purpose of a PSM program is to prevent or minimize the consequences of catastrophic releases of toxic, reactive, flammable or explosive chemicals in various industries, such as refineries, chemical plants or other processing facilities.

MKS Construction, LLC does not own any PSM systems; however, as a contractor, Earth Works employees may work in a PSM facility.

When MKS Construction, LLC employees work in a PSM facility, each employee will follow all applicable PSM rules:

- PSM requires that operators use only contactors that can perform their work safely
- Operators must verify that contractor employees are trained to perform their jobs safely. MKS Construction, LLC will participate in this verification as requested
- PSM requires that operators look out for the safety of contractor employees working at their facilities
- Per the PSM regulations, so far as safety is concerned, the supervisor has nearly as much responsibility for contractor employees as they do for their own employees. While this is true, all MKS Construction, LLC employees, by following each safety rule within the PSM facility, will ensure his safety as well as those around him. MKS Construction, LLC employees will follow all client permit and safety considerations
- MKS Construction, LLC will insure that its employees follow client requirements for training, and are informed of any hazards present at the operator's facility, such as potential fire, explosion or toxic-release hazards related to his/her job
- The exchange of job-specific information will take place during pre-job safety analysis and this will be documented
- MKS Construction, LLC employees will report any and all incidents no matter how severe to their superintendent

I have read and will abide by the conditions as stated in this document regarding the operation of any vehicle for company business.

Employee Name (Print)	Signature	Date
Witness (Print)	Signature	Date

EMPLOYEE AUTHORIZATION FOR MVR REVIEW

As a prospective employee or current employee, I understand a Motor Vehicle Abstract will be ordered and reviewed to assess minimum eligibility to determine driving privileges.

As a driver of a company vehicle or my own vehicle on the company's behalf, I understand that it is my responsibility to operate the vehicle in a safe manner and to drive defensively to prevent injuries and property damage. Drivers must have a valid driver's license for the type of vehicle to be operated and keep the licenses(s) with them at all times while driving. All drivers must comply with all applicable regulations.

I also understand that my employer will periodically review my Motor Vehicle Record to determine continued eligibility to drive a company vehicle or operate my own vehicle on the company's behalf. In accordance with the Fair Credit Reporting Act, I have been informed that a Motor Vehicle Record will be periodically obtained on me for continued employment purposes.

I acknowledge the receipt of the above disclosure and authorize my employer or its designated agent to obtain a Motor Vehicle Record Report. This authorization is valid as long as I am an employee or employee candidate and may only be rescinded in writing.

Employee Name (Print)	Signature	Date

Witness (Print)	Signature	Date

Employee Driver's License Number

EMPLOYEE HANDBOOK ACKNOWLEDGMENT AND RECEIPT

I have received my copy of the Employee Handbook.

The employee handbook describes important information about MKS Construction, LLC and I understand that I should consult my manager or Human Resources regarding any questions not answered in the handbook. I have entered into my employment relationship with MKS Construction, LLC voluntarily and acknowledge that there is no specified length of employment. Accordingly, either I or MKS Construction, LLC can terminate the relationship at will, with or without cause, at any time, so long as there is not violation of applicable federal or state law.

I understand and agree that other than the President of company, no manager, supervisor, or representative of MKS Construction, LLC has any authority to enter into any agreement for employment other than at will; only the President of the company has the authority to make any such agreement and then only in writing signed by the President of MKS Construction, LLC.

This handbook and the policies and procedures contained herein supersede any and all prior practices, oral or written representations, or statements regarding the terms and conditions of my employment with MKS Construction, LLC. By distributing this handbook, the company expressly revokes any and all previous policies and procedures that are inconsistent with those contained herein.

I understand that, except for employment-at-will status, any and all policies and practices may be changed at any time by MKS Construction, LLC, and the company reserves the right to change my hours, wages and working conditions at any time. All such changes will be communicated through official notices, and I understand that revised information may supersede, modify, or eliminate existing policies. Only the President of MKS Construction, LLC has the ability to adopt any revisions to the policies in this handbook.

I understand and agree that nothing in the Employee Handbook creates, or is intended to create, a promise or representation of continued employment and that employment at MKS Construction, LLC is employment at will, which may be terminated at the will of either MKS Construction, LLC, or myself. Furthermore, I acknowledge that this handbook is neither a contract of employment nor a legal document. I understand and agree that employment and compensation may be terminated with or without cause and with or without notice at any time by MKS Construction, LLC, or myself.

I have received the handbook, and I understand that it is my responsibility to read and comply with the policies contained in this handbook and any revisions made to it.

Employee Name (Print)	Signature	Date

TO BE PLACED IN EMPLOYEE'S PERSONNEL FILE